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Virginia Board of Education, Business Meeting, Thursday, September 15, 2022

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=cczTSpUkw4Q
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-23. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:32:08] all right we are delighted to be here today uh welcome to the uh business meeting of the board of education as i like to say the hardest working most underpaid board in the commonwealth uh please join me for a motion of silence followed by the pledge of allegiance

[00:32:23] it started this morning i'd like to introduce two new staff members who will be working closely with

[00:33:06] the board kim ritchie you have to come over here because nobody can see you i'm sorry our newly minted deputy superintendent for school quality instruction and performance and uh megan paris over here executive assistant in the board relations office thank you both for being here today we look forward to uh working with both of you all right minutes from august 17.

[00:33:34] uh i hope that members have had a chance to review the minutes if so is there a motion either to approve or to amend that's to approve i'm assuming thank you miss holton is there a second second thank you mr hansen all those in favor signify by saying aye aye any opposed no okay public comment. The board welcomes members of the public to address us during the public comment portion of the business meeting. Speakers will be recognized in the order in which their request was received.

[00:34:05] Speakers are asked to limit their remarks to three minutes. When your time is up, please close your remarks promptly. We ask that you provide your name and affiliation at the beginning of your remarks. You may provide copies of comments to Emily Webb, director of board relations after you finish speaking or you can email her with those copies. I should note again that the Board does not respond to comments or ask questions from the dais. All comments are shared with appropriate staff personnel for follow-up after the meeting. I will say we have an extensive

[00:34:39] list of people looking to speak today. We will do this as expeditiously as possible. I will call both the current speaker and the next speaker so that we can be prepared and we thank you all for your patience with the process as we move through it. First up is Jenna Alexander, followed by Chris Jones. Good morning, President Decker, Vice President Mann, members of the board, and Superintendent Baylow. Thank you for the opportunity to speak today. My name is Chris Jones and I proudly serve as

[00:35:16] executive director for the Virginia affiliate of ASCD and as chair for the Virginia Public Education Coalition known as VPAC. There will be an acronym quiz at the end. I am also the father of four Chesterfield County Public Schools students. I am joined today by Jenna Alexander, president-elect for the Virginia PTA and active participant with VPAC along with members from our coalition. VPAC is a collaborative group consisting of the 12 most influential education organizations in Virginia representing parents, school board members, teachers, principals, counselors, superintendents, curriculum development

[00:35:53] and higher education teacher training programs. We provide a unified voice in advocating for improving k-12 education in the commonwealth of virginia and believe that public education provides direct benefits to students and families as well as society at large the 12 v organizations that make up vpac are ascd pta association of colleges for teacher education association of elementary school principals association of school superintendents association of secondary school principals school boards association counselors association education

[00:36:27] Association, Middle School Association, School Counselor Association, and Professors of Educational Leadership. Our priorities are students and the workforce. I submitted our statement on public education electronically for your reference later. It is a document consisting of our purpose, beliefs, values, samples of outcomes resulting from our work, and our expectations of those who make decisions on behalf of students and their families, as well as the workforce that serves them as the chairperson serving vpac i strongly encourage you to leverage the expertise and experience of vpac particularly as a source of counsel advisory and decision making thank you

[00:37:06] again for the opportunity to speak today and i look forward to a strong collaborative partnership good morning president gecker vice president man members of the board superintendent below my name is jenna alexander i'm the president-elect of the virginia pta a representative of vpac and and a parent of Loudoun County Public School students.

[00:37:25] Virginia PTA is the oldest and largest nonpartisan volunteer child advocacy association in Virginia with more than 130,000 members. Engaging families in order to create a collaborative partnership between families and schools is at the core of PTA work. Through family events, community outreach, sharing of parent educational resources and advocacy, our parent volunteers are working hard not only to support their own students but also to create ties between families and schools in fun, engaging, and innovative ways.

[00:37:52] As a community of parent volunteers, we are directly connected on a daily basis to the concerns of parents in our school communities, as well as the needs of teachers, principals, and school staff. We know that when families and schools work together, students succeed. So we're proud to be here today with the Virginia Public Education Coalition to share high-level recommendations that VPEC believes should be prioritized in order to improve learning and life outcomes for Virginia students.

[00:38:15] VPEC's six core priorities are expanding high-quality student services, effectively allocating resources, reinforcing the workforce, engaging families, leveraging community and business partners, and modernizing school infrastructure. As Chris mentioned, you should have received a copy of VPEC's position on public education with policy recommendations in each of these six areas.

[00:38:35] I wanna quickly highlight a few. I wanna thank the Board of Education for your focus on improving the standards of quality to reflect local school division's actual costs, the resources needed to support academic success for all students, and additional resources needed for schools with high ratios of students experiencing poverty, English language learners, and students with disabilities.

[00:38:55] In addition to effectively allocating resources and staffing, our students need expanded access to world languages, financial literacy, advanced academic programs, and trade skills education beginning in elementary school. Students also need increased opportunities for personalized learning, a curriculum that bridges public education and higher education, and programs that facilitate strong connections between schools and local businesses to provide work-based learning opportunities, internships and apprenticeships.

[00:39:21] One of the most important components of student success is parent involvement. Fostering collaborative partnerships and regular, meaningful two-way communication with families and schools is essential to student success and thriving communities and should be the starting point for all policy development.

[00:39:36] We urge you to support funding that helps school divisions communicate with parents in multiple languages and provide the school quality profiles in multiple languages. Improving student outcomes requires collaboration with all education stakeholders. VPEC believes that constructive dialogue between elected and appointed state representatives and the largest education stakeholder groups in Virginia is key to continuously improving the needs of public education and its contribution to Virginia's prosperity.

[00:40:02] We look forward to collaborating with you to support the academic success of our students and to build a strong workforce and prosper. Thank you. Thank you. Rich Lieberman, followed by Julie Young.

[00:40:21] I'm going to speak fast to try to get it all in. Distinguished board members, my name is Rich Lieberman. I'm a resident of Spotsylvania. I appreciate the time to address you regarding the licensure of Mark Taylor as superintendent.

[00:40:38] I have passed out a packet of information pertinent to Mr. Taylor not being eligible under Virginia Code for license. I will address the information from back to front. A majority of your packet are posts from Mr. Taylor's social media. In there, you will find racist, homophobic posts. You will find posts telling parents to remove their kids from public schools and even joke about school shootings.

[00:40:57] Mr. Taylor has admitted the page is his. However, he claims he doesn't have good security on his page. Please note the various dates on some of these screenshots. I find it difficult to believe that his

account was hacked over a period of time without his knowledge, especially with the fact he has posted other items on the page and never noticed these posts or any friend or family member saying anything.

[00:41:16] Virginia Code 8, VA, C20-390-10. This code states who may be granted a license as a superintendent. Qualifications, specifically states, eligibility should be limited to individuals who records attest to good character. When you look through the sample of social media posts in the back of your package, do you believe in your heart this is someone whose record attests a good moral character to lead a public school district?

[00:41:40] The same section of qualification also continues and demonstrated ability as an educational administrator. Mr. Taylor has zero experience as an educational administrator. Next, you will find an article from last week's Freelance Star newspaper. In there, it states Mr. Taylor's application arrived after the cutoff date and Mr. Twig requested be forwarded to the board anyways.

[00:41:59] Mr. Twigg has a well-documented relationship with Mr. Mrs. Taylor both Taylor serve on the board of one of twigs two corporations Ms. Taylor's written letters to the editor supporting mr. Twigg's political campaign. Both letters are in your packet Please note the letter from 2019 states. They've been friends for 15 years at that point Many people are discussing the option for candidate the next article in your packet going from back to front is Virginia code 8 vac 20 - 390 day 10 or 10 qualifications in reference to division superintendents for counties, etc. While I mentioned the first paragraph already this code clearly states What the master's degree should encompass while you can read the code for yourself

[00:42:37] It includes a focus on education. Mr. Taylor does not have that the most telling part of the code is paragraph three requiring at least five years of full-time experience in administration the supervision or Supervision or both in public schools at best a county administrator just determines how much money the county will contribute to the school's budget that's it please note the last option for candidate this board already approved worked in administration of a school system I respectfully request this board deny the application for licensure of Mark Brian Taylor I think the law says you have no choice but that I also respectfully request that since Spotsylvania County has been without a superintendent for over nine months now

[00:43:16] and our current board has completely dropped the ball your body would draw the extension granted to Spotsylvania to hire its own superintendent then appoint a fully qualified person to help unite our schools and move us forward in positive direction thank you good morning um good morning mr gecker and members of the board and

[00:43:53] superintendent ballo my name is julie young and i am a resident of spalsavania county schools or sponsivating county virginia i have two children who attend school in spalsavania county public schools i'm very grateful for this opportunity to address this board and to share my concerns i am here today to express my deep concerns regarding mr mark taylor who is on your list to become an eligible candidate as superintendent i am asking you to deny his application for licensure in the virginia administrative code under 8 va c20-23-750

[00:44:31] there are several reasons listed out that would allow this body to deny a license to mr taylor i firmly believe there is reason to deny mr taylor's application for license under at least three of these sections the first is under section a one misrepresentation of material facts mr taylor's application was incomplete at the time that it was submitted and the required letter of recommendation from a public

school division was not included a private letter was submitted by mr twig who is a personal friend of mr taylor and who also happens to be our school board

[00:45:06] chairman mr twig acted individually and without the knowledge and consent of the full board this was sneaky inappropriate and unethical even if mr twig has now corrected this procedural error it should not be ignored that both men tried to subvert the system the second reason for denial of this license is within subsection a.7 conduct with direct and detrimental effect on the health welfare discipline or morale of a student or minor mr taylor has reportedly posted things to his public facebook page that are racially insensitive anti-public education and that make light of the

[00:45:45] lgbtq population and people living in poverty from his facebook posts it seems that he finds it entertaining to degrade children african americans and people receiving government assistance this is the kind of man that i would not want my child interacting with at all and i certainly do not want him to be placed in a position of authority over an entire school division if you approve him with the knowledge of these things you also become responsible for the damage that he may do to our students please use the authority that you have to protect our students the third reason for denial

[00:46:22] is within subsection a 10 other good and just cause in the best interest of the public schools of the commonwealth of virginia our community through a survey developed by gr recruiting firm clearly stated they want a new superintendent to have a robust knowledge of public education and someone who is a trusted leader who values ethics and integrity. Mr. Taylor does not meet either of these qualifications. He has never served as a teacher, a principal, or an administrator in an education setting. He homeschooled his own children. May I finish one line? And he advocated

[00:47:02] that the best thing people can do is to remove their children from the public schools given these characteristics it is clearly not in the best interest of our school division to have this man serve as our next superintendent i've attached several supporting documents for your review thank you for your time and consideration thank you uh lori buckingham and rebecca murray good morning mr gecker and members of the board i submitted my supporting documents and comment

[00:47:37] electronically, so you should have those available to you. My name is Lori Buckingham. I'm a 25-year veteran of Spotsylvania County Schools, and I'm here today as a parent of two Spotsylvania County High School students. Governor Yunkin has repeatedly stated that parents have been pushed out of the team and that he wants more parent involvement in education. So as a parent, I'm here to engage and be involved. I want to be clear that I'm not interested in political affiliations or personal attacks i'm interested only in ensuring that our division school board

[00:48:11] is proceeding with transparency in the superintendent selection process to that end i ask that you remove mark taylor's name from the list of superintendent licensure based on virginia code 8 vac 20-23-750 under subsections a1 misrepresentation and material facts a7 conduct with direct and detrimental effect on the health welfare discipline or morale of a student or minor and a 10 other good and just caused in the best interest of the public schools of the commonwealth of virginia it is reported that mr taylor's original application contained a document

[00:48:50] that misrepresented material facts an individual school board member submitted a letter of recommendation that misrepresented that letter as a letter of recommendation from our school board at that time of application our school board had not voted to recommend mr taylor for licensure although mr taylor is qualified under option four of the superintendent licensure process he does not meet the criteria

set forth by the community the results of the community input sessions and surveys get data gathered by gr recruiting were shared at the may 16 2022

[00:49:27] spotsylvania county school board meeting i've shared those results with you electronically the community asked that the superintendent have a robust knowledge of public education and also establish and restore trust with staff students and community independent of political parties additionally both gr recruiting and the local school board school board members intimated that educational experience would be expected in a superintendent eligible for licensure seemingly not knowing that option four would allow licensure without educational experience.

[00:50:02] Mr. Taylor does not meet the community's criteria for superintendent, even if he appears to be qualified by BDOE standards. Lastly, I would argue that Mr. Taylor's denial can also be made on subsection A7 of the aforementioned code.

[00:50:18] What do I say to my 17 year old who comes to me asking why the recommended candidate for superintendent has racially charged anti-LGBTQIA plus and anti-public education posts on his public Facebook page.

[00:50:35] How are students supposed to feel safe and supported by the leader of their school division when these messages are shared publicly? Students are paying attention, reviewing his social media and asking for an explanation.

[00:50:50] Thank you for your consideration. - Rebecca Murray followed by Bridget Tartar. good morning my name is rebecca murray i'm a retired educator of 33 years retired in 2019 with my last 20 years in spottsylvania mark taylor an attorney submitted an incomplete application for superintendent licensure containing a letter of recommendation by his friend and business associate board chairman kirk twig this letter was sent in defiance of law

[00:51:28] and because it had not been voted on publicly by the school board as required by virginia code while an after the fact public vote was eventually taken and passed with a narrow 4-3 margin that does not expunge twigs and taylor's attempt to circumvent virginia law and manipulate you in august taylor's public facebook page was exposed much of its content is racist homophobic and anti-public education one post he shared encourages parents to save america by taking their children out of america's schools another post appeared to make light of school shootings

[00:52:03] as though they are a joke. While this page was exposed weeks ago, it has only been in the past day or so that Taylor addressed it, and now he implies he was hacked, even though his posts are timestamped and go back years. Too little, too late, too convenient. Just as you must consider licensure based on Virginia Code, you are likewise compelled to consider reasons for licensure denial, also based on law. Virginia Code 8VAAC20-23-750 lists 10 reasons for superintendent denial. Were this law not intended to be considered, it would not have been written.

[00:52:43] Of the 10 reasons for licensure denial, four speak directly to his ability to serve all of our students, though any one of these should disqualify him. Reasons one and two relate to falsified letter reason seven reads conduct with direct and detrimental effect on the health welfare discipline or morale of a student or minor reason 10 reads other good and just cause in the best interest of public schools in the commonwealth of virginia no student should have to attend a school in a district whose leader has shown public contempt for their race ethnicity or sexual

[00:53:19] orientation has mocked school shootings and has encouraged parents to remove their children from public school taylor has demonstrated by his conduct that he cannot effectively lead a school system where all students may feel safe and respected based on his public contempt for those who do not align with his personal beliefs it is likely the health welfare discipline and morale of many students will suffer i implore you to follow virginia code and based on reasons one two seven and 10 deny Mark Taylor licensure. His hiring is likely to result in lawsuits, and our schools must

[00:53:57] focus on education, not litigation. We're counting on you to make the moral, ethical, and most significantly legal decision. I'd like to thank this board for allowing us all free speech. In Spotsylvania, Kirk Twigg is doing all he can to squelch that. Thank you.

[00:54:21] - Thank you. Ms. Tartar, followed by Lori Zemansky. - Good morning, distinguished board members. I'm honored to be here. Thank you for allowing me this opportunity. My name is Bridget Tartar. I come to you today, not only as an educator, a school psychologist having devoted my 18 year career to working with children with special needs, but also as a parent of a child in the Spotsylvania County public school system.

[00:54:48] Not only am I speaking on behalf of my own child, but on behalf of the children have personally touched my heart and who mean something very special to me children whose educational careers and futures are directly impacted by the standards set forth by our county's school board and our division leaders as both an educator and a parent i hold the education of my child and the other children of spotsylvania county in the highest regard it is how we prepare them today to succeed in this very difficult world tomorrow and is our children's future that will be impacted by the decisions made here today over the course of the last year i have watched events

[00:55:25] unfold in this county that have caused me great distress i'm not going to stand here today to speak to you about politics quite frankly i'm tired of politics as far as i'm concerned they do not have a space in public education what spotsylvania county schools needs right now is to re-establish trust within the community at large and among its staff the events of the last year have damaged that trust we need to work to rebuild working relationships within the community at large and among our staff how can we go about doing that if mr mark taylor is elected to serve as superintendent of schools using input data input gathered from town halls stakeholder meetings

[00:56:04] and data gathered from input collected from a survey which was distributed to the community the following is a short list of some of the items identified by community members themselves as being critically important in the search for our next superintendent a team builder who can bring our school community back together with the school board a robust knowledge of public education transparency in his communication his or her communication and an inspirational style of leadership both within and among the community with its employees and students while mr taylor

[00:56:42] qualifies under option four i ask if this decision is in the best interest of the students does spotsylvania county schools want to set a precedent for the state of virginia that we appoint our most valued school leadership positions to those with no classroom experience that we are a state that puts so little stock in education that we feel the position could be suitably filled with a candidate lacking any knowledge of curriculum, educational assessment, educational law, or otherwise.

[00:57:12] From this list, it is entirely clear that the people who contributed to the superintendent's search outreach polling efforts want someone who is knowledgeable about public education and who care

a great deal about children and the community involvement. Someone with a great deal of experience in the world of education.

[00:57:30] Someone they can trust with their child, grandchild, or nephew's education. I'm convinced, with all the certainty that I have, as I stand before you here today, that that person is not Mr. Mark Taylor. I thank you greatly for your time and consideration today in allowing me to share my thoughts.

[00:57:47] Thank you. Lori Zemanski and then Megan Jackson. Good morning. My name is Lori Zemanski. I'm a mom, I'm a grandma, I'm an educator, and I'm a resident of Spotsylvania County.

[00:58:04] I come today in support of Mr. Taylor to be approved. video we has itself has made it clear that either that neither a pedigree nor extensive experience in the field of education is necessary to achieve a license for superintendent by having option for available as an appropriate means for qualification a loud and vocal minority who favor having a career educator have caused a lack of clarity on this matter with mob-like bluster fire and smear tactics maligning mr taylor my hope today is that the video we will focus on its role and

[00:58:37] considering mr taylor's qualification to receive a license under option four only and not insert any bias regarding his appeal or lack thereof to the duly elected local spotsylvania school board his accomplishments speak to his ability to provide the leadership and results the spotsylvania district needs right now many school districts across the country are challenged by very similar situations looking outside the box of professional educator to accomplish important goals is certainly a valid option note that the minority does not attack this premise

[00:59:15] but instead resorts to character assassination via heavily orchestrated talking point campaigns this without even knowing who mr taylor is despite him having significant positive effect as county administrator in spotsylvania for many years a lot of people are his friends i have met mr taylor and was impressed by his intelligence wit and wisdom and with his results for example he is committed to transparency and performing as a servant leader he grew social media so that the public could see how their hard-earned tax money was spent he is innovative he drove the transformation

[00:59:53] of a folded gm plant bringing in thriving business that pays salaries and county taxes he is a frugal and pragmatic man he oversaw the implementation of a too hard to use and thus on the shelf financial system he is a strong champion for cons for his constituency he got a triple bond rating for spotsylvania by advocating effectively on wall street all that he did and all the ones before him could not do he can do amazing things for this county Spotsylvania needs a superintendent that can affect a positive change all he is asking is give him a chance

[01:00:29] I believe he deserves that chance. Thank you for your time. Thank you Megan Jackson followed by Candace Lucas. Miss Lucas. Good morning. I didn't see you sitting behind the podium there Good morning. Good morning board members Dr. Baylow My name is Candace Lucas. I'm an advocate that works with families that have disabilities

[01:01:06] I'm also a licensed educator and administrator with the Virginia Department of Education. I just distributed some very shocking and disturbing information from generated by the Sands Anderson Law Firm and the Special Education Director for Powhatan County Public Schools who is also the president of V case by Lynn Prince.

[01:01:26] 8VAC 20-23-720 indicates that if any licensed individual by the Board of Education falsifies records number two falsify students records engages in behavior that is detrimental to the welfare of a child they are to have their license revoked I'm coming before this board because a BAC 20 - 23 - 720 authorizes this board to revoke the license of Lin Prince immediately based on the documentation we have provided the first document you have is a CMT a CPMT memorandum from from the executive director of CSA.

[01:02:04] In that document, number two, I want you to point your attention to number two, it states when a parent does not provide or exercises their right not to provide consent to open a CSA case in their child, and just so you know what a CSA case is, that means that the parent has forced to sign a form where they give 17 agencies unlimited, unrestricted access to their child's file.

[01:02:28] And when parents choose not to do that, The parent has the right to choose not to do that the school division is required to pay for the child's private placement not CSA Parent that is going to speak before you opted not to give the Department of juvenile justice a health department in in Even I don't even know who who else is listed 17 organizations the parent opted not to do that Okay, we found out if you look at the second page We found out that the school division went ahead and contacted CSA without the parents consent That memorandum we found that we got this document there a FOIA request when they contacted CSA on January 22nd

[01:03:07] 2022 CSA told them we cannot proceed to fund the private placement You will have to do it on January 22nd 2022 the child was accepted in a private placement on January 15th 2022 the child's just started private placement as of last week and now the school division is the letter or I'm gonna show you next, the next document, is stating that he cannot attend and threaten the parent.

[01:03:35] The last page is a warrant that the school division issued for the parent because she refuses to give her child's records to 17 organizations. The parent appeared in court yesterday with this document stating she's not going to be forced to do that.

[01:03:52] Now, Lynn Prince wrote a letter on June 24th, 2022 indicating that the child will be attending Believe in You Academy for the 22-23 academic school year. Then on September 9th, that's the letter I have right here, she states that they never enrolled him and he will not be attending.

[01:04:13] That's falsification of records, it's behavior that is detrimental to the welfare of a child. We expect this board to act immediately to provide direct services to this child, send a funding agreement to believe in you academy today so that child can continue to participate in private placement and take her license away she doesn't deserve it thank you miss uh kathy halverson followed sure yeah we would have come back to you at the end but

[01:04:45] if you're here that's great good morning members of the virginia board of education my name is megan jackson and i live in spotsylvania county i am a parent to four children that attend spotsylvania county public schools currently ranging from grade 11 all the way down to kindergarten i have always done my part as a parent to stay involved i have tried to give back to my school community by volunteering in a variety of ways i have served served as a pto president and vice president and today i'm using my voice to advocate for not only my own children but for all scps students i come before you to first thank you for your service to virginia

[01:05:24] students and secondly to thank you for your professionalism when conducting your meetings unfortunately the spotsylvania county school board is unable to mirror the example you have set with mr twig leading the way as chairman if anyone caught monday night's meeting i have a feeling you might agree with me in addition to his inability to lead effectively by following robert's rules of order he has repeatedly broken policy and made decisions as if he alone was the entire school board an example would be the recommendation letter for applicant mark taylor for superintendent licensure under option four it was proven to be fraudulently sent by kirk twig without a public

[01:05:59] vote and should immediately qualify for denial you must ask yourself how did mark taylor a former county attorney not know this how is he expected to run an entire school division but cannot even apply in accordance with the virginia administrative code furthermore mark taylor has had a long-standing relationship of over 15 years with chairman twig it is a complete conflict of interest and appears that 25 000 of taxpayer money spent on gr recruiting was just a facade mr taylor has no background in education and describes the respective superintendent position as an interesting challenge per his recent news interview to add insult to injury the

[01:06:38] applicant's facebook posts are alarming and controversial including anti-public school with one even making light of school shootings please do not be fooled into thinking what has happened was an accident or an oversight i find it very clear from the facts before that these happenings were deliberate calculated 100 corruptive and those involved must be held accountable i trust this board has the integrity to stand by the law and look at the facts at hand the reasons for denial would not have been created if not meant to be used when needed our children deserve nothing but the absolute best and we simply cannot take a chance on someone when our kids have so

[01:07:13] much at stake we need a leader who understands the daily operations of public schools from higher learning and firsthand experience please do the right thing and deny mark taylor's application so our kids have the best chance at success without transparency we cannot have trust and unfortunately both have already been broken thank you for your time thank you kathy halbertson followed by angela ellis good morning board thanks for letting me speak today

[01:07:51] i am the parent that ms lucas just referenced my son alexander has been out of school since november the 10th um this school we had a iep meeting november the 17th they all agreed that they they were at wit's end they didn't know how to educate him we tried north star he did not get accepted into north star not not one school member administrator gave me any list of any schools i myself had to go and search for schools i searched for bnu which cindy cully referenced

[01:08:28] i applied to bnu january the 15th he was accepted i consented to january the 10th and the minute the minute the next day they started marking my son unexcused my son before this has had perfect attendance straight a student and loves school i have to listen to him cry every night he's autistic his iq level is exceptional cry every night why he cannot go to school why because of

[01:09:06] funding this is the problem this child is our life y'all y'all work for me y'all work for me i need a funding agreement sent to believe in you today this is a this is a total conspiracy this it's non-stop back and forth he can't go he can go he can go he is crying at night he started last week just because we received foia stating he should have started back in january when he

[01:09:38] was accepted the minute january the 10th they started marking him unexcused i go on vacation in august and come home the parents worst nightmare who loves their children i get a summons

on my door for truancy. He has never missed any school, none. So they're making me look like a bad parent. He has never. Principal gave pre-approval for vacations every single year.

[01:10:16] So I go to court yesterday looking like a bad parent when all I want is for my son to be educated. They admitted they could not educate him. They did not have the resources. He did not get accepted to North Star. So from November the 28th, and they were sending work home for me to do, although I'm not a licensed educator, they were getting paid and he's marked as home-based.

[01:10:51] The minute he got the consent, January 10th, he was marked unexcused for 101 absences. So somebody, please step up. All of y'all are parents, grandparents.

[01:11:08] Send a contract so my son can go to school. And all this can be dismissed. Thank you. Angela Ellis, followed by Jeff Kent. Good morning.

[01:11:26] My name is Angela Ellis, and I am a resident of Spotsylvania County. I'm sure you're going to be surprised when I tell you that I'm here to speak about the candidate Mutt Taylor. I am personally and professionally dedicated to public education. Professionally, I work as a leader in related services and special education in a county neighboring my own.

[01:11:45] But more importantly, I am the parent to two teenagers currently attending Cortland High School in Spotsylvania County. I'm here today to beg for your help. Spotsylvania County has recently made the national news since Kirk Twigg has taken his role as the chairperson of our board, but never for a good reason.

[01:12:04] First, it was about book burning, and now it's about the recommended candidate for the position of Superintendent Mr. Mark Taylor. After 21 candidates were recommended to the board from the search firm that we had contracted with, the one the board decided on just happens to be a 15-plus year friend of Mr. Twigg.

[01:12:23] When my husband worked for the local newspaper, my children were not allowed to enter into any radio contests for a $10 little thing. Because that was going to be considered a conflict of interest because the newspaper and the radio station were owned by the same company.

[01:12:39] That was a conflict of interest that we needed to look at professionally. And so my kids couldn't enter a radio contest. However, to give a position of superintendent when there's a conflict of interest of being a 15 plus year friend, when there's 21 other candidates that were entered into the pool in a national search for superintendent.

[01:13:02] He has zero educational experience. You can't convince me that he is by far the best candidate out of those 21 people. What position will that put our county and even our state in as a result? What will those other candidates say when they were the ones that were looked over and this is the candidate that we actually chose?

[01:13:23] What potential discrimination suits are we now gonna be looking at and are being formed as we speak? Mr. Taylor's application was either incomplete at best or fraudulent at worst. The confidential letter recommending Mr. Taylor was sent to you by Mr. Twig prior to any public vote.

[01:13:39] You've heard that from other speakers. You have documentations in your packet. you understand that this is the way it actually happens. We teach our elementary age children the difference

between fact and fiction. We can't allow lying to be something that an educational body and an educational facility is going to accept as being acceptable, quite honestly.

[01:14:02] And we certainly can't promote it. Spotsylvania's own code of conduct for our students demands better. How can we accept that from Spotsylvania's school board and superintendent candidates? Spotsylvania County needs a leader that will inspire others, someone that will heal the anger and the hostility that is in our county, not someone that will only breed more anger and hostility.

[01:14:26] We can barely hold on to staff right now. We have lost several administrators already this school year. I'm sorry, I'm almost done. Allowing Mark Taylor and his longtime friend, Mr. Twig, to move into the superintendent position will only further drive a knife into the heart of our division.

[01:14:43] and we need your help to save our district from self-destruction with this candidate please consider rejecting his licensure application thank you thank you uh jeff kent and then tom eikenberg good morning my name is jeff kent and i live in spotsylvania county virginia and my children attend middle school and high school in the county thank you for taking the time to take public comments today i hope the turnout today is unusual for this board and i hope that we're able to provide you with enough valid reasons to deny mr mark taylor a license to be a superintendent in Virginia. There are numerous reasons that I believe Mr. Taylor is unfit to act as the

[01:15:23] superintendent for Spotsylvania County Schools, but I know that you have a specific role to play in making that decision to grant or deny this license based on one or more of the specified reasons for denial that are listed in Administrative Code 8VAC2023750 for denial. Any one of these should be reasoned for denial. I believe Mr. Taylor violated both number one, attempting to obtain a license by fraudulent means or through misrepresentation of material facts, and number to falsification of records or documents when he submitted an application for this license with a letter that was fraudulently created and given to Mr. Taylor. The facts of this creation and submission of this letter is not open for debate. The chairman of the Spotsylvania School Board,

[01:16:00] Mr. Twigg, told you himself at the end of the last meeting here that he had provided the letter based on a thumbs-up agreement in closed session. Unfortunately, the request for being added to the list for licensure requires an official public vote. Mr. Twigg got that vote a few weeks later, but the facts remain the facts. Mr. Twig provided the required letter for Mr. Taylor's application knowing no official vote was taken and Mr. Taylor, an attorney, should have known this vote did not take place. Mr. Twig has gained a reputation in our county of flaunting policies and laws in pursuit of his agenda and Mr. Taylor is now an accomplice in an attempt to give a high-paying

[01:16:35] high-level position to a person that he has known since at least 2015 according to a recent interview with Mr. Taylor. We need boots to wade through the pool of nepotism that's at work here. I have to thank this board for postponing the decision from mr. Taylor's license for a month because it gave us time to find out a few other things about mr. Taylor that I believe checkbox for number seven conduct with direct and detrimental effects on the health welfare discipline and morale of a student or minor and number ten other good and just cause in the best interest of the public schools of Commonwealth of Virginia as recently reported mr. Taylor has a public Facebook page that consists of a few family photos and a whole lot of reposted memes that many in our community believe are racist and

[01:17:13] transphobic and some that suggest the best thing a parent in America can do for their children is to take them out of public schools. Any student or staff member that might take a look at this publicly

accessible page, particularly those that are female and/or non-white, would get the impression Mr. Taylor would not have the same inclination to see them as a whole person worth supporting.

[01:17:36] Staff members who have dedicated their lives to public schools could never trust Mr. Taylor with their careers and livelihoods. That would certainly be detrimental to their welfare and morale. Finally, I believe granting Mr. Taylor this license will have a disastrous effect on one of the largest school systems in the state. This will increase an already alarming teacher and staff exodus, resulting in larger classes led by less qualified and less experienced teachers, which would have lasting effects on the learning achievements and safety of over 23,000 students.

[01:18:02] This would not be in the best interest of public schools in Virginia. Mr. Taylor is unfit to be, almost done, superintendent anywhere in Virginia, but he most certainly will only intensify the problems our county is already facing, but within the scope of what you're looking at today, he has checked off a number of officially stated reasons to deny this license.

[01:18:20] fort does serve a purpose but it is not so that the school board chairman can ignore over 20 qualified candidates that are gathered by a consulting firm that cost 25 000 and instead add his friend with no background in education to the top of the stack and willfully um and avoid policies and procedures along the way thank you again for your time thank you mr eikenberg followed

[01:18:44] by uh melissa siddiqui good morning excuse me my name is tom eikenberg and i am a resident of spotsylvania county i am also a retired public educator with 37 years of service in public education 20 of these years were spent prior to my retirement in spotsylvania county where i was an elementary administrator i stand before you this morning as a very concerned spotsylvania county

[01:19:21] citizen and past employee of the spotsylvania county schools our school board majority has voted as you are aware and as you've been hearing four to three to provide the vboe with a letter from the spotsylvania county school board supporting the licensure of mr mark taylor for a superintendent's license mr taylor if granted this licensure by the vboe will probably then be voted on as our next superintendent in the spotsylvania county schools should this licensure be granted i request that this board vote against this licensure of mr taylor spotsylvania must do

[01:19:57] better we can do better although mr taylor may meet the qualifications under virginia code 8 vac 20-23-630 option 4 he is not the highly qualified superintendent needed to lead the spotsylvania county schools forward into the future mr taylor may be a fine lawyer or he may be a fine county administrator however he has no teaching experience mr taylor does not have curriculum and instructional knowledge mr taylor has never been a building administrator add to this no

[01:20:32] experience with guidance and counseling no special education experience no esol experience no school based budgeting experience no knowledge of reviewing testing data and understanding how to utilize data to advance the learning of our students it is beyond my understanding why the spotsylvania county school board majority feels that mr taylor is the best candidate for this position board chairman mr twig attempted to railroad mr taylor's licensure approval through the vboe last month with a confidential letter to the vboe when no vote for a letter to

[01:21:10] be sent to the vboe by the spotsylvania county school board in support of mr taylor's licensure was actually taken based on this alone licensure should not be granted to mr. Taylor mr. twig lied and falsified information since this time a vote has been taken by our Spotsylvania County School Board for

board members submitted that are supported this letter three did not this letter did not have the full support of our school board another reason why licensure should be denied there's also a conflict of interest with mr. twig and mr. Taylor they are

[01:21:49] friends and there's a personal and business relationship between the two we need a well-qualified superintendent not mr. Taylor who is the friend of the board chairman I'm almost finished thank you with no experience in the public education setting you would not put a pilot in a jet or a neurosurgeon in the operating room without the proper training education and background knowledge why would you grant licensure to an individual without the educational training or background to educate our children and manage the spotsylvania county school division please do what is right for the educational process and for the spotsylvania county schools since our board

[01:22:28] majority has lost all sense of management and what is best for the future of the school division please deny licensure to mr taylor our kids and our staff deserve so much better thank you thank you uh ms siddiqui followed by zara lakani melissa siddiqui uh zara lakani how about uh

[01:23:05] wendy little carlos moore good morning virginia department of education school board thank you for this opportunity my name is carlos moore i was born and raised in cleveland i reside in

[01:23:40] spotty county i taught ed kids ld kids learning disabled gifted kids psychotic kids schizophrenic people. I've been hospitalized in the psych unit. I've been an EMT and firefighter. You give me the bad kids. I got love for them. I hear facts today. I hear fiction today. I hear truth and I hear falsehoods. I don't hear the voice of the students. I retired after 36 years of service to children.

[01:24:14] That's what I've been gifted to do. I've been blessed that way. 36 years. I sat down for two years and I came back because someone asked me to come out and help at a middle school. My life was spent mainly at the high school. We're dealing with the situation in Spotsylvania County. It's a total embarrassment. We are across the news, around the world, and it's terrible. It's embarrassing. And I know it's embarrassing for you as a state elected official because it shouldn't

[01:24:45] be this way. Do our kids deserve better? I think they do. I spoke with some children and I asked them, I said, what would you expect the qualifications for a superintendent to be? These are children, 11, 12, 13, 14 years old, out of the mouth of babes. I would think that the superintendent would be qualified. They know what qualifications are. I would think that he should know the problems of the kids so they can fix it. I would think that they would know

[01:25:22] the problems of the teachers so they can relate to it. One young lady said, I hope he don't have any felony convictions, any charges, 14-year-old. I would hope that he would have an understanding of special ed, special needs kids because my brother is one and I want my brother to be taken care of. These are children. Our children deserve better. Now, I don't know Mark Taylor and I'm hearing both sides, communication, but I know what's been going on. You know what's been going

[01:25:55] on in our county. It's unacceptable. And I'm here today to speak on behalf of the children because they can't speak for themselves. A lot of times they feel that they're left out. I ask my students, I always have, what is your opinion?

[01:26:13] What is your opinion? And they're like, why are you asking me that? I said, because I value your opinion. And because we are the adults and we're supposed to be the leaders to stand forth and give them a role model, an example, which they can follow. You guys, hey, I'm loving how you run this meeting.

[01:26:30] Come to ours and bring a flag jacket. I'm not lying. I'll close, it's for the children, and I know your hands are tied for the most part, but if there's anyone that you can speak with, anything you can do, please do it, because the children are our future, and we're losing them. Thank you for your time and consideration. I have a petition.

[01:26:59] Thank you very much. Thank you. Erin Beardsey, followed by Moe Petway. Good morning. Good morning.

[01:27:19] Good morning, distinguished board members. Thank you for the opportunity to speak today. My name is Erin Beardsley, and I'm a parent in Spotsylvania County as well as a lacrosse coach at Massaponics High School. Recently, you tabled the approval of Mark Taylor's licensure to investigate the circumstances of the application submitted.

[01:27:36] I am here today that you ask and ask that you deny this application for licensure under administrative code 8VAC20-23-750. You're going to have that code probably memorized by the end of the day, I'd imagine.

[01:27:52] I'm asking for the following reasons. reason number one for denial under the state code is easily the most egregious of the code violations and in this case the most blatant misrepresent misrepresentation of material facts come down to one very significant aspect in allowing mr taylor's original submission it was filed in completely with a letter that was not represented by the entirety of the board and submitted solely by mr twig this submission and letter of recommendation were a shirk of power

[01:28:28] established by mr twig and he shirked proper procedure as well as showing a complete disregard for the state law and policy in fact it was only after you tabled the approval of the license that a vote finally took place if today you choose to allow this license to be approved you are setting a precedence for school boards throughout this state to ignore state laws and regulations you are telling our children that the politicians on this board are above the law and that they can ignore the rules please be the better example for our children and deny this

[01:29:01] application reason 10 for denial listed in the code good and just cause in the best interest of the public schools of the commonwealth of virginia i submit that the spotty school district is in disarray due to covid and the untimely departure of the previous superintendent the impact on students from covet is still being assessed and our district is in dire need of a recovery plan we need to move ahead to where educational instruction and success can thrive under the

[01:29:37] guidance of an experienced and skilled educator the past few days have clearly illustrated the major dysfunction of the current school board due to their parent inability to conduct meaningful business in an effective and reasonable manner you only need to review the video recordings of monday's meetings and prior meetings to understand the deep level of dysfunction at play the district is in dire need of an experienced and highly credentialed educator and leadership they are needed in order to conduct the day-to-day business as well as to plan and implement improvement that

[01:30:13] will bring the district back to baseline from covet all of this requires a leader who can overcome the barriers of the highly dysfunctional school board members in our school system's current state mark taylor is not the right fit and his hiring would not be in the best interest of the public schools of the commonwealth of virginia our con our county's children and educators have suffered long enough

without clear leadership and our school board is sadly mistaken about what type of leadership is needed i ask that you the board because it has taken so long for us to get a superintendent in place deny any other requests for extensions do what you are required to do

[01:30:53] when we are too long without a superintendent take the matter into your own hands and appoint someone who can lead with integrity and excellence with excellent credentials for our county to superintendent thank you so much for your time today thank you mo petway followed by timbre quick good morning board my name is mo petwell resident of spotsylvania county i have children has graduated and have grandchildren attending the school uh i come for you this morning to express my uh

[01:31:28] disappointment with the appointment of the submission of muster taylor as the school superintendent i believe that he is not qualified for the job i have three points and i know i'm gotta go quick anyway the first point is that and this i think is very very important it's from my understanding title four is designed for uh counties and localities that does not have a large quantity of of educators like phds to apply for the job it provides them an opportunity to hire someone so the school division does not uh hope is not held up and they can proceed so spotsman county does not they did not have that problem spotsman county had over 20 after

[01:32:05] 21 applicants, 10, I think, from my understanding, over 10 of them had a PhD. The code Title IV is designed, from my understanding, is that for localities does not have that quality of applicants applying so the school system does not stop.

[01:32:24] So that's, I believe, the Title IV, the spirit of Title IV, in other words. It's not designed for people to take and use just to circumvent the system. So Title IV, please keep in mind, I think, is that for you to do that. my second point my second point is it is disrespectful it's insulting for phds who have struggled for dissertations and theses and the struggle to achieve their degree and if you do this you're telling all the phds all the educators that all the work you put in i worked hard to achieve my thesis i had worked hard to struggle to get them approved a dissertation and now you are saying

[01:33:02] is that although you may struggle to do that i have a choice to hire someone else who has not put forth the effort to achieve the what you have achieved all right i'm trying to rush so excuse me i'm sorry but anyway but but it's important though i think that's important for educators to know that but general you guys are telling the educators that if you if if you go to school you work hard and struggle years and years and years then i may not select you because someone else come up that i like that does not that didn't go through what you went through in harm okay that's my last point please it's very very important i don't know whether this is what i'm doing i don't know whether you guys have an invest investigative body in a realm spot to be an account if it needs the

[01:33:42] board needs to be investigated i'm sure what it is so bad until one board member right the board members have to do a foyer pay over a thousand dollars to get information from the board members themselves because they don't communicate i'm telling you there's the member that gets four members right they do it's not shared with the other three members the one member of the minority had to pay a four years to get information from the next door next person sitting next to them because they won't share they need to be looked at as a and real quick just for the information

[01:34:19] in case you don't know uh real quick i'm sorry the the the the yesterday yesterday in spotsamania county the attorney for spottsamania school board resigned not only that you know you know they fired the superintendent without cause, they say it without cause. So anyway, the last thing, if you, if

you allow this to happen, then you are contributing, unintentionally maybe, to a chaotic dysfunction organization that is ruining Spotsapena County. Thank you.

[01:34:53] Followed by Brian Sherman. Hi, good morning. Thank you for your time and this opportunity. My name is Tamara Quick. I'm a mom, a concerned citizen, an attorney by education. I work in sales by occupation and I'm a special education advocate special education is my passion forgive me if my voice shakes this gets emotional five years ago I reached out to the school because my son was struggling to read I had begged pleaded cried for help for five years I was told my son was too smart

[01:35:32] to have a disability too sweet to have a disability and too cute to have a disability because of his beautiful blue eyes but i love the law i love rules i love regulations i love statutes i love policies because they are guiding light words such as may shall must give authority phrases such as such as gives us direction so we understand the legislative intent they turn the gray or murky into black and white i learned about the duties obligations of schools under the authority of the

[01:36:08] IDEA and child find and I fought to ensure my child received faith five years that was five years ago I heard recently from a Spotsylvania parent dealing with the same inaction I've heard from families of students where English is not their first language who are not given interpreters or procedural safeguards in a language they can understand they're being denied their rights and their rights of their students five years ago when I received my son's first IEP brought home in a manila envelope i opened it to find it was not my son's i immediately put it down and called

[01:36:44] the principal and said come get this i'm not touching it it was a violation of the idea ferpa and other privacy laws a neighbor told me the same thing happened to her last year and i was told recently of a shared drive within the spotsy school system with hundreds of students names diagnosis and iep information with no identity and access management controls five years ago no one on the staff had training to support my son's and his needs or provide the services in his iep now i hear there are not enough occupational therapists speech therapists or other service

[01:37:17] providers plus the idea requires special education teachers they highly qualified and they are being taught by people with provisional licenses long-term subs short-term subs or paras not highly qualified with the rest requisite training our case managers are overburdened there are missed services unqualified teachers and people who have not had the trainings that they need to provide the services required to provide faith compensatory services are being offered for some not for others being denied when they ask for when will this time be made up when

[01:37:56] students are already behind but i know the duties and obligations given to the schools under the authority of IDEA FERPA 504 and the requirements of things such as child find faith and of course the ability to issue complaints through OCR the state and due process which will be happening I have a lot more but I will just close by saying our school system needs leadership needs leadership that understands these rules and laws that can follow these rules and laws and that as an attorney will hold themselves will know or as a person will know an attorney certainly should know to

[01:38:33] hold themselves above any ethical issues words matter speeches matter spots albania students matter or teachers matter the 3500 students with disabilities need someone who understands education especially special education the duties the obligations and the risk if they are not followed you have duties obligations and you have the authority to stop mr taylor an unqualified person from becoming our superintendent and harming our students please do so thank you

[01:39:10] brian sherman followed by myra crouch good morning my name is uh well thank you for allowing me the opportunity to address the board this morning my name is brian sherman i'm a resident of spotsmania county and i've got a student that's a elementary age student i'm here to talk about obviously mark taylor i realized the information i wrote down was going to be much longer than three minutes so i've sent an email that i've asked to be forwarded to you guys that has kind of the extended version but i'd still like to present the abbreviated version here this morning

[01:39:47] the process the hiring process was mishandled it does not appear to have been done in good faith or in an ethical manner rather it was shady and full of nepotism the job posting included the following a successful candidate was to be a trusted public education leader who values ethics and integrity by practicing moral authority. Mr. Taylor has no education experience or no experience in public education. His children were homeschooled and he has advocated on his own personal Facebook page for parents taking their children out of America's schools. His Facebook page, as others

[01:40:22] have mentioned, has also included disparaging and racist posts of which I've attached in the email and screenshots that I've sent to you. It is well known that Mr. Twig sent a confidential email to Board of Education indicating that Mr. Taylor was their final choice for superintendent. The day prior to the email he indicated that deliberations are continuing and they did not make an official determination regarding the superintendent. It is no coincidence that that email or letter was sent prior to a public vote and just days before the Board of Education's meeting to review Mr. Taylor's

[01:40:57] application for licensure. He was trying to keep this out of the public's eye and probably other board members' eyes as well until it was too late and the licensure was approved. After this came to light, and this has been mentioned several times today, we've learned that Mr. Taylor and his wife have known Mr. Twigg for 15 to 18 years. Mr. Taylor and his wife are on the board of Mr. Twigg's non-profit organization, and Mr. Taylor's wife has twice over the years written letters to the freelance star supporting Mr. Twigg for public office. It's an obvious case of nepotism. The

[01:41:35] following expectations are outlined in the code of ethics for the Spotsylvania County School Board. I will avoid any conflict of interest or the appearance of impropriety. I will make no individual decisions or commitments that might compromise the board or administration. I will always strive to demonstrate appropriate behavior and conduct as a public Spotsylvania County School Board member. Those outlined code of ethics were not followed. Mr. Twig has failed to elaborate on the extent of his personal relationship with Mr. Taylor and since he has failed to provide an explanation and with evidence that a personal relationship exists, Mr. Twigg was asked to recuse himself from voting when they eventually took the public vote.

[01:42:15] And of course, he did not respond or reply to that request and he placed his vote. If the unethical manner in which the process has played out is not sufficient for the Board of Education to deny licensure from Mr. Taylor, then hopefully his own personal Facebook posts clearly demonstrate that he lacks the ethical and moral standards that is needed of a person tasked with heading up a public school system.

[01:42:39] Thank you. Thank you. Myra Crouch, followed by Clarence Collins. Good morning, President Decker, Vice President Mann, members of the board, and Superintendent Bello.

[01:43:05] My name is Dr. Myra Crouch. I'm a resident of Prince William County, and I am an educational psychologist and own my own education consulting company where I support students early childhood

professional development. I'm a former head start administrator and currently support several ready regions as a certified class infant, toddler, and pre-K observer in this current practice year of VQB5.

[01:43:36] I was compelled to come here today to share my professional opinion as it relates to items E and F, one that you have a final review and one that you are to be your first review. I was struck by the inconsistency in the language used in the definitions and characterizations of educators who provide early education care, early childhood education, care and education.

[01:44:03] For example, as I read the title of chapter 821, I, as a professional, could not understand what was meant by child day programs and family day systems. So I started to do my own research, you know, And back in 1997, the JLR Commission published a report on the state of Virginia's child care system.

[01:44:32] Child care, not child day. Day means a calendar day, if I'm not mistaken. So as educators and as practitioners, we don't really have a lot of time to read the licensure standards, the regulations when they come before your body.

[01:44:51] But we have to be concerned about compliance because children are in our care. So I was really concerned about the inconsistency in the language. One is called child care regulation. Another, child day and family day.

[01:45:08] When a parent applies for care, they're not applying for child day. They're applying for child care. Messaging on VDOE's website is inconsistent. You have childcare in one instance, and you have early childhood care and education in another instance.

[01:45:27] But as you look at, take your first review of what's being put before you as general procedures, the licensure in childcare is called Child Day and Family Day. I just had a real issue with that. And how with that report from JLAR, they didn't deviate from the terminology of childcare.

[01:45:49] You know, there was some instance of Family Day, But again, not that time to go through history to figure out when did it change? Why did the child daycare council change the language? And what does it really mean to us as consumers? So I ask, what has been the purpose of omitting care from the definitions and the general procedures?

[01:46:10] Most educators and practitioners may not take the time to understand that, but I could not sit by and say, that made sense to me as a practitioner. I recommend that as you review the general procedures that you seek for an understanding of child day, child care, family child care, because in most counties we are calling it care.

[01:46:36] And I hope that as you look at the standards or the procedures that VDOE subsequently changes and amends the administrative code. Thank you so much for your time and your consideration and have a great day. - Thank you.

[01:46:53] collins followed by zoe aquino good morning board members my name is clarence collins i am an educator in spotsylvania county i am also the president of the largest collection of educational professionals in the county i would like to share some items with you today regarding mr taylor's selection to be our new superintendent good morning virginia board of education members i stand before you this morning representing the spotsylvania education association which is

[01:47:27] the largest organization of education professionals in the Spotsylvania County Public School Division. While I'm not thrilled to be here during an instructional day, I am compelled to come forward to

present the superintendent licensing concerns that the body of educators that I represent have expressed. We are gravely concerned about the leadership vacuum that has continued to increase in our division since the firing of superintendent baker we all know that teaching is one of the most

[01:48:02] highly regulated professions in the commonwealth and we are concerned about our school board's decision to ultimately select the candidate that would seek to lead our division with no previous public education leadership experience in the midst of this leadership vacuum created by the the departure of our superintendent, our acting superintendent, our director of elementary education, our director of special education, our director of transportation, and our chief human resource officer all within the last year.

[01:48:41] Our students have a constitutional right to receive a high-quality public education, and educators deserve to be led by a skilled public education practitioner who understands the complexities associated with leading a division that serves just over 23,000 students.

[01:49:05] Mr. Taylor will be joining our division without the benefit of a robust leadership cabinet at a time when we are experiencing critical staffing shortages triggered by the very same mass exodus of senior division leadership since January this year. I ask that you consider the sheer gravity of your decision today because it will have an immediate impact on educators, families and our 23 000 plus students who are constitutionally guaranteed that right here for quality education in the commonwealth as this esteemed board is aware public education leadership

[01:49:44] is a complex endeavor that is relying upon stringent licensing requirements professional experience institutional knowledge and strong professional relationships that span the political and economic fabric of our commonwealth there is currently only one senior cabinet member remaining in spots of any county public school system you know i'll close it is frightening to fathom the pressure that even a deeply experienced public education practitioner will face when they

[01:50:20] take on the role of running this imperil school division that is not a fair and equitable situation to place any employee lacking pedagogical experience in i close with rome is burning as educational leaders this is your balcony moment you can't get down in the fray you have to stand above it and make the decision that's best for our students thank you you know followed by mr

[01:50:55] fetteman or dr fetteman excuse me hello good morning everyone uh good morning president gecker superintendent and other members of the board my name is zoe aquino and i'm the policy and communications team lead at Humke Center a community organization with a mission to organize Asian Americans in Virginia I have presented you today with a letter co-written by my organization and co-signed by nine other organizations in Virginia in support of the history and social sciences so else that were posted in June and recently updated while we were disappointed to learn that the board's first review of the draft has been postponed to November we are reassured by the timeline presented by Miss Kristania Brown and

[01:51:33] organized by her colleagues at the Department of Education our organizations and community members will rely on the board and the superintendent to diligently keep that timeline while advocates continue to inform and engage community members across our commonwealth about the sol revisions thank you for keeping this process moving forward and we appreciate the reassurance from the board that major content changes will not happen to the draft in the meantime i can confirm that hamke center will be submitting comments about increasing uh and improving asian american and pacific islander content

in our state standards and preparing community members who are eager to speak including asian american parents current

[01:52:12] students public school alumni and educators um excuse me who want this content taught in our state we look forward to participating in the pending community engagement sessions this fall and if you have additional questions or would like to speak with me after this meeting uh please see my email address on the back of the letter uh thank you so much to the board for your attention this morning and we look forward to continued engagement on this subject thank you so much Thank you. Dr. Fetterman and Margaret Gallagher. Good morning, everyone. My name is James Fetterman,

[01:52:49] Ph.D. I am a proud teacher from Acomat County currently serving as president of the 40,000 members of the Virginia Education Association, and I'm also here today standing in support of the Spotsylvania Education Association. But specifically this morning, I am here to speak on behalf of the VEA for its items B and C pertaining to lab schools grant funds and amending our state ESSA plan the vea has great concern around proceeding with the guidelines that will allow lab school fundings to flow to community college and private institutions of

[01:53:24] higher learning neither of which qualify for the funding according to the state budget language while we recognize the house republican leadership claimed that their intent was to allow the funding to flow to the community college and private institutions other lawmakers have stated that this was not the intent and an advisory opinion issued by the division of legislative services agrees that private institutions would not be eligible for the funding given the long precedent of virginia courts using a plan plain meaning interpretation for laws it seems highly plausible

[01:54:00] that the intent interpretations will not stand moving forward with distribution this funding could put this board in an unpleasant position of clawing back funding from non-qualifying institutions this situation will obviously not be good for anyone particularly students and we ask that this board extend the same prudence it gave to history standards when syntax and grammatical errors were found and delayed this legally dubious decision until guidelines are amended to follow legal code. We also ask that you consider revising the prioritization of schools that would like to

[01:54:38] start in less than a year. In general, best practice indicates that it takes one to three years to plan for and establish an alternative school structure, like charter. Given the lack of precedence of lab schools, it seems reasonable these schools would also take years to properly plan for and establish. We recommend altering the criteria to prioritize the highest quality applications it seems neither prudent nor advantageous for students to prioritize the funding of entities that simply promise to establish a new school the fastest on a separate

[01:55:13] note we are pleased to see the amendment in the essa plan for the ambitious five-year growth targets on state exams particularly for sub subgroups currently far behind should the board endorse this plan we hope to see recommendations for revising the standards of quality next year that match the scope of this ambition by making substantial new investments targeted to student groups that face the most barriers to learning thank you for your attention and do not hesitate to reach out to the virginia education association if you have any questions again my name is dr james j fetterman and i approve this message thank you

[01:55:53] margaret gallagher and followed by melissa brace margaret gallagher i'm a resident of spotsylvania county i've been teaching public high school for the past 27 years, all of them in Virginia. I

took a personal day to come down here and express my deep concern over the potential for Mark Taylor becoming the next superintendent of Spotsylvania County. Thank you to my long-term friend who's retired who is covering for me today. We have a deep sub-shortage, as you know. There are many legal reasons for this

[01:56:29] man not to be considered. Clearly, the correct avenue was not followed to have his application submitted i'm not a legal expert i'm a high school biology ib teacher and i won't purport to be but i have common sense and i'm here to just play to that for just a moment common sense should tell you he is not what our school system or any public school system needs the virgin administrative code allows the board to deny license for other good and just cause in the best interest of the public schools of the commonwealth of virginia mark taylor has zero education experience and he

[01:57:04] homeschooled his own children he has posted so many vile and racist things on social media it would take me far longer than my three minutes here to share them how can you possibly tell me as a parent in spotsavania county schools that this man is in the best interest of public schools how can you believe that he has our school's best interest at heart when he posts things like maybe we should have an after-school shooting club clearly mocking school shootings i laid on the floor of my classroom for 25 minutes during the school day a few weeks back in a lockdown

[01:57:42] it wasn't a drill we laid there in silence hoping and praying we didn't hear gunshots my kids were scared it was real my life and theirs is not a joke how can you possibly believe he is in the best interest of the public schools we as opposed mocking those on public assistance and another post saying quote a white cop showed an unarmed black woman nobody did anything oh wait i got the races mixed up the vdoe passed code of virginia 22.1 dash 298.7 rich requires that no

[01:58:17] later than the beginning of the 22 23 school year each school board employee including teachers leaders and other licensed staff is required to complete cultural competency training or instruction how on earth can you sit here and trust that this man would take this training seriously and follow the code after hearing just a few of these posts how can you sit here and tell me that a man that posts the single best thing americans can do is to take their children out of america's schools is in the best interest of the public schools of the commonwealth of virginia many of you on this board are current or former educators and many of you have children that

[01:58:57] attend or have attended virginia's public schools as a public school teacher i'm here to serve all my kids not just the ones that fit into some political party or belief set please do the right thing and delay this man his license please stop this and show our kids that their education matters to the board of education i'll be done in a moment to my son and my daughter who i know will watch this later who are products of public education one of them is still in public school and my kids who may be watching all of my kids i'm here and i'm fighting and i believe you and all kids deserve the very best of public educations and i can only hope that you

[01:59:34] as the virginia board of education believes the same and will deny mark taylor his license he is in no way fit for our children thank you melissa brace followed by sue sergeant good morning esteemed members of virginia board of education my name is melissa brace i am a resident of Spotsylvania County, a parent of two kids and a step-parent of another that have gone through

[02:00:07] Spotsylvania County schools. My two youngest ones are in high school right now. I'm also an educator, which was not my first career choice. I went into it as wanting to make a difference and wanting

to be a force for change, for helping our future move forward. I teach civics.

[02:00:30] Today is an opportunity for you to stand up for parents and the children of Spotsylvania by denying the superintendent who is so clearly unqualified and unethical as Mark Taylor. You have a huge responsibility as our State Department of Education. You set the curriculum that I teach and requirements for educating our children.

[02:00:51] You are responsible for ensuring that our children are given their constitutional right to a free and high-quality education. You set the example for all of us. mark taylor's application is a direct affront to this administration's goal of allowing parents to have a voice in education the parents of spotsylvania have clearly spoken the sheer volume of people sending you letters submitting letters to the editor showing up to meetings such as these show you that we as parents do have an opinion and in a belief that this candidate should not

[02:01:29] be our superintendent spotsylvania is a huge county with 23 000 plus students option four was not intended to be used as a tool for nepotism and cronyism to move a person into a position costing the taxpayers over 20 200 000 with even a golden parachute option we hired a recruiting firm and had 20 qualified candidates this candidate was put before you in a devious way to circumvent that process and the regulations that you set for application it's a little strange that the letter

[02:02:06] that was so confidential was sent to mr russell who worked for you at the time and then mr russell was given a brand new position with that wasn't in our budget making over a hundred thousand dollars for our county right after receiving and forwarding that letter this all just smells wrong please use Use your authority under the code to deny a license to stand up for our kids.

[02:02:31] I may be an educator, but I'm a parent first. My child has a 504 and is autistic, and I am very fearful that we will not have someone in the central office who has the educational and leadership background to make sure that the federal laws are followed for special education.

[02:02:53] You can see on your list of candidates that there are many individuals who have worked for decades for the privilege of being a superintendent. May I? - Yes, please. - Okay, thank you. I'll be done in a quick second. I wanted to point out that Deborah Frazier, who's on your list, she is my principal.

[02:03:13] And while she's not a candidate and did not apply for our superintendent, she's a perfect example of what a qualified candidate would look like. Over 36 years of education, two master's degrees, a PhD, she's volunteered her time on committees that this board has put together um and is truly committed to her kids i mean she has a superintendent license she's up for renewal but she's still our principal because she's with our children um i ask you to use your authority to truly stand up

[02:03:44] for our kids thank you thank you uh sue sergeant followed by anthony lavara la faro good morning my name is sue sergeant i taught in spotsylvania county public schools as a school speech language pathologist for 31 years total of 40 years of teaching in virginia and retired in march of

[02:04:20] this year in consideration of this experience in public schools of virginia i state that mark taylor's application for school superintendent must be denied you've heard the code citations regarding the recommendation letter written by Mr. Twig the letter was did not have the required school board approval and this blatant disregard of an option for requirement serves as red flag evidence that your board is being manipulated as a former county attorney mr. Taylor would know the law and the code of Virginia in a 7 News interview with Heather graph on Tuesday there is

[02:04:57] still no answer on his application submit date to Spotsdam County Public Schools he can't recall it the recruiting company does not respond to emails if there's a timestamp Sands Anderson the Richmond law firm that represents the school board abruptly resigned effective immediately on Monday night in which it was revealed that twig forged a contract for the interim superintendent this evidence has been turned over to the state police and attorney general for investigation you cannot trust the poor majority on the school board in reference to Taylor's application it's chaos in SCPS and Mark Taylor is complicit in the plan of what's happening deny his application and

[02:05:36] one of the reasons number seven conduct with direct and dental direct detrimental effect on the health welfare discipline or morale of a student or minor mr. Taylor has been groomed by clickbait on Facebook to post a racist bigoted anti-muslim anti-woman mean every day when the new seven reporter offers him visual evidence of his post he says that's not fruitful for the day he makes light of children with guns in the schools and offers a shoot up our school club he posts a meme I almost bought a coke and then I remembered that

[02:06:12] I was white the the parents who value inclusion and diversity in our melting pot country and county will not accept that this is appropriate behavior and and you should not either. Deny Taylor's application.

[02:06:30] Number 10 in the reasons about the best interest of the public schools of the Commonwealth of Virginia. Are they being served? It is not in the best interest of our Spotsylvania County community and the public schools of Virginia. Taylor is unfit. It is not in the best interest of Governor Glenn Youngkin to have this botched red herring on his agenda.

[02:06:54] The majority of parents in Spotsy see through the deceit that Twigg and Taylor represent. Taylor's appointment will divide us as a community and as a state, and that is the intent. Taylor's application must be denied. If you're Muslim, if you're brown-skinned, if you're a woman, how could you believe that this man would treat you and your child fairly and justly, just one minute, or a half minute.

[02:07:19] He does not have the temperament to lead. He did himself in as a corrupted individual who has the hubris to think that he should be considered for this superintendent job. And you know how the Greek gods feel about hubris.

[02:07:36] Thank you. Anthony LaFaro, followed by Michelle Williams. My name is Anthony LaFaro, and up until about three weeks ago, I was a resident of Spotsylvania for almost 13 years.

[02:07:56] Like two other families that had educators in their home in my neighborhood alone, we left the county. it wasn't just a teacher looking for a job outside of the county because of what was going on we moved because it's one thing when it affects somebody's job but when it goes so far that you realize it's going to affect your children and even when you have an educator in your household i'm not an educator by the way but even when you have an educator in your household and you can't shield them from it you go through the expense you do what you have to do to make sure your kids get the chance you have in life at the most recent spots in county school board meeting we found out

[02:08:33] when they were discussing the CIP Capital Improvement Project plan to put forth to the Board of Supervisors, which hasn't happened yet, that the reason it hasn't happened yet is because Mr. Twig will not agree to have a meeting about it, even though the other board members have requested it. Minimum of two to request the meeting.

[02:08:51] He said, and I quote, give me my superintendent and I'll give you your meeting. This is not okay. The code of Virginia Administrative Code gives you 10 reasons to deny a superintendent's license.

[02:09:10] The first one, attempting to obtain a license by fraudulent means or through misrepresentation of material facts has already been covered repeatedly by others here today. Falsification of records and documents, I would say you can make a good case for that.

[02:09:26] The fact that the July 9th emails contain a former employee of this board that is now an employee of Spotsylvania County Public Schools is very concerning to me. Number seven, conduct with direct and detrimental effect of the health, welfare, discipline, and morale of a student or minor.

[02:09:43] It has been covered. All his Facebook posts, I'll add to those. He dismissed the January 6th events as nothing more than a guided tour, but then in a subsequent post said the real traitors and insurrectionists are those working within public education. I'm supposed to trust that man with my children's education? No. And he claimed in the WJLA interview, after acknowledging his account had pictures that some of those posts, not necessarily these ones, but the other ones were his, that maybe

[02:10:18] those other posts after acknowledging that they were inappropriate he maybe implied he was being hacked except that not only was he lying he's a bad liar even if he was hacked there is no way to retroactively add post obscene posts at that three years into the past that's as far back as just the obscene post okay number 10 other good and just cause and the best interest of schools of public schools and the commonwealth of virginia i think a lot of facts have been covered about how much better qualified candidates there were the cronyism i'll add to that there were inappropriate

[02:10:57] emails from mark taylor as county administrator to kurt twig advising him on how to acquire property for his own purposes uh for his non-profit through the economic development plan and not through the appropriate processes found that out through foyer requests thank you for your time and your great service to the commonwealth thank you michelle williams followed by jamie ashton good morning good morning the following documents that can be presented to you after today's meeting um miss ballo you have an electronic copy that was already submitted to you of what i'm

[02:11:37] about to share um about four years ago patricia haymes used a sarcastic statement in referencing the need for my son who was now 25 years old and she stated what do you want me to do wave a magic wand. Well, as I say here today, I see all your magic wands that need to be utilized and accepted to protect these children. Number two, there was a news segment where I believe it was Ms. Ballot

[02:12:10] who stated that you didn't pay attention to the children. These individuals are here are for no one other than the children. Let's go ahead and level the field. School divisions and the video E, we do not work for you you work for us let's go ahead and get that understanding in addition the document that you see i was told by um bushaw middle school miss carwell

[02:12:50] to write an entire iep for my son and in this iep you will see the legal terms will and shall you will also see that on the pages that i gave consent to are signed and need to be implemented immediately the last time i stood before you my son was in elementary school fifth grade we were on the fourth iep development meeting my son is sitting in middle school with benchmarks and

[02:13:24] measurable goals for a second and third grader the ones i have listed will have him on the level of that of a sixth grader i've listed on the second page participants involved and as you will see Patrick

Andriano, O'Berry Lockerman, Nicole Shook, Jason Ballum, Lerana Owens. They're all from Stans Anderson Law Firm because they participate directly in the development of a

[02:13:53] child IEP. According to Pearl Smith, instructional specialist, central office, our attorneys tell us what to do. I greatly need an understanding here of why it has continued to be accepted for the school divisions to be the prostitutes for these law firms.

[02:14:25] It is sickening that you have students graduating high school with second and third grade reading levels. How can you not pay attention when every year, every three months, every six months, it comes out that our children have failed.

[02:14:41] COVID exposed everything. - Can I get a show of hands of parents who was happy the schools were shut down?

[02:14:59] - Y'all gotta get it together up here and do for who you work for. which is these parents in this room, myself and these students, and stop sitting mum to what happens. I anticipate an email and a phone call to follow up as it relates to this document.

[02:15:20] 'Cause as of today, I have not received a phone call or email to set up a meeting to get my son's IEP develop appropriately. - Jamie Ashton, and I think after that, the board is gonna take a quick break.

[02:15:43] - Yes, can you pass this out? Sorry.

[02:16:18] - Good evening, President, Vice President, superintendent and fellow board members. I'm a parent of children in Spotswania County Schools. Like many others, I went to the school board meeting the other day to speak, and we were told we couldn't speak about Mr. Taylor to the point that the chair asked law enforcement to escort people out if they did so. So I'd like to present what I wanted to ask then. The beginning of the folder, you'll see two emails, dated 2016, where Mr. Taylor was offering property when he was the

[02:16:53] county administrator to Mr. Twig for his then nonprofit that Mr. Taylor was on the board of. I also printed out numerous newspaper articles that have been printed over the past few days from our local paper. One titled 21 Applications for Superintendent. One is an editorial. Taylor and twig would be a bad combo for spot see students the video you should say no and then there's another one that mentions the july 9th letter being sent to the school board or to you

[02:17:26] all from mr russell who was then an employee of the video he was then given a job as a pr person the job was posted and created for 69 000 he was then hired for 102 000 the next day yesterday the news did a story about mr taylor and his social media and these are questions i had this is too cute i share it to make a point in today's world for a variety of hidden reasons relating to money resources and politics a photo like this could be dangerous to the welfare of children some well-meaning educators and paraeducator professionals would see signs of need for

[02:18:06] testing evaluation and maybe an iep and treatment plan in this photo my children have ieps you also have one march 3rd 2021 and what about the sexist company name mr has bro or has sibling with a picture of mr potato head um there's a picture of georgetown kneeling with his writing a coincidence no doubt how many aliens are living at fort bliss um then there's this one talking about reparations

[02:18:42] in a picture of a monkey um talking about so for those confused about january 6 this is inciting a riot. It goes on and on. You know, I have concerns as a mother to black children. There's a reference to,

here is an example of what is needed these days. In 1942, Norway was the second year of the Nazi occupation with the puppet prime master in place. New orders arrived. All teachers were to pledge loyalty to the Nazis and join Nazi National Teachers Union and indoctrinate their

[02:19:17] students accordingly. Parents protested by the thousands, but teachers did, it goes on to say they were killed I almost got a coke today but I remembered I was white thank you okay we have a number of people left however the board's been sitting here for close to two hours and so we're gonna take a 10 minute break and we'll

[02:19:39] be back you know right at 11:00 Emily that's right I can do this

[02:31:06] They told me it was purely ceremonial. I actually did have one of our vice chairs, not Tammy, but Diane Atkinson, who did it once. No, no, she grabbed it and fanged it.

[02:31:24] Oh, yeah, that's fine. All right. Welcome back. We will continue on with public comment. Dana McFerrin, followed by Jennifer Peterson.

[02:31:42] Excuse me, just one minute, Emily. My list had a note of who. Good morning now.

[02:31:58] Yes. Good morning. My name is Dana McFerrin, and I'm a parent of two students in the Scotsylvania school system I'm here today to speak out against mark Taylor receiving licensure I'm sure you've seen the news and I know many parents and educators have reached out to you to say why mr Taylor should not be our next superintendent There are many valid reasons why he should not be our next superintendent Including the fact that he does not meet the qualifications that our own current school board set forth for a candidate in their own job description But still they submitted that candidate to you for licensure I would like to speak on how they're requesting this licensure.

[02:32:30] They're asking under option four. Option four should only be used in time of crisis or to address a specific problem that requires a specific skill set. Spotsylvania County spent $25,000 on a national search and received 21 applications of qualified candidates in interview five, yet our board is submitting a candidate under option four.

[02:32:50] Taylor's application was submitted to the firm at the last minute or late, and the search committee was told by Mr. Twig to submit Mark Taylor's name, even though it was not one of the five recommended candidates. Based on what I could research, option four has only been used to find a superintendent for Fairfax City Schools as recently as this past June, in which the candidate worked in the administration and facility management, and he came up through the ranks after being employed for several years in Fairfax City. He did not have the education background, but that is not necessarily needed in Fairfax City because the education piece is controlled by Fairfax County

[02:33:26] Schools, not the city, a unique situation in our state. Thus, that particular candidate had the correct background needed for the position and therefore qualifies under option four. As a board, you do have the authority to weigh in on an option four candidate. Option four should be an exception, not the rule. Spotsylvania had other well-qualified candidates that the majority of the board Did not look at because of backhanded dealings and nepotism. I beg you to not give licensure to mark taylor He does not have the qualifications or experience to be our next superintendent Nor does he the experience of central office to lean on because most of them have left due to our current school board

[02:34:04] Our kids have suffered enough under our current school board We cannot continue to show our children that bullying breaking the laws and lack of respect is the way for our students to succeed in life Thank you for your time all right Jennifer Peterson followed by Ann Titus good morning Jennifer Peterson Spotsylvania County I'm here to speak in support of mr. Taylor for certification of superintendent for Spotsylvania school district when any superintendent is hired that person does not have the necessary experience in each area that

[02:34:42] they oversee the superintendent cannot play every musical instrument and sport fluently speak all languages offered experience in elementary middle and high schools and all the subjects taught from special education to dual enrollment in addition to the landscaping maintenance food services bus driving and business operations that person is put into that role because they have an education level and hopefully a level of leadership to accomplish being successful in areas he or she oversees similarly mr taylor as a county supervisor or county administrator for two counties has experience in overseeing all the various areas that he also does not have the expertise in mr taylor has

[02:35:19] experience as an effective and successful leader to oversee areas he has not personally worked additionally he has extensive budget experience and overseeing large budgets with multiple moving parts what this board is seeing here is political sour grapes being spun by a few people these people who have not met mr taylor to my knowledge but instead trolled his social media took posts out of contacts and spun a narrative to suit what they wanted it to say many in this room who spoke against mr taylor are begging you to go against the will of the majority of spotsylvania residents who voted for a change after seeing our children being put last with school closures Masked and most recently reversing a task to conduct a library audit to ensure school libraries are compliant with virginia law

[02:35:59] The politics do not end in spotsylvania One of the speakers here today runs a facebook page and one of their commenters was rather disparaging against this board Here's what it says quote the five young can employees on the VBOE the board The board is a group that makes the decision to approve defer or deny taylor's application they are into privatizing public education just read their bios and you'll see their affiliations private equity you have to convince at least one of them to switch to deny their vote the foreign and minority who are mcauliffe and northam appointees are strong public school supporters

[02:36:36] just say this in your letter if you don't have time to compose one to get to richmond by b by vdoe's next meeting on september 15th end quote these are also part of the same supporters who have personally harassed me for the last 10 months and doxed me with one of their groups saying i need to be stopped in one comment and another one saying it's too bad i'm still alive all over not agreeing children should have access to sexually explicit books in school libraries i do have the documentation to prove this this group is begging you to overturn the basic foundation of our country a democrat republic spit in the face of the majority of the voters who spoke loudly with the last election and do their will the tactics they use have absolutely

[02:37:15] no bottom and certainly no respect for those they view as political or ideological opposition unfortunately you are witnessing a rather large adult temper tantrum thank you uh and tatus

[02:37:31] followed by nicole cole my name is ann tatus i'm not from spotsylvania i'm from chesterfield county and i'm here to say that we have had enough overstepping of local control from the virginia

[02:38:07] and especially from fed ed and if you want to open this box of worms and intervene on what a elected school board who hires a superintendent does then you're also going to open up the box of worms

on scott ziggler merv doherty who we have repeatedly in chesterfield county brought to your attention and mr gecker you have repeated i think three or four times that you would look into this um and we have heard nothing from you thomas taylor who went from chesterfield to stafford i have a foia between him and sonia smith at the vea calling parents racists and bigots and to what degree the teachers at the VEA would agree to go back to public instruction.

[02:38:47] So I don't think that this is a box of worms that you want to open, especially moving into the future and with current standing superintendents. And as a former, I'm going to let, since she's not here, I'm going to let Secretary Gadara tell you herself.

[02:39:04] It needs to be the best place to learn. So everything that we do in the next four years in the Yankin administration will be guided by our north star to prepare every single learner for success in life in our economy our democracy and in our communities everything everything we do in education will be shaped by this goal and how will we know we'll be successful in the long term we have three benchmarks we're going to use one graduates of virginia education institutions will be hired into family wage supporting jobs and they'll be actively engaged and productively engaged in civic life two companies will be

[02:39:41] attracted to remain in and grow in the commonwealth due to the quality of the talent pool and three the virginia economy will grow i'm sorry but when i this is i traveled to state electing governor youngkin this is my daughter she was used in multiple slideshows signing his bus in clarksville virginia because i traveled the seven rural districts this is who you're failing she is not human capital for the virginia labor pool and this definition of what um excellence

[02:40:15] in education is to recover the Virginia economy that's not a child's job in education so the what we have done here is made our children nothing but cogs in a machine and 21st century workforce driven education is nothing but indentured servitude and the data being collected it amazes me that we have the president and the founder of the data quality campaign and we have parents all over this state who don't know that data is being collected on their children copious amounts of data. They have no idea what the state longitudinal database system is or how much data is being

[02:40:51] dispersed to other states. We have parents who are lied to and told they cannot opt their child out using the Protection of People Rights Amendment, that COPPA doesn't exist. I just testified for the FTC on COPPA. Why do we have, and we want to mention a Secretary of Education with no education background, only data collection in education running the state, but a state who lies to, and that's the part that you won't intervene on. And I won't even, I don't even have time to get

[02:41:27] into your epic failure for decades for the special education children who obviously don't matter because why? You don't deem them appropriate for the Virginia labor pool, for the recovery of the economy is that why for decades we have continued to fail the special education children do they not matter because they don't boost the economy and recover the economy of virginia is that where we

[02:41:51] really are that our children are nothing but human capital good morning hello i'm nicole cole speaking

[02:42:32] as a parent taxpayer and resident of spotsylvania county greetings again members of the board of education my passion for providing the best possible education for students of Spotsylvania County has brought me back again I appeal to your passion for providing the best education for public school children

in Virginia and for some ensuring parents choices for their students is also a consideration as a board member you've accepted accountability for decisions that are ethical lawful and in the best interest of the children of this Commonwealth I

[02:43:06] I understand the Board of Education is responsible to certify superintendent candidates whose complete application meets the qualifications required under the option to which they are applying. However, that is not your only requirement. For all candidates, you must also verify there is no reason to deny their application.

[02:43:26] It's like being an apple picker. They have the responsibility of both picking apples and discarding rotten apples. Your list of names are all the apples that came in. there is one apple that is fruit of a poison tree that must be discarded. Mr. Taylor doesn't meet the third qualification, a letter of recommendation, because he submitted a fraudulent application the first time. Fruit of the poison tree. I'm providing you with an article from the Freelance Star where through a FOIA request during employment with the VDOE, John Russell helped facilitate Spotsy

[02:44:02] School Board Chair Kurt Twigg and Mark Taylor in providing an application inclusive of a a fraudulent letter of recommendation. The relationship between Russell, Twig, and Taylor, while Mr. Russell was an employee of the VDOE, begs the question of what VDOE processes were circumvented or expedited to get Mr. Taylor on the August list.

[02:44:23] 8VAC-2023-750, denial. That administrative code section A states, a license may be denied for the following reasons. One, attempting to obtain a license by fraudulent means through misrepresentation of material facts and to falsification of records or documents.

[02:44:42] In an attempt to expedite his certification, Twig provided Taylor a fraudulent letter within days of his second interview and within hours after the July 8th board meeting where the board held no votes on any candidate or action related to a candidate.

[02:44:57] Trust me, all eyes were on the board's decision and there was none. Knowing the board had not voted to provide a recommendation, Taylor falsified his application by submitting the fraudulent letter. There are more reasons for Taylor to know the letter was fraudulent.

[02:45:13] He into a close 17 year relationship and from his experience as a county administrator who has worked with local governing bodies for a number of years and as a county attorney, all suggest Taylor would know a public vote would need to be held, which was not held.

[02:45:28] Number 10, other good and just cause in the best interest of the public schools of the Commonwealth of Virginia. Mark Taylor is not a good and just superintendent candidate, nor would him being given a license be in the best interest of public schools of the Commonwealth. There is proof beyond having homeschooled his children of Taylor not supporting public schools.

[02:45:49] Others have provided screenshots from as far back as June 2021 of disdain for public schools. Post saying Americans should take their children out of America's schools. Bottom line, the code gives you reasons for denial to ensure you have a just way of discarding rotten apples.

[02:46:09] Deny Mr. Taylor's application for not just one, but three out of the 10 reasons. Deny Mr. Taylor's application so you can uphold the best interests of students and the choice of parents and protect the

school divisions and our public institutions from corrupt and unfit leaders who do not serve the best interests of the public schools in the Commonwealth.

[02:46:31] Thank you for your time.

[02:46:42] - Faith Jarvis followed by Wanda Stroh. - Distinguished members of the Board of Education, my name is Faith Jarvis and I am a resident of Spotsylvania County. My beautiful children graduated from Riverbend High School and my niece is a junior there currently. As a local business owner, I volunteer my time and money to Spotsylvania schools.

[02:47:00] I'm here to request Mark Taylor's application for licensure for superintendent be denied. The motives of the majority four of the Spotsylvania School Board must be carefully scrutinized, its actions and inactions, its failure to follow procedure and law.

[02:47:16] And most troubling, the track record of appointing or nominating friends and colleagues of Mr. Twig's to positions for which their qualifications have not been demonstrated, shows an utter lack of regard for the citizens this board was sworn to serve. Even if Mr. Taylor were a highly experienced educator, his professional and personal relationship with Mr. Twig is problematic.

[02:47:37] To share a quote used by the Secretary of Education recently, Free inquiry and reason are the natural enemies of error. It would be an error to license Mr. Taylor without a full and transparent inquiry into the circumstances of his appointment. Here are just a handful of the troubling facts which have come to light regarding Mr. Taylor's application for licensure.

[02:47:55] On or before July 9th, John Russell, a former employee of this board and member of, employee of this board at the time, fraudulently assisted Kirk Schwigg and Mark Taylor by getting Mr. Taylor's suspect application on the list of candidates for licensure in August. This application was fraudulent because, as you are all aware, there was no vote.

[02:48:15] John Russell was not an employee of Spotsylvania County at the time. He undertook these actions. Shortly thereafter, Kirk Twig created a position that did not exist in Spotsylvania for a PR person for the board. Mr. Twig hired Mr. Russell. Though the position was advertised for a salary of $69,000, Mr. Russell was given a contract for $102,000.

[02:48:35] The timeline of the events is extremely troubling that a former employee of the Board of Education puts an inappropriate licensure application up for consideration of a nominee with a personal relationship with Mr. Twigg. After this application is pushed through, the Board of Education employee is hired for a position that did not exist at a salary of nearly a 60% markup from the advertised rate. Given Mr. Twigg's demonstrated tit for tat in providing paid positions for his friends and allies, this hiring is hardly a coincidence. As for the proposed superintendent, Mark Taylor's career, he has been a county attorney and county administrator for at least two different counties.

[02:49:14] Given Mr. Taylor's legal experience within governmental organizations, he must have known, or at the very least should have known, that elected boards in Virginia, such as the Spotsylvania County School Board, must make their decisions by voting in public as an entire board.

[02:49:29] This did not happen. This is not a question of lack of knowledge or ignorance of law or procedure. Mr. Taylor knew on July 9th that Mr. Twig and Mr. Russell intended to submit his name for licensure despite the objection of the three other members of the school board. Mr. Taylor proceeded to

go along with this plan willfully and knowingly, participating in a fraud against the Board of Education. There are at least three people that evidence indicated perpetuated a fraud against board kirk twig john russell and mark taylor this alone should give the board pause in granting the license you know the the code you know the law and i'm going to finish this out by saying this

[02:50:07] this board did the right thing when it decided to halt consideration of mark taylor's license application and further investigate the suspicious activities taking place in spots spainy county public schools while mr taylor may meet the bare minimum qualifications spots he is in crisis and needs a seasoned and experienced superintendent like any of the other 21 qualified candidates who interviewed for the position one of the other applicants who doesn't have such an intertwined personal and professional relationship with mr twig the problems in spots he related to a severe overcrowding problem with a rapidly expanding population teacher retention and hiring issues among other serious issues require a superintendent who is committed to putting in years of hard work

[02:50:44] to bring spotsy to the level of excellence our students deserve mr taylor cannot commit to put in this time and hard work he is close to retirement and has never shown any interest in public education to grant this license would be gambling with the education of 24 000 plus students an amazing elementary administrator that i respect so much told me always ask if this is best for the children if it's not don't do it this applicant is not best for our children for those reasons i respect and request and i beg you please deny mark taylor's application for superintendent

[02:51:13] licensure thank you wanda stro followed by melissa floyd good morning members of the board my name is ronda stro and i'm a parent um in spotsylvania county public schools i have written a speech and i believe everybody have presented the reasons why not to hire or grant the licensure

[02:51:51] to mr taylor at the last board meeting um that you guys had last month i was shocked and delighted all at once and when mr mark taylor's name came up i was shocked because apparently somebody leaked his name out from the procedures of hiring him to just slander him and call him names i was

[02:52:24] delighted because i remember after 20 years being in spotsylvania county that my representative in the school board listen to what i have put on the survey that the recruiting firm have asked what do you want to see in a superintendent a little bit of background history the 20 years that i have been in spotsylvania county i have put eight children through the schools i have seen multiple

[02:52:58] superintendents come and go but i have also seen a decay on scores in our schools and i have seen a broke trust has been broken particularly with my child when she was assaulted at the school and the superintendent that was leading that school and the principal covered up this assault so when the survey was presented to me i asked that i wanted someone that was an outside of the box thinker i asked for someone that was going to bring our schools to a better

[02:53:36] place not only educationally but administratively so when i heard mark taylor's name i was delighted because as a county attorney and as a county administrator he led by bringing truth and transparency within our spotsylvania county he did the same thing in green county and he has continue to do this so i was delighted and i want to thank my representatives on the school board

[02:54:15] that listened to this parent when i filled out the survey and i asked who i wanted as a superintendent i feel that mark taylor and just like ted schubel said um a few years ago in an interview that

he did with him nobody loves potsylvania county more than mr taylor does so i would really appreciate it if at this time you consider granting Mr. Taylor because Spotsylvania

[02:54:50] County schools do need his caliber of transparency in the position that he's about to embark on. Thank you. Melissa Floyd followed by Mark Taylor. Good morning members of the board. Thank you for your time and your service to the commonwealth. My name is Melissa Floyd. I am a resident and a a parent in spotsylvania county i am also here to ask you not to grant mark taylor a license to serve

[02:55:27] as soup as a superintendent in virginia mr taylor is not qualified for the position even under option four he disqualified himself by fraudulently submitting his packet without the necessary school board approval and public vote as a lawyer we've been told over and over again he knows his job he should have researched the process and followed it lawfully additionally mr taylor's conduct on social media makes it clear he cannot lead a school division in good faith. He has shared opinions attacking nearly every protected group in this country. I'm not going to go back

[02:56:03] over them because you have them in front of you from other speakers. He's shown prejudices against the poor, other races, LGBTQIA plus people, women, undocumented persons, and very notably public school teachers. While it's certainly Mr. Taylor's right to believe as he pleases, it's clear he cannot be tasked with providing an equitable education to the large variety of students we have in Spotsylvania County. In addition, it calls his character into question. We ask students to sign anti-bullying pledges. We have a code of conduct governing in-person and virtual actions.

[02:56:41] We cannot hire a leader that violates everything we expect of our students. How should I explain to my daughters that the head of the school division thinks school shootings are a joke, that laughing at the expense of others is something to be promoted. Lastly, while Mr. Taylor may fulfill some of the requirements of Option 4, I have to assume there's still board discretion involved in approval. The Code of Virginia speaks to the reasons an application may be denied. One of those reasons is other good and just cause in the best interests of the public schools of the Commonwealth of Virginia. I think we might all hear that in our dreams tonight. It's in the best

[02:57:19] interest of our schools to hire leaders that believe in providing an equitable public education for all students, regardless of their race, gender, sexual orientation, economic status, or documentation, as is the law. Otherwise, we're both failing our students and opening ourselves up to litigation. Reasonable people can disagree on who is the best person for the job of superintendent, but the candidate must meet a base level of both decency and a desire to support public school students of Virginia. At this time, Spotsylvania County has been without a

[02:57:53] superintendent for nine months. Every week, we lose more talent in our central office. We need a superintendent that is both ready and willing to help shore up the school division, as well as to do the work to bring the community together. You can see from our speakers here today, there are a lot of issues. There's a lot of division. We need someone ready to jump in and mend that. That's clearly not Mr. Taylor. Some decisions are made because they're lawful, and some are made because they are right. Denying licensure in this case is both of those. Our school board majority has

[02:58:28] already set a special meeting, emergency meeting for tonight, assuming that you guys are going to grant the licensure so they can install him, hire him as superintendent. We are hoping that actually doesn't happen. I thank you for your listening and your consideration in this case. Have a good day.

[02:58:48] Mark Taylor, followed by James Manship. Mr. Manship, followed by Rose Davis.

[02:59:12] I'm James Manship, or the state of George Washington, currently in Spotsylvania County, formerly of Mount Vernon. From the life of George Washington, there may be something that can be applied to this issue of Mr. Taylor.

[02:59:32] A Harvard professor of history, Albert Bushnell Hart, said that George Washington was the best educated of the Founding Fathers. better than Thomas Jefferson and John Marshall of Waidman Merritt, better than James Madison and Aaron Burr of Princeton, and better than John Adams and Benjamin Lincoln of Harvard.

[02:59:53] Why would that be? Because of reading and listening to people, he had the access to nine of the wisest men in the British Empire who came to see Lord Fairfax. And Lord Fairfax had a community college name for him that's now being removed. Another issue. Also, George Washington was chosen as the commanding general of the army and he had been retired for 15 years as a colonel of the Virginia militia and yet it was his leadership ability that made it so we won the Revolutionary War. Let me suggest that Mr. Taylor's leadership ability is what's needed here

[03:00:32] in having a better school system in Spotsylvania County. He doesn't need to be an educator but he may be a great educator because of his own self-learning, as Washington was. Now, I understand at the last meeting there was some discussion about taking Washington out of the education system. And I merely suggest that if you, okay, misinformation, okay. George Washington as a boy wrote the thank you notes, which is something that you want to, dear Dickie, thank you for

[03:01:09] the picture book your father got me. This was right after his father died. That's an example of courtesy and civility. That's something that would be great to teach our students, okay? I've done a book called A Civil Heir for America about the rules of civility that George Washington wrote, okay? He then was self-taught. He didn't go to college, but he learned, and you can learn in the classroom or you can learn out of the classroom. The point is to focus on teaching our children to learn. And there's so much more that as adults, we should be reading the farewell address. It was

[03:01:49] called an address to the friends and citizens of America, not the farewell address. But I suggest to you the farewell address is not goodbye, but farewell, go forth well into the future America. Some of the things that we are facing in America today are described in the farewell address, and yet it's no longer taught in the schools, and it should be, because it will allow us to have a better school. Finally, I just say that we need to focus on giving our children great

[03:02:27] examples of what we are to become when we finish our education. Thank you, God bless you, and may America bless God. One final thing I forgot, Washington Warren of Innovations, I ask you to think of hand count of paper ballots equals liberty. If we don't restore that, we're going to lose our republic. God bless you. Thank you. Rose Davis, followed by James Jatras.

[03:02:59] Good morning. I'm Rose Davis. I'm a retired Spotsie County teacher. I taught second and third grade for 19 years in Spotsman County. Mark Taylor is an ethical, principled man of integrity. He's an acquaintance I met about 30 years ago. The people who spoke negatively about him evidently do not know him. The so-called facts presented today are fabricated and twisted.

[03:03:31] Mark Taylor does not have a prejudiced bone in his body. They keep talking nepotism and cronyism. Well, Mrs. Twig has a nonprofit called Emerging Stars, and she works with special needs autistic

adults. Mark Taylor was on her board. He does have experience in multiple facets of education, being a board member, homeschooling his own children. He would have educational experience,

[03:04:05] curriculum, methodology. There are lots of experience that are learned as one lives their life. The conservative members of our school board were elected because they represent the majority of spots County residents who are tired of business as usual in Spotsylvania County schools even though the minority board member evidently thinks they are still in charge Spotsy schools corruption needs to be cleaned up so finances actually go to teach the children you cannot read the financial

[03:04:43] records of Spotsylvania County up to this point you a forensic auditor said there's no way I know where any of the money in spots of in County goes to we We need our school system cleaned up. It is time for change in Spotsylvania County, and we need someone who would be able to do it and get the job done.

[03:05:06] And we are losing, we have a shortage of professional educators throughout Virginia now. As one of the mothers here today presented, her concerns weren't taken care of as of five years ago. We need some change.

[03:05:23] We're losing educators in Spotsylvania because of the chaos created by many of the agitators who come to our school board meeting and don't want the change that's definitely needed.

[03:05:40] Someone has said Rome is burning because, but I'd say it's because the people speaking out against Mark Taylor are repeatedly setting Spotsylvania County on fire to prevent the corruption in our schools from being cleaned up.

[03:05:57] cleaned up parents wouldn't feel the need to take their children out of our public schools because they would actually be getting educated mark taylor is the very best candidate and his integrity is impeccable he is a person of high integrity and i cannot believe the lies that are being

[03:06:20] told here today thank you for your time james jatris followed by anna marie or mari hi uh thank

[03:06:39] Thank you so much. My name is Jim Jatras. I'm a resident of Spotsylvania County and I urge this board not to be swayed by this coordinated smear campaign that we've heard from today with, you know, these cookie-cutty, cookie-cutter allegations about Mark Taylor that are just, I just are really over the top. I mean, I understand having a disagreement of opinions about people, but this kind of vilification I think is just completely unwarranted.

[03:07:05] We've heard a lot talk about Chairman Twigg's letter that it was somehow malicious or fraud or illegal. I mean, it was a technical glitch. It was a mess up. They rectified that. It was a procedural problem. To make it into something else, I think, is absurd.

[03:07:21] We've heard all about Mr. Taylor's social media posts. You notice how little attention is actually spent quoting exactly what he said rather than simply characterizing it as being racist, sexist, transphobic, whatever it might be. You know somebody's woke sensibility somewhere is offended, but you notice they don't actually want to use to see what he said Or didn't say that actually might be considered hateful or or malicious Much has been made that he homeschooled his kids or be maybe said at some point that that people should take their kids out of the public school That's against America schools what private schools Christian schools homeschooling. They're not American kids. That's not American somehow

[03:07:59] Shouldn't the question be how can we make the public schools a place where parents want to take their kids? or don't feel that they need to take them out for some reason. He's not a professional educator. You know, look, I don't begrudge the various organizations that are involved in education.

[03:08:17] I assume most of the people in there are very well-intentioned professionals really trying to do that. But when all is said and done, these organizations don't own the schools. That paying your dues within the organization, showing you're a team player, is not necessarily the best qualification for an administrator.

[03:08:33] You know, we say, well, he's not an expert in education. well you don't necessarily want to pick a brain surgeon or a cardiologist to be the head of a hospital because the person with those skills doesn't necessarily know how to administer something mr taylor does that's what this board needs as i say the schools belong to the citizens of this county not to these organizations um that in 2021 we had an election the majority on the school born changed they wanted to pick somebody who is outside of that system a cozy self-reinforcing system and that's that's that's all of the same mind been sort of cultivated over the years and he's going to take a different look and see what needs to be done to

[03:09:09] make our schools a place where people want to bring their kids back into the public schools and if there's uh chaos in the schools it's been caused by the people who don't accept the results of last year's election and want to undermine it throw sand in the gears file lawsuits anything and everything they can to keep the majority from actually operating and then they say oh look at the chaos so i urge you not to succumb to this campaign and uh to and to keep uh and make sure

[03:09:34] that mr taylor is is certified i yield the balance of my time thank you okay uh anamari my name's anamari i have raised four children in spotsylvania county i've been living in spotsylvania county for good 30 years or more um i was part of a parent um parent and community member group that we were in 2016-17 we were researching some on just some money that was missing that was being

[03:10:10] allocated by the school board we actually talked to the school board at that point we never did find those missing funds but i became convinced that we need to we needed to replace some of the incumbents on the school board with some fresh faces that aren't necessarily part of the group think of educators we need we need to hear voices from parents and children are our responsibility I tend to think some of our public school educators don't believe that that they think that they the children are theirs So I when I heard Mark Taylor's name, I know he had served on the Spotsvania

[03:10:47] Board and he had done some really great things and I heard him speak and he seemed you know good candidate plus he was outside this outside the little circle of Educators that have been running the school board for quite a while So we have some new faces and the chaos that is coming from our school board meetings And I'm happy to see them so populated, but a lot of the chaos is coming from people who are simply Repeating talking points repeating the same talking points without any knowledge of the people they're talking about. I've seen these The the latest comers to the school board being spoken of so despairingly and so disrespectfully

[03:11:26] And the school board meetings are basically chaotic because the past prior chairman in my opinion is is undermining everything that Kirk twig is trying to do I'm just going to close in saying that I Wanted to shed some light on the chaos is possibly any county doesn't reflect the parents. It reflects I believe people who are who are deliberately trying to cause chaos and trying to make us look bad in front

of the whole Nation when really there's some very extremely good people good parents that are in there trying to create a better education response to me

[03:12:05] students, you know, Spotsylvania is ranking 17,000 County in terms of academic achievement Our suicide is rising everywhere, but in Spotsylvania County for sure for alone amongst teens And a lot of us are believed that there's there's pornography being allowed in school When we brought this up to the school board so many came out to Disparage us who were trying to speak about the law that they're the pornography isn't allowed in school materials That's just the law But so many educators I'm unbelievably supporting pornography in school was part of the experience that I was happy and continue to be happy to see

[03:12:44] Independent thinkers people may be outside the educator pool So I'd like you to reconsider or consider Mark Taylor as a good candidate and let him and let's just see what changes can be made by folk who think independently and outside the educator group think.

[03:13:04] Thank you. Thank you. Lisa Phelps, followed by April Gillespie. Good morning.

[03:13:30] Good morning. President Gecker, Superintendent Below, and board members. I'm Lisa Phelps, and I'm elected school board member for Spotsman County Public Schools. I come before you to call upon you and this board to put forth the recommendations to add Mark Brian Taylor to the VDOE eligible superintendents list.

[03:13:55] He has met the VDOE licensure requirements. Vote yes to add Mark Brian Taylor and let Spotsylvania County move on to take care of Spotsylvania County. Thousands of hardworking, taxpaying citizens of Spotsylvania County voted and entrusted the elected members to operate our local Spotsylvania County School Division.

[03:14:20] I am grateful for your service to all of our parents, to our students, and our school divisions in this wonderful Commonwealth of Virginia. And I'm grateful that I have the opportunity to come here and speak to you as one of the school board members who is supporting Mark Taylor as a superintendent for Spotsylvania County Public Schools.

[03:14:46] And I'm just extremely hopeful that you will follow the guidelines that are set forth. We follow the guidelines. And I firmly believe that in order for Spotsylvania County to move forward at the local level, we were elected and entrusted to make decisions for many thousands of people.

[03:15:15] And we have. And that's all I have to share. And I really appreciate your time. And I just wanted to thank you for everything that you all do. April Gillespie, followed by Roy Searles.

[03:15:36] Good morning, Superintendent Below, President, Vice President, members of the board. My name is April Gillespie. I'm the Vice Chair of the Spots of Indy County Public School Board. Our seven-member school board recently recommended that the VBOE and our candidate for superintendent be added to the list of eligible superintendents for the Renewable Division Superintendent License

[03:16:03] pursuant to option 4 of 8VAC20-23-630.4c. The VBOE heard our recommendation, however, deferred the decision due to two members of our board, Teachers Union, and a local activist group continuing to cause discontent and spread misinformation. First, I would like to address a few of them. It was not a fraudulent application. Our board was told that the process was still in closed session and we must not release any personally identifying information until the VDOE

[03:16:42] had voted on the licensure. So that is what we had done. However, it was made out to be something else. I also want to say something a little personal about myself. I have homeschooled my children, one of them for four years and the other for two years. That doesn't mean that I don't understand education. There was a reason why I pulled them out because I knew what they needed for their education. And now I've put them back in because it takes a lot. It takes a lot to homeschool and we were successful at it and they've grown, they've learned, and they were ready to go

[03:17:19] back. And I also believe that Virginia is headed in a direction that's going to make our children have a brighter future and be more successful. You know, with that being said, it takes a lot to homeschool children and no one should continue to say that someone is not fit for a position, as people have said that about me as a school board member, because they have educated their own child. In fact, I would think that would categorize them, the individual, as an educator.

[03:17:54] We are facing an incestuous local government in Spotsylvania County. It is fueled by activism and an entrenched media. Our recent election truly showed the will of the people. I'm a recently newly elected school board member in Spotsylvania County. I'm proud to have been on the ballot and handed that out with Youngkin.

[03:18:25] Our recent election showed that the people want change. I come to you asking you to approve our recommendation for our superintendent candidate to be added to the list of eligible superintendents for the Renewable Division Superintendent License pursuant to option four of 8VAC20-236304C as our candidate meets all qualifications according to the Virginia Code.

[03:18:53] And last thing, I know, I'm sorry, I'm not trying to do what everybody else did. The Emerging Stars organization that our chairman is said to have owned, he does not own it. His wife is the founder and executive director. You cannot own a nonprofit.

[03:19:10] She personally asked Mr. Mark Taylor to serve on the board of directors probably about eight years ago. He is no longer on that board of directors. That's more false information being put out there. He has resigned. So thank you for your time.

[03:19:26] I appreciate it. Thank you. Mr. Searles. Good morning, close to afternoon. My name is Roy Searles. First and foremost, I'm a parent to a 15-year-old daughter. I do not, am not part of the Spotsylvania Education Association, or better known as the Teachers Union. I am not part of the Virginia Education Association, also known as the Union. The people

[03:20:02] behind me that have spoke in droves are part of this activist and union. Many have spoken on the side. Many have spoken on the side of denial for Mr. Taylor's licensure. Many have alleged a fraudulent act had taken place, bordering on defamation. Where is the proof? Where is the intent? Is that the chair was given advice that was not in proper chronological order? Is it the chair's lack of experience in this process while meeting great opposition to all the chair's duties

[03:20:41] and responsibilities. I find it curious the supposed extensive knowledge of what I believe is closed session matters, i.e. personnel matters. But the topic is licensure for Mr. Taylor, which is supposed to be objective. Does he qualify per Virginia code? Yes. Were all seven Spotsylvania County School Board members duly elected? Yes. Please honor their request. As a side note, Governor Youngkin won Spotsylvania County by a landslide. Another side note, the

[03:21:21] four members of our majority also won the election, their election, by a landslide. The people of Spotsylvania County have spoken. Thank you. Okay, that actually concludes the list of people who signed up in advance. I'm going to go back and see, is Ms. Siddiqui here? Melissa Siddiqui was signed up and was not present, Zara Lakhani, Wendy Little, all right, at this point, is

[03:22:00] there anybody who has not spoken who would like the opportunity to speak, and oh, sorry, I forgot Mr. Taylor had also signed up, and I don't know, yes, ma'am, yeah, there have been a lot of people signed up, if we made a mistake, I'll apologize for it. Go ahead if you'd like, and then we'll take the next speakers.

[03:22:35] morning mr chairman gecker dr mand and honorable ann holton and other members of the board of education my name is dr larita copeland daniels and i live in spots of any county area i'm here today as a parent and as a community member i'm expressing my concern about the possible appointment of a superintendent using option four i do not agree with using this to select a candidate for

[03:23:06] a district of our size with 23 000 plus students and growing i promise you i would not provide information that has already been provided to you as one of the um one of the speakers spoke about it won't be a cookie cutter with me right now we owe it to the community of parents we have children within the school system who require additional support and services to appoint someone who in your words is experienced with understanding the needs of a diverse student population you also

[03:23:44] state on the video e website that within the demands and operational needs of a school district the superintendent is expected to be a strong instructional leader and and be conversant on on information about educational best practices and the process of change.

[03:24:09] How will they meet this performance measure if they have no experience in education? Based on the Board of Education superintendent performance standards and evaluation criteria that was updated by BDOE just this year, March and June.

[03:24:27] It would appear that if this board licenses a superintendent using option four, that he or she may not meet your new performance objective at the onset.

[03:24:43] Therefore, I ask the question, are we setting our superintendents up for failure before they start, especially if they have no experience in instructional education or in education more generally?

[03:25:00] From the Parental Survey, parents requested a superintendent with instructional experience and insight, and so did the community more broadly. Licensing someone to run a school district using option four may put our district in harm's way.

[03:25:21] I'll pause here. If you have been watching any of the contentious support meetings, you can see why using this option may not be the best option for our district at this time.

[03:25:37] Not only will our district be liable for anything that come as a result of hiring an inexperienced person, but VDOE could be liable as well for allowing a person to run a district of this size, knowing that there are a host of issues at play in this district, which I won't name them here.

[03:25:58] Option four, and this is my last point. Option four is one of those options that is rarely used. Why are we using it now? Please listen to the concerns of the parents, community members, and the leaders of this community.

[03:26:16] They are real. I implore you to take a second look at option four and use it as it was intended or eliminate it altogether. Thank you for listening.

[03:26:33] - Okay, please, please, thank you. - Hi, my name is Jessica Rohrabacher. I'm from Spotsylvania County. I hadn't planned on speaking today, but after seeing the obvious coordinated, politically motivated attack on Mr. Taylor, I feel like I have to.

[03:26:55] We see this commonly in Spotsylvania. It is activists. I am happy to see the ones that were being so disruptive and causing chaos at our meeting Monday be so respectful here today. Hopefully they can keep that energy and bring it back to Spotsy.

[03:27:13] I'm not here to support Mr. Taylor. I don't know him. I'm certainly not gonna determine my opinion on him from some social media memes. I'm here because I support the elected officials. I support them to do their job.

[03:27:30] This nonsense of calling on you guys to install a superintendent for Spotsylvania County is just that, it's nonsense. This overreach they're asking for to disregard the will of Spotsylvania County voters is I'm begging you not to do that 'cause that will expose a much bigger problem in Virginia.

[03:27:57] And I just wanna mention this real quick. For everybody here and who's listening, you don't have to disrespect homeschoolers and private schools to show support for public schools.

[03:28:15] You're not just disrespecting the parents that are taking the time to homeschool and educate their kids. You're disrespecting the students. And to say parents or people that homeschool their kids don't have any educational experience.

[03:28:31] Every person I know, and I didn't homeschool my kids 'cause I know I can't do it. Every parent I know that homeschooled their kids, their kids have graduated at 16 and are full-time enrolled in college. Sounds like they got some pretty good experience to me.

[03:28:51] With that said, I just hope that you guys do your job in the authority that you have to do it so that our local school board can do their job 'cause we have real issues that they're holding up by playing all these political games. These sexually explicit books, Spotsylvania County is not in compliance with Virginia state law regarding the policy of challenged instructional material.

[03:29:16] We need a superintendent in place so that we can follow the proper chain of command. That is being held up. We don't need to, we can go beyond that. We don't want to. We want to go follow the proper chain of command because we believe that it will be fixed locally with our superintendent.

[03:29:35] So I'm begging you, please. We've been without a superintendent for too long. We have real issues in the school. And I just do wanna make a mention real quick, 'cause a lot of people were mentioning about a rifle club meme. Rifle clubs do not represent support for school shootings.

[03:29:54] Rifle clubs are common in America. I was on a rifle team. I was not in public school, but I was, and I was pretty darn good. So I just wanted to point that out because that's taken out of context. Thank you very much.

[03:30:17] - It's nice being on this side of the dais. My name is Robbie Abusmal and I'm a school board member representing the Cortland district in Spotsylvania County. Before I get into my plan remarks, I do want to touch base on a couple of things. I'd like to make clear that I appreciate and respect all the

feedback that was given in regards to the school board's decision to move forward with Mark Taylor as the next superintendent for our school division.

[03:30:42] Secondly, I'd like to say a lot of people spoke about the chaos, they're not lying. Our meetings are very chaotic and what I would do to have a meeting like this, there's not a paycheck I can write to have a meeting like this. But I'd like to remind this board that we have seven members on the board and it's not the chairs, it's not the responsibility doesn't only fall on the chair.

[03:30:59] There are seven board members that don't know how to handle themselves during public meetings. So I feel it's silly and sad to blame the chair. And again, I'm not defending him, not defending his actions. but when you talk about chaotic meetings, all seven members speak over each other. It's not only the chair. So moving forward, Mr. Taylor's lack of educational experience has been the main point of discussion between the two, you can hear me.

[03:31:23] Okay, there you go. So between the two opposing views, I'd like to take the time given to me today to discuss the experience that Mr. Taylor possesses that attracted me and led me to support his candidacy for superintendent. Spotsylvania County has not been unique in feeling the effects of the nationwide teacher shortage.

[03:31:38] This is where Mr. Taylor's extensive experience large budgets, specifically that of Spotsylvania counties during his time as county administrator becomes a tremendous asset identifying funds and creating budgets that will prioritize the compensation of our staff so we may be competitive in recruitment and retention. It is imperative to bring forward a superintendent who is knowledgeable on how the Spotsylvania county budget operates and how to collaborate with our local fiscal partners, the board of supervisors, which he's had plenty of experience being the county administrator. People are talking about, you know, we are it's not uncommon when a superintendent leaves that the cabinet staff go with whatever

[03:32:15] follow the superintendent to the county they or he or she have went to so it's not uncommon secondly i like to say yes we need more people in our central office but it's i want to give credit for the administrators who we still have running the everyday operations of our school system we're doing a great job we're filling our teacher vacancies we're moving forward we're not letting anything stop us so we can come up here parade mr taylor we can hate each other on we do have a problem in Spotsylvania County, and it's the government as a whole. And it's because of what you saw today. Spotsylvania County came to Richmond and showed you guys how our school board meetings

[03:32:52] are, where people can't agree to argue policy, not personality. And this has to stop. Bringing somebody like Mr. Taylor in is a great advantage to deal with the board of supervisors who we've had trouble with getting our budgets approved, which included teacher salaries and staff salaries.

[03:33:10] So no, I came to America in 2005 as a Lebanese immigrant and became a product of Spotsylvania County schools in 2015 when I graduated high school. It's silly to say that I don't have the students' best interests in mind. The teachers are at the forefront, inside the classrooms, dealing with the students every day. Those are the people we have to take care of in bringing forward a superintendent like Mr. Taylor. We can get a budget passed that can put our teachers first. I ran my campaign when I ran for office about fiscal responsibility and allocation of funds in Spotsylvania County, and I'm staying true to that today, asking you to support Mr.

[03:33:44] taylor and not to get involved in local politics and restrict the will of our board to grant mr taylor's licensure so our board can get back to speaking about kids thank you okay is there anybody else who'd like to speak before the board today during public comment hi my name is marie petratus and i'm a grandparent i live in chesterfield county this poor lady's holding up her sign i

[03:34:20] guess she wants to everybody get a gist of what she's saying there's a lot going on here there's yay and there's nay. As a grandparent, please just do the best for the children. That's all we're asking for. Not miracles. I know you guys have the same thing. We have the three to four ratio on that school board up there. They never vote together. I ask you guys to get yourselves and be able to do

[03:34:55] this and do the best for our children. Make your parents proud. Make your grandchildren proud that you stood up for your rights. Thank you so much and have a great day. Thank you. All right. I'll ask one more time. Is there anybody else who'd like to speak before the board? Emily, I can't see behind that corner. Anybody? Okay. All right. We are then going to close the public comment

[03:35:31] period. As always, I'd like to thank everybody for taking time out of their day to attend the board of ed meeting uh we will now move on to the board's regular agenda or continue the regular agenda uh beginning with the uh consent agenda you know i guess let's start first with a if we can do it a motion to approve items b and c on the consent agenda thank you is there a second uh all those in favor signify by saying aye aye any opposed okay are there any motions with regard

[03:36:10] to item A, the final review to certify a list of qualified persons for the Office of Division of Superintendent of Schools. Ms. Halton. I move that we remove item A from the consent agenda as to Mark Taylor. I'm happy to go forward with it as a consent agenda item as to everybody else, and I just move that we separate out Mr. Taylor so that we can discuss it separately. That's fine. We've pretty much already moved it off consent and we're now into discussion but we'll do uh there's a motion to essentially

[03:36:43] approve item a with the exception at this point of uh you know mark taylor is there a second to that second thank you is there any discussion if not uh are you excuse me sorry are you saying mr president that this is going to be under discussed today uh what i think is going to happen is that we will vote on everybody but Mr. Taylor I know some board members want to discuss the Mr. Taylor issue individually that discussion will occur and then there will be a motion with

[03:37:19] regard to Mr. Taylor when when would that be today oh yeah that'll be this morning before lunch Mr. President why wouldn't we keep them all en banc but have but I think we need to have a robust discussion about the issues in front of us, but just keep the entire list together.

[03:37:39] I agree. I completely agree with my colleague, Henry Holden, that we need to have that discussion. But why just keep the entire list together? I think we all know what's focused on. One half dozen. I'm happy to do it either way. You get to the same end.

[03:37:55] I have no objection to the rest of them being heard on consent agenda, but I don't think it makes a difference how we proceed. Again, he's on the consent agenda. What he's saying is leave the list together. So can we have the motion to separate it out or to approve everybody but Mr. Taylor withdrawn so that we can move on without a vote on that?

[03:38:17] No, I think we're suggesting that we just consider them all together. Right now, there's a motion. My motion is that we separate them. And I need to undo that motion before I can consider them

all together. To be clear, Mr. President, I'm not asking that we keep it on the consent agenda. I think we should take it off. It'll be discussed. That's clear.

[03:38:33] Again, the question is-- - My motion is that we separate out Mr. Taylor from the remainder of-- - And that motion has been heard and seconded. And I guess the question is, Ms. Houlton, are you willing to withdraw that motion in order to have the block discussed?

[03:38:48] And then if after that discussion-- - Yes, yes. - There's a reason to separate them out, separate them out at that time. - Fine. - I think that's where we are. So you have withdrawn, Dr. Mann? - That works. - That works? - If I understood correctly. - I think we do.

[03:39:03] I think we know what we're doing. - We're removing the whole item from the consent agenda. - The whole item is off the consent agenda. Mr. Taylor's name is still on the list. If there is a motion after the discussion of item A, we will deal with it then. But right now, we're dealing with all of item A.

[03:39:20] Okay, so B and C have passed. Let's go to item A. Final review to certify a list of qualified persons for the Office of Division of Superintendent of Schools, or Division of Superintendent of Schools. Any board members have comments or questions there?

[03:39:37] - I do, Mr. President, I would like to address, I first do wanna commend the public for their vigorous participation and civilly done. We hear that there's some very difficult disagreements in Spotsylvania and the fact that everybody was able to come down here and present your views vigorously, but civilly, we're very grateful.

[03:40:03] when we heard this matter last month i hoped and thought and now see that the the confusion about what the board's decision was was one that would be able to be clarified and i am satisfied that the that matter has been clarified as to the board's decision by subsequent vote of the of the spotsylvania board i then started to read the public comments frankly wanting to be able to approve the board's, the Spotsylvania board's recommendation for superintendent. I believe

[03:40:39] strongly in local control and that we should do everything we can to defer to local elected boards. Board elections have consequences. Frankly, most of the objections to Mr. Taylor do not give me pause or at least seem to me most appropriately resolved at the local level.

[03:41:00] However, I did read through the public comment in some detail and heard it again today, and a number of the Facebook, quite a number of the Facebook pages give me very severe concern.

[03:41:17] They're just simply racially offensive and offensive on all kinds of scores. Not all of them, there's some that, while I might not agree with, are within the range of political debate and ones that somebody who might not have known he was gonna be a candidate for a school board might wish he never posted, but within the range.

[03:41:39] But there are quite a few that I think are just simply too far over the line that without explanation or some kind of response make me unable to support him as a candidate for superintendent.

[03:41:58] And I will quote several in particular. One is, it went this way, and these were all within the last 18 months. These aren't, you know, I did something when I was a kid. These are recent posts. What country in the 80s would allow a fat black woman to have a daytime talk show and become one of the richest people on the planet?

[03:42:19] And it goes on to reference Oprah Winfrey, and the point being Oprah Winfrey was apparently speaking out about things that she saw as racism in America, and the point was because she's a fat black woman who made a billion dollars, she's not entitled to speak about racism in America.

[03:42:37] Another one, a white cop shot an unarmed black woman and nobody did anything. Oh, wait, yeah, I got the races mixed up. And then that goes on to link to a video about Ashley Babbitt, the woman who was shot as she broke into the House of Representatives Chambers on January 6th, 2001.

[03:42:59] and apparently was a white woman, and apparently the allegation is that the police officer who shot her was African-American, the analogy being that that woman was in the same shoes as an unarmed black woman shot by a white cop.

[03:43:17] I find these extremely racially offensive. There were quite a number of others disparaging people who were receiving public benefits, disparaging immigrants, but the only other one I will quote, and I'm gonna leave an ellipsis in the middle that doesn't change the content, but the single best thing Americas can do to counter the left-wing attack on America is to take their children out of America's schools.

[03:43:42] Obviously, that's not racially offensive, but it does go to somebody's qualifications to be a school superintendent, whether they are, in fact, fundamentally a supporter of public education and this notion that the left-wing America agenda is, we're looking to qualify people to be superintendents who can be role models for all of our children, who we can hold up to their staff, to teachers of color, to all teachers, to help show them the way to cultural acceptance

[03:44:17] and helping our multicultural society go forward. And so these Facebook posts gave me significant pause And yet I still had a question about, well, do we have authority? You know, if he meets the conditions for option 4A, for, excuse me, option 4 under regulation 630, do we have any discretion to evaluate?

[03:44:43] And I think he does meet the conditions under option 4. And I understand, you know, whether or not you think that regulation is right. I understand why we provide for an option for somebody whose experience in leadership management came up through somewhere other than public education i do understand why and understand why a local board might want to look to somebody whose experience is elsewhere and so understand how how we got to this point and and i i don't see problems with him qualifying with section 630. however i am satisfied and i've not only read the regulations over again but i've

[03:45:19] read the constitution over and the constitution gives this board the authority to decide who qualifies to be placed on the superintendents list and then leaves it to the local board the authority to make selections from amongst those folks placed on the qualifications list it is a privilege to be licensed in Virginia at any level but particularly at the superintendents level it is not a right this board has the authority under the Constitution and we have adopted regulations to guide that authority and section 750 of our administrative code

[03:45:56] code 20-23750 does list a number of conditions that can allow for denial over and above the option four terms that have been discussed. And the one that I think is applicable here is other good and just cause in the best interest of the public schools of the Commonwealth of Virginia.

[03:46:17] It does not reflect well on the public schools of Virginia. It does not serve the school children of Virginia well to have somebody who posts not one, not two, but numerous racially bigoted, offensive

Facebook pages. Obviously, among other things, if these posts are accurate and true, just reflect a significant lack of judgment about communications and what a public official's role in the world would be.

[03:46:49] And these were not at a time when he was totally a private citizen. They were at a time when he was serving in a public leadership role in another county. So these give me sufficient pause that if true, I cannot vote to place his name on the superintendent's list.

[03:47:07] It is just a road too far to get my vote. Now, I don't assume that they are true. And if the applicant for a license would like to be heard, and I think it would be appropriate to hear from him in private executive session, as we usually, if he so chose, as we do on licensure matters in the ordinary course, I would be open to hear, maybe these are doctored, maybe his account was hacked, maybe this is a different Mark Taylor, it's a generic name, but it sure doesn't appear

[03:47:45] to be any of those things from these facts, and given that he has the burden of proof, once you get a license in Virginia, then it goes from being a privilege to being a right. Once you've got a license, it cannot be taken away without due process.

[03:48:00] But before you are given a license, this board has the discretion, has the authority to hear evidence and make decisions. And I would therefore decline to place Mr. Taylor on the list today and rather ask that we defer the matter as to Mr. Taylor and give the applicant an opportunity to come address his qualifications to be a leader of all people and to be a role model for all students in any Virginia public school

[03:48:38] because once he goes on the superintendent's list, he could be qualified to be a superintendent anywhere. I'll just say one more thing and that is that I don't know whether, I know we heard from a number of school board members today. I don't know whether these Facebook posts were, came to light before the Spotsylvania board made its decision.

[03:48:59] I do understand that they are now part of the public record and even if we do, even if the vote today is to place Mr. Taylor on the list or at some future point to place him on the list, it still is up to the local board whether to hire him and I hope and trust that they will consider whether they want somebody who has portrayed himself apparently in such a divisive way to be the leader of a school system where they are dealing with such divisive issues.

[03:49:32] Thank you. And therefore, I would, when the time is appropriate, move that we separate out Mr. Taylor's candidacy from the others, and I have no objection to, I would support the other candidates and ask that we proceed to defer Mr. Taylor until we have an opportunity to have him have a chance to respond to all of this, which he hasn't, and it's not appropriate to have to do it in public session.

[03:50:03] So I have no problem hearing from him in a different context. - Well, Mr. President, I'd just like a couple of minutes. I'm not gonna weigh in on which way I'm voting. I'm just gonna say a few things that I heard from one side of the aisle were words like social media posting, nepotism unqualified, option four, no experience in education.

[03:50:28] Other side of the aisle said he's outside the circle, educator group think, transparency, parents rights, duly elected members of school board and trusted, independent thinker, overreach, homeschool, political games.

[03:50:46] So these are some of the words. There is great political division in this country at this time. To talk about someone's character based on one's political leanings is easy to do. To take one's, an example was given as, you know, to take one's child out of public school to homeschool.

[03:51:08] Parents have one shot at educating their children the right way. Having studied in government schools in India and having seen my kids go to elementary school, middle school. High school in Fairfax County, I can tell you that I was appalled at the lack of rigor. There is emphasis on applied science, geology, environmental science, astronomy, etc.

[03:51:33] My husband and I have also fought back against teachers inserting their own political beliefs in classrooms. It is understandable why someone would want to experience, I don't believe homeschooling is controversial. It's understandable why one would want to exercise their right of choice to educate the children the way they deem fit i i also am a supporter of you know local local you know local power you get it's a duly elected board school board local board i don't believe

[03:52:11] that there should be an overreach however i'm willing to listen to and i've read almost all of the comments i'm willing to be open that's all thank you anybody else want to speak mr president thank you i hold a superintendent's license and so i've been listening very attentively to this conversation first of all i agree this has been a model of civil discourse and um i appreciate everybody's involvement participation that and the excellent views shared by this board and the way this board has functioned in a short time together it's very commendable we're on a local board i

[03:52:48] would consider these facebook posts a disqualification um if true therefore i think it's up to the local board to vet uh because i personally i would find them a disqualification there are many many issues here chief of them i think is just as alluded to a deeply divided board and community that is sadly clearly hurting um from which members of the community of that community who are also members of the citizenship of commonwealth had the opportunity and are welcome to come here and share their views on all sides and be heard by this board. This board operates in accordance

[03:53:26] with its authority and its limits on authority. The role of federal and state government is and should be limited because local control is essential to empower local residents to elect, appoint or unelect and unappoint its own leaders. I am a very strong supporter of local control and citizens of localities do have recourse. Their recourse is to elect and then unelect leaders.

[03:53:52] this board does operate within its guidelines option four is an option very different than the road i followed to get my superintendent's license but it is an option and this board may revisit its guidelines but if to do so would have happened within the processes of this board which would take some time cannot happen today last month i again the the will of this board i think was very wise to put a pause and to ensure that our guidelines for option four were being followed

[03:54:25] specifically with local board action um the local board did act it was a divided vote but boards regularly have divided votes from a governance perspective this board is not should not become an appellate process for divided votes and local school boards if we did that that's all we would ever do um again i have soups license and i know hundreds of others who do who in my opinion would be very well qualified by training preparation but also by virtue of being good role models i encourage all local boards to consider the hundreds of people that are on the lists and

[03:55:04] and consider them an excellent uh candidates for superintendent in my opinion excellent superintendent was already in place in my opinion local boards are duty-bound to vet all candidates for all positions to select role models with experience next piece in my opinion local board with access to hundreds of qualified candidates to select from should vet their candidates and review their social media posts and select candidate who unifies in my opinion soups i know would be reluctant to serve in a division appointed by a deeply divided board because they should seek to unify my opinions however secondary my oath of office to this board is a member of a governance

[03:55:43] perspective the authority in this board is not in individuals it is in the body corporate at this meeting and so awarding a license according to our guidelines especially after ensuring that our guidelines were followed last month is us doing what we say we will do citizens of locality do have recourse they have recourse by electing and unelecting vetting candidates and voting to appoint a superintendent is one of the local board's most important tasks it is a local task and if not executed properly its citizenship can change their boards it is a local function um one that i hope

[03:56:22] every board will take seriously but it is not a a state function i support local control and the authority of citizens to elect and elect representatives i encourage all boards to vet all candidates and if reprehensible social media posts are true to move on to other candidates but this is a a local matter our concern procedure last month has been addressed and um but i i do encourage all localities to revisit the very long list of extraordinarily qualified superintendents in the commonwealth dr man thank you thanks so much president gecker um

[03:57:00] and really a lot has already been said by my colleagues i think as i have sat and and deliberated over this i i think the thing that comes to mind for me is one of the most heart-wrenching responsibilities of having the honor and privilege of sitting on this particular board is the decision that board members have to make with respect to licensure those discussions are heart-wrenching when we are faced with having to determine whether someone can be licensed have their license revoked and they're not easy discussions to sort of move through we understand the gravity of those

[03:57:38] and as i have tried to appreciate what is within the authority of of of the board in this regard i too support the importance of local control in government i i took an oath when i served that i would follow the code and holding up my responsibility as a board member making a decision on licensure is within the purview of the board there is discretion in that respect and

[03:58:11] I have been very troubled by what I have digested through the social media activity, and I do really, really worry about what that feels like for students that represent individuals that have been memed in social media in this way.

[03:58:39] And it gives me great, great pause because within the purview of the authority that I have as a sitting board member, I have to feel good about a decision that goes to the heart of what is in the best interest.

[03:58:58] We do have discretion within that regard. That is not, in my view, an overreach of my responsibility. I am not making a decision for hire. Those decisions rest with local boards.

[03:59:14] we have a decision to make that is situated solely around licensure and it is a privilege to hold a license where public trust and the opportunity to be a role model for students of all kinds is at stake and I think we have an obligation to really think very seriously about about that aspect of our

[03:59:41] our obligation as board members anybody else want to speak all right please um i i appreciate very much the comments of my colleagues here um i too am a huge proponent of local control in this matter we as this board do not sit in local school board meetings we do not um opine on what teachers

[04:00:19] local school boards should hire or fire that is solely in their discretion just as hiring a superintendent should be in the local school board's discretion as well and elected officials who sit on those school boards make hard decisions almost even harder than a superintendent every day and we trust them to do that and when we don't trust them to do that we go to the voting booth

[04:00:50] and we vote them out and so those who are here today those who are attending their local school boards meetings i absolutely respect and applaud you for being a part of the process because without you we would have none of this and so i encourage all of you who are here today and those who are participating in local school boards and their meetings to continue to do so

[04:01:25] We have discussed what students are seeing, how they are watching what's happening in this particular case. Yes, they are. But they're watching how we as adults are handling ourselves, both here in this room and in every local school board meeting across this commonwealth.

[04:01:48] And so I would just say that please let us be good and responsible role models for our children. thank you mr. president I just want to thank everybody who's taken time last month in this month to come before the board it's a lot and it's important for the public to be able to have their voices heard and so thank you and also

[04:02:22] like to thank the board members for coming today and for those that came at the last meeting I think we've heard from every board member from Spotsylvania so thank you for your efforts I really just want to associate myself with everything that dr. Mann and dr. Siebert said where we are I also like to thank this board for going through our process to make sure that the procedural issue was adequately addressed which it has been and I think

[04:03:02] was nalan that mentioned that we're not an appellate role here and it really is important for us to respect the role of the local officials especially the elected local officials to make these important decisions for their students and their families and for their school system and so just not adding anything new here other than i would also just when we have a discussion about option for at some point down the road i think it's an incredibly important tool i've been part of

[04:03:42] college presidents kind of being non-traditional candidates as well as superintendents and there really are important needs for it but i do think that it will warrant a fresh look at it at some point down the road but where we are today i just again think that the the local board and i really appreciate also grace your comments about the level of civility in our country in our state it just is something that we've all

[04:04:20] got to take ownership and leadership and exhibiting of and teaching civility and all that we do so brother thank you uh i too i do want to thank everyone for the participation i think you know this is obviously contentious there's strong feelings but we should it is it is always worth pausing to be grateful that this is how we make decisions here rather than the way that that contentious issues can be uh resolved elsewhere uh and so i think i think despite all strong feelings that's great i just want to say there seems to be a little confusion i've heard in you

[04:04:56] the public comment and in various state state we're not confirming anybody we're saying do they meet a baseline standard um under the law to be on this list local boards make these hiring decisions

as my colleagues have said it's not up to us to say if someone meets the specs of a local job description tell these divisions who to hire approve their hires or even if someone will be a good superintendent or a wise choice um and it's certainly like we can't say whether all these these people are going to be good role models on this list. These are big, broad lists. We can't know that about all these people. I am a little troubled, I will say. Within reason, we shouldn't

[04:05:33] be having political litmus tests on the left or the right, and I agree with Secretary Holden. There's a blizzard of stuff here, and I'm not troubled. I don't think it's relevant if Mr. Taylor thinks that an armed society is a polite society. That's not an unreasonable view in this country. He's free to criticize public education, I think. That's not necessarily at odds with being a supporter of public education. You can homeschool your kids. Every parent should be able to make the choice that's best for their kids. Believing that, as one of our last speakers said, it certainly is not at odds with supporting, with being a strong public school supporter. And whether or

[04:06:08] not he agrees with John McWhorter, who's a New York Times columnist, we can't be adjudicating that kind of stuff. That's not our role. Now, assuming some of the other social media posts are, in fact, real and legitimate. They're a lot more troubling. They raise serious questions about judgment, about a commitment to making Virginia public schools work for all students, leading institutions that serve young people, and just general awareness of the obligations of public schools to be broadly inclusive, to be pluralistic, to be responsive to parents. So I'm where Dr.

[04:06:41] Siebert is, assuming that, again, that those posts are legitimate and none of the things that Secretary Fulton said the qualifiers apply. If I were on a local board, I would not vote. I would not vote to hire either, like my colleague.

[04:06:57] But that's not our role here. We're not on a local board. That's the role for the people of Spotsylvania, speaking through their elected school board, which they have done. They have to make these decisions. And I think as far as the students go, we've heard about that. That's fundamentally the civics lesson.

[04:07:13] This entire episode, all the back and forth, the churn of the law firms, all of the chaos, It's within the power of the people of Spotsylvania to address at the local level through their local school board. It's not our role. Our role is simply does this meet option four criteria or not?

[04:07:29] By the letter of the law, it seems to. All the process has been followed. And so I think, you know, as unsatisfying as it might be, we defer to local control. And finally, I do just want to say a little bit about option four. Just like Spider-Man's uncle advised him, with great power comes great responsibility.

[04:07:49] And I'm concerned that if local boards are not judicious with Option 4, it's going to discredit a really important tool for flexibility for local leaders. We have about 11 active Option 4 licenses right now, four active school system leaders. I believe it's very important to give some flexibility to local divisions to make decisions like this.

[04:08:07] There's ample evidence that people with broad backgrounds can run school divisions very effectively here and around the country. But local boards have an enormous responsibility to use that power wisely and responsibly as they do to use their power wisely and responsibly more generally. Okay.

[04:08:26] I've got just a few comments on this. You know, just a few years ago, this matter wouldn't even come before the board. You know, the newer members would not be aware, but until fairly recently, or not

necessarily aware, until recently, the licensing issue was strictly staff.

[04:08:44] VDOE did it. And, you know, in my desire that the board follow, you know, what I consider to be the oath that was mentioned that we took to follow the Constitution of the Commonwealth of Virginia and the laws, I said, Constitution says we get to certify.

[04:09:00] this board ought to be certifying. And we took from VDOE, we didn't take the administrative portion, but we began certifying the list each month of people who were represented to us by staff at VDOE as being qualified for the, you know, license of division superintendent.

[04:09:25] You know, if you go back in Virginia constitutional history, and I promise this won't be a long lecture on it, but if you go back to the 1870 Constitution all the way up to 1928, the state board actually picked superintendents in the Commonwealth, and not an uncommon thing. The board had the discretion and actually the obligation to put superintendents in all the local divisions. It was done without any local control at all. And I understand everybody, it must be the politically correct thing to say now that we believe in local control.

[04:10:00] I will tell you that when I was a local elected official I believed entirely in local control. Now that I'm here and I witnessed some of the things locally, I say, well, maybe some outside influence is not a bad thing once in a while. But the Commonwealth made a choice in '28, and in '28 what we said was we're going to change the system from board appointed to the board will create a list from which superintendents will be appointed.

[04:10:27] It was, in the words of Dick Howard who wrote the commentaries on the modern constitution, really the equivalent of home rule. And again, Virginia is a Dillon rule state. The legislature really speaks for almost everything.

[04:10:43] Localities can't do things other than what the legislature says they can. But in this particular case, in the case of superintendents, even as early as 28, Virginia changed that policy and said, we're going to make a local choice.

[04:10:58] I wrestle personally with option four, and I began to wonder why is it here? And then you begin to look at the other options. You know, Dr. Siebert, who I am sure went through option one, he got his doctorate, and that was pretty much the requirement.

[04:11:17] Option two is then you can have a master's, but you got a lot of additional stuff you need to do to essentially get what I guess the code would consider or the regs would consider the equivalent of a doctorate in order to be able to teach. Those are two areas in which clearly the educational experience is important, you know, to the people who put these rules in place.

[04:11:38] Option three is really just a reciprocity rule, right? It says if you have a superintendent's license elsewhere and you meet base level criteria, you can get a license here. And then you get to option four. Option four to me, when I first read it, said it doesn't require enough, but what it really does is it supports the idea that local divisions have got rights here and almost exclusive rights with regard to superintendent picks because it takes the entire vetting process and says we're putting it in the hands of the local school board.

[04:12:12] We have talked before on this board, Dr. Mann, about how licensing decisions are not hiring decisions. Whether members of this board would hire is a different issue from whether we would license

And I'm not suggesting for a minute by the way since we have had no face-to-face contact with the my knowledge With mr. Taylor, so this is not you know suggesting that I would not hire but what I'm saying is that decision is separate and that decision has been made by the Duly elected, you know school board, you know the deferral to today was somewhat mischaracterized

[04:12:50] and some of the public comment, it was not to do a further investigation, it was to have the letter of the law actually fulfilled, which is the recommendation of the school board saying we are going to hire this person or be recommended by a Virginia school board interested in employing the individual superintendent.

[04:13:14] That letter came in after a duly called public meeting, as I understand it. suggested otherwise. And so, you know, in my view, and consistent with, you know, the way I have tried to operate on the board and with the board over the last seven years, you know, we follow the rules. You know, if everybody stays in their lane, you know, good things happen. If people in Sposylvania are unhappy, as I used to tell folks in my home county of Chesterfield, you know, that's why we have

[04:13:49] elections every four years. That's the remedy that we have chosen. I guess, unlike Ms. Dutta, I have signaled my vote, but I think we are where we are. I'm glad we had an opportunity to go through this process. I think it has highlighted an area that perhaps the board would like to take some interest in at a later point in time. But for today, I don't think we changed the rules midstream for people i think you know as a board we do what i believe and i know there's disagreement on this but what i believe we're required to do and uh issue so with that having been said

[04:14:28] if there are no other comments is there a motion on item a i i would just move that we separate out now that we separate out the vote on mr taylor from the votes on the rest of the list because i would like to be able to vote in support of the rest of the list if it's the will of the board agree with what mr i'm actually i'm fine with either as long as it doesn't create a procedural issue so so what i would suggest that that we that we move to approve the list without mr

[04:15:04] taylor and vote on that and then someone can move if they so wish to approve mr taylor's license application i would like to keep it all together i mean i don't think we've i have we ever done this i know we did it at the last meeting we do it frequently yeah okay we we have but i guess well you know we'll take it as robert's rules would require we have a motion is there a second

[04:15:32] to that motion okay is there any discussion on the motion yes i would uh i mean i i know a lot of thoughts um have been mentioned and it wasn't until the day when i heard so many speakers from both sides of dial speak that i a lot of pieces fell into place and i i i just um i just don't think that um we can keep kicking this can down the road and i think we should we should just keep

[04:16:09] this all in one piece um we wouldn't be kicking it down the road it would be kicking it down about four minutes that's it i mean it would be just two separate votes back to back i'm just asking for the courtesy of the opportunity to be able to vote in support of the other board members without um and then to be able to separately cast my vote even if it's a losing vote on the candidacy of mr taylor and mr president now that we've discussed it i'm fine with that i think it probably we should probably read out what each motion is just make sure everyone's clear what we're uh what we're voting on all right great all right so if you don't mind let's do it in

[04:16:47] a slightly different way would you move to approve the list with the exception of mark taylor and and then we will have a second motion with regard to Mr. Taylor, is that okay? - So moved. - Second. - Thank you, all in favor of that motion, signify by saying aye. - Aye.

[04:17:03] - Okay, now with regard to the, I guess, certifying to the list of qualified persons, Mr. Taylor, is there a motion for that? To certify him as a licensed division superintendent or having certify him to the divisions?

[04:17:22] Is there a motion to do that? - So moved. - Ms. Dutta, is there a second for that? Second. Thank you. All in favor of that motion. Well, is there any discussion? I'll just repeat that I think the Constitution gives us the authority to decide who's qualified and that these outrageous, racially offensive Facebook posts without explanation are a disqualifier and therefore urge a vote no.

[04:17:51] Okay. All those in favor of the motion, which is to approve, do will the license of Mr. Taylor I signify by saying aye. - Aye. - Opposed? - Nay. - Nay. - So that carries 6-2.

[04:18:07] All right, I think we are gonna break

[04:48:00] after we turn on one switch. Okay, turn your mics on if you want them on. Otherwise, let it be. Board is back in session. Item D, final review of guidelines for policies on sudden cardiac arrest, prevention in student athletes.

[04:48:18] Ms. Wigand or Dr. Albom?

[04:48:34] - Hi, good afternoon, President Gecker, Vice President Mann, members of the board and Superintendent Baylow. Today I'm joined by Ms. Vanessa Wiegand, Coordinator of Health, PE, Family Life and Driver Ed for this item. On behalf of the Office of STEM and Innovation, I am pleased to present today for final review the proposed guidelines for policies on sudden cardiac arrest prevention in students-athletes.

[04:49:01] This item was presented for first review in June 2022 Board of Education meeting. Pursuant to Senate Bill 463 of the 2020 legislative session, the code was amended to require the board to develop, biannually update, and distribute guidelines on policies to inform and educate coaches, student-athletes, and student-athletes' parents or guardians about the nature and risk of sudden cardiac arrest, procedures for removal from and return to play, and the risks of not

[04:49:38] reporting symptoms. The goals of the proposed guidelines are to protect student athletes by providing recommendations that support the development and implementation of effective sudden cardiac arrest prevention policies in local school divisions through education, prompt recognition, appropriate response, and to ensure that student athletes who may be at increased risk for sudden cardiac arrest are properly identified, immediately removed from activity and not allowed to return to play until evaluated by an appropriate licensed healthcare

[04:50:17] provider as determined by the board of education while rare sudden cardiac arrest is the leading medical cause of death in young athletes hence raising awareness of warning signs and risk factors screening for heart conditions putting a strong cardiac emergency action in place and increasing the availability of automated external defibrillators in sports settings are the most effective strategies in improving the outcome of sudden cardiac arrest among student

[04:50:54] athletes. Please note these guidelines that are proposed were developed in consultation with physicians with subspecialties in pediatric cardiology, interventional cardiology, pediatric sports medicine emergency and family medicine and with other clinicians affiliated with the virginia department of health the american academy of pediatrics and family medicine virginia college of emergency physicians virginia association of school nurses virginia association

[04:51:31] of clinical school specialists vcu school of medicine the virginia school boards association the virginia athletic trainers association the virginia association for health physical education recreation and dance in children's hospital of the king's daughters and the virginia high school leagues sports medicine advisory committee therefore the superintendent of public instruction recommends the board receive for final review the guidelines for policies on sudden cardiac

[04:52:08] arrest prevention in student athletes thank you yeah thank you are there any questions by board members if not uh is there a motion to adopt this item thank you miss creasy is there a second thank you mr hansen all those in favor signify by saying hi hi any opposed there's mr rother how was it i'm sorry it's okay i've been called worse you will be we will correct that record thank you no i'm very much yes everybody out of this ear sounds alike so you're sorry sorry okay

[04:52:44] thank you very much thank you ladies and gentlemen all right item e final review of revisions to child care program regs an exempt action miss conway happy to see you excellent good afternoon two items in a row so let me get situated uh good afternoon superintendent baylow president gecker vice president mann and members of the board my name is jenna conway and i am the deputy superintendent of early childhood this afternoon we bring to you an important item related to

[04:53:23] to increasing access and quality childcare in Virginia. This is a unique exempt action item because it is a direct response to General Assembly actions from earlier this year. But I thought it useful to help you understand what the General Assembly is requiring us to do and how it fits in with our broader strategy of increasing school readiness in the Commonwealth.

[04:53:43] So as some of you know, 42% of Virginia children do not start kindergarten ready. This means that they are not fully prepared in at least one of the four following areas: literacy, math, social skills, or self-regulation. This puts children behind before they even start, and there's significant research that is very difficult to catch kids up.

[04:54:04] In contrast, kids who start ready are more likely to be on level by third grade, do well in school, graduate, and go on to greater success in career and in life. In our work in early childhood, we seek to improve school readiness, and therefore opportunity in the Commonwealth, in two primary ways.

[04:54:22] One, we focus on access and choice, and two, we focus on quality, so that all families can choose a safe, quality, and affordable early childhood options that meets their children's unique needs and puts them on track for success. Early childhood is distinct from K-12 in that we do not guarantee a publicly funded option for every child.

[04:54:44] Rather, we focus public resources on those children and families who are furthest from opportunity, unlikely to be able to afford childcare or preschool, and are at the greatest risk of not coming to school ready. Our data shows consistently that children in low-income households are much less likely to come to school prepared than their similarly situated peers when they do not have access to childcare, Head Start, or preschool.

[04:55:10] So this means that we as a department in certain areas, and we also follow federal regulations, other areas, set eligibility criteria in which we indicate which kids and families can receive slots or vouchers. These criteria vary slightly by program, but generally are focused on kids and families in need.

[04:55:28] In addition, distinctive from K-12, we use public dollars to serve kids in diverse public and private settings, including family child care and homes, child care centers, Head Start and Early Head Start, faith-based preschools, and pre-K or preschool, early childhood special education in school.

[04:55:48] So a broad array of settings. We're seeking in Virginia to build the nation's best public-private parent choice system. And as part of this effort, we have worked closely with practitioners, stakeholders, families, community members, and elected officials over the past year to develop a suite of improvements for our childcare subsidy program.

[04:56:09] A little background about that program, and then I'll go into the specific actions in front of you for exempt action today. Our childcare subsidy program serves as a key resource for low-income working families in the Commonwealth. It's federally funded by the Child Care and Development Block Grant, and it provides vouchers for families so they can choose the child care option that best meets their need.

[04:56:30] We, you all as the Board of Education and we at the Department of Education, now oversee the state's child care subsidy program, including setting policy and rates. And then it's administered through our partners at the Virginia Department of Social Services through more than 120 local offices across the state.

[04:56:49] as of august of 2022 there are more than 2 600 providers and we serve about 32 000 virginia children family demand for this program is at an all-time high we are seeing more families than ever apply and we've never had these numbers in terms of participating and its enrollment has increased by more than 50 percent in the last year alone part of this is we've been able to expand income eligibility and we know that more families than ever are choosing public private options they search for care it should also be noted that this is the single largest program for families seeking publicly funded care for infants and toddlers to

[04:57:28] manage this program we work very closely with our partners and we set a child target so we work for across those 120 or so local offices we set the number of kids they can serve this helps us manage the overall programs we set the eligibility we set the number of kids that they can serve and this helps us make sure that we can stay within our federal budget they have to apply to us if they want to serve more kids so for example if you receive 100 slots and in your community 110 families and kids or are seeking care you have to let us know we sort of reallocate slots to make sure again statewide that we stay beneath

[04:58:06] our budget and there's sufficient funding available so the last point I'll note before talking about these changes the child care subsidy program it should be noted that we are in process, and I will talk not about it today, but in future meetings with this body, to make sure that all of our programs that receive publicly funding meet our accountability expectations. So we're in the process in response to state law of building a statewide uniform measurement and improvement system. So all of our programs as of next August, including our programs in childcare, including all the programs that take these vouchers will be a part of what we call vqb5 or statewide measurement improvement

[04:58:45] system with that background on what we're trying to achieve on the child care subsidy program in your role i'd like to talk with you about some of the actions that the general assembly added to

the budget this year and that we are bringing to you today to put into motion so first of which is that there is specific language and it's in your materials but it requires us to estimate the cost of providing quality early childhood care and education and set our rates based on those costs it requires us to pay based on enrollment it requires us to eliminate or reduce co-payments

[04:59:21] for for child care it requires us to remove the existing 72 month limit on the duration of time that families may participate it requires us to set 85 of the state median income as the income cutoff, and that's the maximum limit allowable under federal law. It requires us to allow job search as families are pursuing employment or school to further their own self-sufficiency, and it also requires us to actively, to the extent feasible, eliminate the wait list, which again, as I said before, is how we work with communities. If there is greater demand than their child target,

[04:59:57] provided there's sufficient federal funding available, we do that reallocation. I say we've working on this for more than a year as this was something that we engaged with stakeholders last summer worked with the prior governor to have be part of the budget work with this current governor to understand how this supports our public private parent choice system engaged deeply with the general assembly that then added this to the budget and then we work closely with uh more than 300 individuals since may to help understand how these changes and impact them we've sought extensive feedback and lastly we took this to our broadly representative early childhood

[05:00:33] advisor committee both in um may and in june to receive their endorsement and support of these efforts so on behalf of the superintendent we recommend that you approve these revisions to the child care subsidy program regulations to comply with the 23 the fyi 23 fy 24 appropriations act are there any questions by board members thank you ms conway ms holton i have one quick question and one quick comment okay actually i'll do the comment first for our new board members i don't know if you all have had an opportunity uh many of you may have interacted with ms conway in

[05:01:07] other contexts but we are so lucky to have her leading this work she is really a pro and helped lead a major reform of early child could early child care in louisiana under governor jindal before governor northern brought her here to virginia and she's just doing amazing work helping us improve the quality and quantity of child care uh in virginia to meet desperately important needs working on workforce issues using a public private partnership model and just doing incredible work and we're just so lucky to have her and i can't resist the

[05:01:45] chance to make sure our new board members know that the one thing you should know is that she she helped the powers that be decide to shift it all over to us so uh mr rotherham when you were on this board previously you didn't have the opportunity to do so much early childhood as you and all the rest of us will have to do now so we're all learning along the way but she's you've led us along gracefully so my question is not to what you actually gave us today but I can't resist since you're here to ask how are we on recovering our our availability of care

[05:02:22] since the pandemic you've in prior presentations showed it showed us what a drastic curtailment of opportunity of slots across the state we had during the pandemic are we are we back are we close to back where are we we are generally speaking back or more than back so our enrollment and the Virginia Preschool Initiative is back to pre-pandemic levels.

[05:02:46] We are working closely with Head Start to get them back to full enrollment this year. Our child care subsidy program prior to the pandemic was around 20,000 children, and we're right now over 32,000

children. So really significant growth, I think largely in response to the need to support families re-entering the workforce.

[05:03:08] I will say when we looked at some of the rankings in terms of bringing the workforce back, at one point Virginia ranked 38th in terms of women in particular returning to the workforce. And so we continue to part, we hope this suite of improvements to child care subsidy program will help enable more working parents to return to the workforce, namely women.

[05:03:32] But generally speaking, Ms. Holton, across the board, we are at or above pre-pandemic levels for enrollment. Thank you. Okay. Anybody else? If not, I think the recommendation was to approve the item.

[05:03:48] Yes. From the superintendent. Is there a motion to do so? Second. Moved. Thank you, Dr. Mann. Is there a second? Second. Thank you, Mr. Hanson, this time. All those in favor, signify by saying aye. Aye. Any opposed?

[05:04:04] That carries. ms conway item f first review of the comprehensive revisions to the general procedures etc excellent thank you so the next item speaking of mrs holton the some of the additional responsibilities that come your way as a result of the 2020 early childhood law is related to health and safety in child care so in addition to overseeing the child care voucher program you all are you are also now responsible for overseeing our health and safety licensing for childcare including family childcare childcare centers faith-based preschools and other similar facilities all in accordance with state law so you don't

[05:04:43] decide who is licensed you just once we that's what the state law says it's just what those regulations are for those entities that need to be licensed or registered overseeing license is licensing is really important so that enables this body to speak with one voice about health safety and learning expectations for all programs but specifically our publicly funded programs and so as we increase access and seek to strengthen quality it's critically that we do it in a way that we know that sort of the health and safety and learning expectations are consistent across the board and as i noted earlier that we can hold programs accountable for meeting these expectations

[05:05:22] please note this is different from teacher licensure so these are the these are the health and safety requirements for child care facilities we are licensing sites or facilities not people so this includes items like teacher child ratios hygiene and cleaning expectations safe sleep practices for infants and toddlers and even regulations on diapering for point of reference we have about 6 000 sites statewide and they range in size and scope from voluntarily registered family child care homes so this is sort of very small family child care in people's homes large centers that serve hundreds and hundreds of children. Birth to five as

[05:05:59] well as camps and after school. We have roughly 120 staff who work in regional offices across the state and their primary responsibility is to go into these sites, physically inspect them according to the regulations and then look at their files as well when you think about things like background checks. When we moved licensing from the Department of Social Services to the Department of Education we kept the regulations as is and then agreed that we review them from top to bottom and so today marks the first step in this process that said the regulations before you today are not all of the health and safety regulations want to make that really important what we are asking for

[05:06:35] for approval for first review is just the general procedures and the background check and I'll explain what those are in a second but when you think about all of the things I described in terms of the teacher-child ratios all of that that's more to come I'll talk in a second about extensive work that we're doing with stakeholders to review those. But the general procedures are just the parameters around the application and licensure process. So things like who has to be licensed, what you have to do, the fees you have to pay. A lot of this is in direct response to what's in the code of Virginia.

[05:07:07] So again, this body doesn't get to decide which entities have to be licensed. The original promulgation for these regulations was 1984, and we haven't really made substantial updates since them. The revisions in front of you today tried to remove any of the sort of redundant or unnecessary language if it's already covered in the law and we don't need to repeat ourselves, we've removed it. We've only tried to add language where needed for clarification and then we sort of combine both general procedures and background checks. Background checks is a unique kind of phenomenon within the world of early childhood because, I want to make sure

[05:07:47] everybody's aware of this, that the federal child care child care and development block grant, through that block grant, the federal government sets very specific expectations for criminal background checks for child care. And states either need to follow those expectations or face financial sanction. In turn, most states, including Virginia, then end up codifying many of these expectations in their own laws. So you not only have federal law that we have to comply with and we have state law that we have to comply with and then beneath that are our regulations historically we've used these regulations to help operationalize the federal requirements although that

[05:08:24] does end up where we have places where we have repeated ourselves in federal state you know federal law state law and regulations and that can be sort of both redundant for providers as well as if something changes it then creates a little bit of a challenge in terms of trying to align it across the board and And so what we are doing is actually streamlining and removing, um, many of the background check regulations where they are already specified in federal state law. So that doesn't mean that they're no longer applicable. They're still applicable for programs, but we have less repetition across those various, uh, sources of law and regulation. Um, so 90% of what our

[05:09:03] current regulation was, was really just repetitive of what was already in federal law or in the code of Virginia. And so we are removing that and then taking the 10% that was left over that wasn't covered and then combining that into a kind of a general procedures. So ultimately streamlining it.

[05:09:21] So that's what's in front of you. You'll see that there's quite a lot removed, but we've taken these multiple chapters and streamlined into a single replacement chapter. We reduced from 19,760 words to 7,379 words, which is roughly a reduction of 60%, without reducing protections for children or educators.

[05:09:46] And I think that's really, really important. I don't want anybody to take away from this conversation that somehow we are lightening the background checks or reducing kind of our expectations around certifying that individuals do not have a criminal or sex abuse or child abuse history.

[05:10:03] Like, all of that is very explicitly spelled out in federal and state law, as Ms. Creasy and others can attest. But this is just a streamlining of the materials in order to make sure that we are very clear with our 6,000 providers across the state.

[05:10:19] And again, this is only the beginning of this process. So we, you know, there is hundreds of pages of other regulations specifically related to the day-to-day health and safety that we will bring to you in the future. Right now, we are in, I think, our seven of nine meetings with a work group of practitioners, pediatricians, experts, and we are systematically, chapter by chapter, going through separate health and safety regulations before we bring them to this body.

[05:10:48] But today, it's just about the general procedures and the background checks, much of which is already spelled out in either federal law or code. We have, like with many things we've done, shared this at each step of the way with our stakeholders, and we received an endorsement from our Early Childhood Advisory Committee.

[05:11:06] We shared them an overview of what we were trying to achieve in May and then received their endorsement in June. And on behalf of the superintendent, present to you for first review the general procedures and information for licensure and background check regulations for child day programs and family day systems in Virginia.

[05:11:24] Thank you very much. Are there any comments or questions? Yes. Dr. Mann. Hi there. Ms. Conaway, thank you for all of the great work you've been doing in this regard. I did have just a couple of really quick questions, and I will certainly follow these up because I don't know if you have the code in front of you, but I did wonder about the interpretation of under-prohibited acts. There is item K that reads, failure to notify the superintendent that licensee has been convicted of a barrier crime as identified in code or is the subject of a founded

[05:12:04] complaint it made me wonder who was the subject of that because of course individuals are commit barrier crimes and are um through the background check process made eligible or not i couldn't determine who was supposed to do what there so i think there needs to be some clarification brought to bear around the intent to make sure that's clear for child day programs yes right

[05:12:39] i just couldn't parse it it's item k under the prohibit prohibited prohibitive acts got you yes it's my understanding that would be the kind of the provider entity but i will clarify that great and then um there was very helpful language and i i mean this the reread of this thank you it's quite clear and you don't have to consult with legal counsel to really make sure you understand exactly what the code says.

[05:13:08] So I really do commend you on that. But on the due process side, I wondered if we could maintain a reference that when it comes to the Administrative Procedures Act, I mean, there is a lot there in that section of code.

[05:13:26] And one of the things that was helpful in the language that's been repealed was that the procedures that entities would have to follow if they do find themselves needing an appeal that procedures were specified it just makes it really easy for people to know what they need to do i mean when you open up the code it's a lot there to figure out what applies to to to the provider to the child day home in that instance i just think that would would be a helpful thing to maintain.

[05:14:01] - One thing we could consider, Dr. Mann, and I know this came up because we have, and we've done it both in looking at these regulations as well as the health and safety regulations, delineating what should be in regulation and what should be in guidance, and the extent to which there are sections of our regulations that individuals and groups found valuable because it specified what to do in a particular circumstance.

[05:14:29] whether or not in this situation we could, you know, sort of doing a one or two pager on guidance so that folks know here's exactly what you need to do is something that's been suggested. I know similarly in the health and safety regulations that we will bring to you, there were other things where we had put guidance in reg and our attorneys were advising us we needed to remove it from that, but we still have an obligation to put it out there so folks are clear what to do or if we're advising certain practices that we've got a means for doing that.

[05:14:58] I think that's a good compromise on due process, especially. I mean, I took the language to mean that there are specific things that one can do as a part of appealing a situation, and I just want to make sure that that's really clear for people.

[05:15:18] Because code can be complicated, and engaging legal counsel every time you've got a question about something for businesses that are, as we know, not necessarily well-funded and supported. It's just helpful. So I agree.

[05:15:34] And I think also making sure that people are very clear on their ability to do that because I'm not 100% sure. And I would say that probably others would see nodding would agree that they are not clear, right? That they actually have this process, right? Yeah. Great.

[05:15:49] Ms. Creasy. So thank you all. you know how much i enjoyed working with you even though it was a labor of love on um all of this but i will just tell you that this was part of the discussion um we had a number of providers when we started talking about um really just kind of how difficult it is to be working at a center and going oh my gosh i can't figure out from code to regulation and exactly what am i supposed to do can we just make it cut and dry and so we did have a discussion you know about creating a really

[05:16:25] strong guidance document but i will say that i do think that we didn't talk anything about adding that appeals process to it so i appreciate that comment but there was also one comment in public comment that i'll just take a moment to bring forward that i i did think was was a That's a good point Dr. Crouch, Myra Crouch came and spoke.

[05:16:50] We are in Virginia working to really elevate and respect and value the nature of the work that's done in early care and education as we are putting forth a uniform measurement system and everything that comes with that.

[05:17:06] One of the things she mentioned was just the reference to the entities that are providing the services child day programs and we have been working very very hard to to help people understand that days don't take care of children right and i don't know what latitude we have these things are in code but to just really think on that is there an opportunity as we undertake this effort to revise language to perhaps more appropriately reference the work that we are striving to

[05:17:40] professionalize given the expectations that we have um for entities that take on the responsibility of educating and caring for young children and so i thought that was a very apropos statement to make and we are at the beginning of having a chance to look at language and so i i think that's worth calling forward no if ever my spouse uses daycare he knows he pays for it so um no absolutely recognizing these individuals as educator and recognizing these as child development work here

[05:18:13] in education centers is very important anybody else if not thank you so much the board's got it on first review uh item g first review of proposed edition of board guidance on the applied studies diploma dr hollins good afternoon president gecker board member superintendent balo i'm dr samantha marsh

hollins i'm the assistant superintendent for special education and student services here at the virginia department of education it's nice to see so many new and familiar faces today it's my pleasure to bring to you a presentation on guidance of uh proposed

[05:18:53] adoption of board guidance on the applied studies diploma today and so i'm just going to give you a quick overview this is something we haven't had the opportunity to talk about in quite a while so just a reminder that a lot of the work we're discussing as it relates to this board guidance came from a legislative mandate that stemmed from the 2020 jlark special education study that was published in december of 2020. this action will actually wrap up one of the two remaining recommendations that the agency still has left to implement from the 27 total and so you can definitely see we've been making quick and efficient progress on ensuring that each of these recommendations are implemented the applied studies diploma is a state recognized diploma here

[05:19:31] in the commonwealth of virginia that is used for students with significant disabilities students iep teams determine students specific goals and objectives along with a required transition plan for post-school outcomes and noted support and services that can bridge the gap to adult services many of you probably work with constituents particularly our parents who struggle with that cliff after graduation and ensuring that their students are appropriately hooked up with organizations and state agencies that can support that next stage of their life the standards of accreditation specifically mention diploma options of one of which is the applied studies diploma the

[05:20:08] goal for our soa language is for students to receive obviously a standard or advanced studies diploma and most do. Only approximately two to three percent of the graduates each year are students with disabilities who are awarded an applied studies diploma. Over the last five years this number continues to decline due in part to the guidance that is offered by the department that ensures flexibility within the confines of the rigor of graduation requirements for a Virginia diploma. The applied studies curriculum map that you've received today has received national attention and has been embraced by other states as a comprehensive approach to inform

[05:20:43] instructional planning for students with disabilities. The curriculum map areas include a guide for use and implementation and cover the content areas of English, math, science, history, and social science, employment, and independent living. As with any resource provided by the Department of Special Education and Student Services, it's equally important to ensure that we provide understandable and accessible resources for parents and families. You'll also note the accompanying document that's titled Understanding the Applied Studies Diploma is also included to assist families with understanding everything they need to know related to this specific diploma

[05:21:19] option the doe website also hosts a four-part asynchronous webcast on the applied studies diploma that includes an overview a review of the curriculum map guide and competencies a module that's also focused on instruction including evidence-based practices and predictors for post-school success and finally a module that details the plan and report in order to ensure successful student outcomes just as important to quality implementation is the support and technical assistance that we provide to our local school divisions to ensure fidelity and that staff are aware and able to use this resource as it's intended it's been a pleasure to work with an array of school divisions during the earlier two years both last school year and

[05:21:57] the school year prior to that to work on implementing this guidance boots on the grounds hand in hand with teachers administrators parents families and their students as with any new initiative that impacts students with disabilities the department will ensure the appropriate guard rails are in place the department will actively monitor the use of this guidance to ensure the implementation will encourage high expectations for our students with significant disabilities while ensuring maximum flexibility of iep teams to support students as they pursue the goals that they have both within the educational system and following the department will continue to rely on federal guidelines technical assistance monitoring and utilization of the virginia alternate

[05:22:35] assessment program to ensure that all students with disabilities have access to high quality instruction materials supports and the opportunity to pursue all diploma options that are available to non-disabled students and will continue to support school divisions and partners to ensure that parents are involved well informed and included in all decision making related to diploma options for their students this final slide details the next steps for your subsequent review and at this time the superintendent recommends for the board to receive this guidance for first review happy to answer any questions or clarify any points there are any

[05:23:10] questions i think this is terrific and thank you for the great work um just being a new board member in the last two meetings we've had just some of the concerns that we hear from the public just um generally about special education and having um a special needs individual in our family that we um she's now an adult but it's been a challenge i just in terms of community thoughts on this and where what type of input did you get and yeah that's a great question and this guidance

[05:23:49] is actually something a little new and different than probably you're used to dealing with typically we bring this guidance to the board kind of fresh off the presses with some initial stakeholder feedback it hasn't really had some legs in the field but this guidance has actually been existing in the field it's been something that we field tested over the previous two school years which have definitely been in challenging circumstances and this guidance and the support that it provides to our teachers and i think the corresponding educational materials for our family have been extremely well received in some of our most challenged divisions but including some of our more successful divisions and with a wide array of urban suburban and rural populations and so

[05:24:26] i really feel confident about the product that we're putting forth for the board's review and the fact that it's been vetted by all of the stakeholders that have a hand in this really important process of making sure that that that that final piece of that puzzle comes together for our students and families and there's a lot of work that's coming up in the general assembly including a study from the commission on youth this year on transition focused on 18 to 22 plus that i think really speaks to the handoff that happens from our k-12 system to our adult services which is extremely challenging for our families and so excited to talk about that in future

[05:24:59] discussions as well a follow-up question thanks so much for that response you mentioned that there's a system that's being put in place or will be put in place to support monitoring maybe you could talk a little bit about how you're going to uh sort of understand what the what the uptake and the follow-through is on utilizing the guidance to accomplish the goals that have been set out absolutely dr man you know i i realized that we talked about one of the department's special unicorns right before i came up here which is early childhood however special education student services is definitely the most special unicorn that you will come in contact with and that's

[05:25:35] due in large part to the incredible amount of oversight and monitoring that we have to conduct as part of our responsibility here at the state level which includes federal guidance and regulations as well as our own guidance and regulations here in the state and so this program has been well implemented in our existing monitoring with school divisions which happens every one of our school divisions receives on-site in-depth monitoring once every five years however this year we're also undertaking a reignition of our monitoring of the virginia alternate assessment program which which you can imagine that a lot of the students we're talking about for this diploma option are also utilizing our Virginia alternate assessment program, our standards that are aligned for students with significant cognitive disabilities.

[05:26:15] And so we actually drill down to the student level. Each of those students that are on the VAP track and seeking this diploma option, we do a deep dig on that local data and we follow up with local school divisions if we notice anything. For example, if a disability category doesn't seem to mesh with the guidance that the department has put out.

[05:26:31] If we see a student that's taking a little bit longer graduate from a certain grade and correspond and move up through the system and so not only is this worked into our monitoring which handles about 25 to 30 school divisions every year this year we're actually monitoring an additional 66 of our divisions through the VAP overuse process as well and so if you think about it this year we're actually monitoring close to 90 local school divisions and specifically on the track of their students with significant cognitive disabilities from a data standpoint just is it a bell curve of the 18 to 22 year olds and when they get their diploma or is it more close to 18

[05:27:11] to 20 or? You know, the data for our 18 to 22, our postgraduates as we identify them is really stable. It's not a bell curve. We don't notice any huge trends. For the majority of the students with specific disability categories, you can imagine much more likely to be students with multiple disabilities, students with intellectual disabilities, students on the autism spectrum, we do see them making use and we actually purport them making use of those additional years of eligibility to work on some of the things that you see in this guidance that you probably don't typically think about.

[05:27:39] But as parents, you definitely think about things like employment, independent living, safety, socialization. The extra years of eligibility are provided so that students that have more significant needs can receive direct, explicit instruction and exposure to using those skills outside of the classroom.

[05:27:56] Because if you really think about it, our kids spend such a brief time with us in the school setting. really need to make sure that they are provided the best support in the most appropriate context for life after school I do have a question so this applied studies diploma it may it says may or may not may not qualify a child for higher education does that means that it's not accepted in community colleges or higher institutions of higher learning yeah that's a great question it actually does mean that it means that for many of our higher ed institutions including our community colleges including federal government

[05:28:35] student aid this diploma option is not technically recognized by them however the information and the plan that is developed as a result of this particularly the focus on secondary transition is a document that can follow a student to have a contextualized conversation about supports they may receive in something like the community college setting in order to participate and take classes and we have a variety of demonstration programs across the state that are doing just that saying that even our students even though they're not leaving school with a standard or advanced studies diploma that should not bar their interests and their entrance

[05:29:08] or their ability to take college level courses and so it says create an academic and career plan on one of your slides is that something that's that is available is that yes that is actually a requirement for all students in the commonwealth of virginia beginning in middle school however the academic and career plan is much more detailed for students that require additional supports in some of these other content areas and has that had any change for you know that's a great question I don't know if I would say that it's had a resultant change but I definitely think it's increased the conversation that we're having with students as early as possible on what

[05:29:45] they're interested in and how we can provide activities and opportunities for them to interact and programs such as extended learning opportunities such as programs that are available from higher ed institution and programmatic partners and the communities that serve our students and so while i don't have hard data i can definitely tell you that the conversation around things like post-secondary supports for students with intellectual disabilities has definitely increased um over the last five years immeasurably and you mentioned that this has already been implemented for a couple of years do you i'd be very curious to see a new measure that you mentioned that there have been significant changes or growth

[05:30:24] and so may i'd be interested to see the data absolutely and i have actually the hard data in front of me we have seen a reduction in students that are actually attaining an applied studies diploma right which usually when you think reduction you think that's that's not a good thing but in this case it means more of our students with disabilities are gaining a standard or advanced studies diploma and so we want this number to be as as small as possible and we truly meant for the students with which it was designed for students with intense and unique disabilities so that this program serves as a wraparound support to help them in that next stage of life however those who absolutely

[05:31:01] need those critical support educational you know system for students with disabilities they will continue to I mean I'm just wondering what the process is to to say okay your child doesn't qualify for this versus your child would receive this yeah it's definitely an IEP team decision which is the most important part of what we talked about in planning for students with disabilities this conversation centers around what students are accomplishing

[05:31:39] what what track they're on but also can provide flexibility so for example we have students that may struggle in one specific content area, right? Say mathematics, for example. There are so many opportunities for flexibility to help ensure that students with disabilities have accessibility to high-quality instruction and can remain on an SOL track to get a standard or advanced studies diploma. However, for students where this is the appropriate track diploma for them, IEP teams are able to have a contextualized conversation about the intensive supports that that student and their family requires in order to be successful, not only during graduation but in taking that as kind of the next step right does that mean i'm

[05:32:18] seeking competitive employment vocational training engagement in post-secondary education whatever that looks like for that student and of course whatever their goals are for themselves as well okay i mean so i've only been on two board meetings but i've watched a few board meetings prior board meetings and there's there are always advocates talking about the uh breakdown of uh you know for for special education children breakdown of uh standards or or the lack of

[05:32:52] response um so that's that's something i don't have much understanding for but it does concern me So I'd be very interested to learn more about that in the future as to what, why there's just so much concern from parents about it.

[05:33:15] - Yeah, and I'll be honest, you know, the concerns that parents have for students with disabilities are similar to the concerns that parents have for neurotypical children, right? And you all hear a variety of those concerns. The one thing I will add is that as the lead for the Department of Special Education and Student Services, happy as always to provide the board with any additional context it's our job to ensure that as parents or advocates or constituents reach out to the department either through a board meeting or through an email or telephone call that we respond to them directly and I can assure you that for everyone who stood up and spoke today and will speak to you in the future we will make

[05:33:50] that same commitment you mean you're gonna be reaching out to them it's myself and my staff if that was my job I'd be nothing on the phone all day but but I do have a very experienced team. This is my 18th year in special education and I pride myself on being able to collaborate and ensure that positive relationships, where attainable, are happening for our parents, our students, and our school divisions.

[05:34:17] - Okay, thank you. - It might help. Dr. Siebert, would you mind talking a little bit about the tension that occurs at the local level on this issue because the department's got a role, but a lot of the people who come before us are not really talking about the department's role as much as they are the local role and also you don't mind alan i don't don't mean to put you on the spot also yes there's obviously the state role and local role but this also happens in the context of the most federally

[05:34:49] regulated program that there is and so the the the federal regulations are just abundant so are the procedural safeguards. You know, there's really robust procedural safeguards for families and children to follow, to go through mediation process, etc. You know, we all, all of us probably have found ourselves losing our perspective when we're dealing with our own children. You know, so with our own children, it's just, it can't get any closer to us than that. And then, especially when our children are struggling, now, you know, our parent instincts get even greater. So it is a

[05:35:28] very difficult area, but there's lots of procedural safeguards and really robust support available. And even, you know, advocates help people navigate those processes to make sure they can go through mediation and seek to get to an agreement that they choose. There's also different reporting mechanisms. You know, the Office of Civil Rights is frequently involved at the federal level. And so there's a whole, there's a host of tools there. What I was just kind of just keeping my comment, the comment i want to make what i'm really excited about here is a number of years ago i had a colleague who's now since retired who as a superintendent of another division in virginia

[05:36:04] also a parent of a an older child with significant cognitive delays he was just very very conflicted because he you know as a superintendent was trying to lead the school district toward you know minimizing how many students are in the bat program trying to really focus on getting those sol skills but he and his wife are also on a journey that really their desires for their daughter was some independence in the home to be able to navigate the community safely you know just really important skills so i i think that the i'm sympathetic to is the challenge the number of children in the vat program the number of children getting a classized diploma needs to be

[05:36:43] small but it needs to remain appropriate that's the whole you know appropriate part of a free appropriate public education there are children for whom the time at school and the time beyond regular graduation date is best focused on them getting the skills they need to increase their level of independence to whether that's you know to go out and get a job on their own to live on their own or to live in their home

safely and navigate their community uh these these are students with really significant disabilities and that just that that puts extra burden and stress

[05:37:19] on on everybody involved so i i think this is really good threading the needle um this opportunity needs to be there but it needs to be narrow but we need to make sure that we do not uh you know prevent children from accessing it if it's appropriate yes i just wanted to say that um i have worked with dr holland's office and staff for a number of years now and no stone goes unturned

[05:37:57] in ensuring that anyone in the public any number of those who have issues in schools whether they are public or private um dr hounds team is on it and they are the support mechanism for both in in many cases the local school division and the family as they navigate together whatever hums of the things that we hear in public comment so um you know everybody says there's two sides to

[05:38:32] every story and oftentimes you know sam's office finds that in between and gets the situation right for the student so it a lot of what their office does is the uh resolution department so um i absolutely wholeheartedly um want to thank you for all of the work that you and your team do every single day for the students and their families in this commonwealth who have children in their homes or that they love that have cognitive disabilities that you all work for

[05:39:09] so lovingly every day so thank you thank you so much that's our job it's our honor to do it Ms. Holton. I concur. I would just one thing I would raise for those who may not have seen it.

[05:39:26] J. Lark, the legislators investigative arm, did conduct a significant review of special ed in Virginia three years ago by now. It was published in December of 2020. It was undertaken beginning in the 2018 school year and fulfilling itself during the summer of 2020. So time do fly. But Anyway, made an extensive investigation with extensive recommendations and did raise up some issues that we need as a Commonwealth to be addressing and Ms. Hollins and her colleagues, the prior superintendent, this superintendent, I know are hard at work on making sure we meet those requirements so that we can make sure

[05:40:05] we're serving all of our students well. These guys are doing great work, but this is really tough stuff to help serve these kids with such severe needs, and families -- it's hard. It's hard for families to raise children with such big needs, and so emotions run high. And anyway, I just wanted to make sure everybody was aware, if you want to delve deeper into these issues, that JLARC report is worth an issue and the Department's response and actions in response. And we've heard briefings at prior meetings on you all's efforts to address those issues, and that might be worth repeating

[05:40:40] At some point if folks are interested that's correct and I think we might be in a great position to do that given as I mentioned at the front of the presentation that your final adoption of this guidance will fulfill recommendation 26 out of 27 for that report and we'll see number 27 fulfilled in our December 2022 report to the general assembly on our statewide strategic plan for transition for students with disabilities so my new year's present to you for 2023 will be a completed implemented recommendations from the JLARC special education plan it's not a race but if it were we'd be winning

[05:41:11] I would just add, I'm sure that Dr. Hollins and her team would provide one-on-ones with everybody interested. Special education is profoundly important and just regulatory significant.

[05:41:30] There's just so much there that it's an area to learn and grow in, and I'm sure anybody interested, they do great training. All right. Thank you, Dr. Hollins. Thank you.

[05:41:46] Item H, First Review of Guidelines for Implementing New Appropriation Act Provisions for Literary Fund School Construction Loans for the Biennium. Good afternoon, everyone. President Gecker, members of the board, Superintendent Bailow, and I think we're queuing up.

[05:42:06] Yeah, there it is. Just a short PowerPoint on some of the key provisions of the proposed guidelines. A quick overview of the literary fund, and these guidelines are written to facilitate implementation of very recent enhancements to the literary fund that are contained in the new 22-24 state budget.

[05:42:37] Ultimately, this will require, under separate legislation, a regulatory process to implement some of these same provisions. And luckily, they align well between what the General Assembly put in the budget and what passed in separate legislation.

[05:42:54] But more immediately, the guidelines are needed to begin the process of implementing these new provisions and facilitate issuance of loans with the authorization the General Assembly made for the biennium, which is $200 million a year.

[05:43:16] the board is authorized to issue and direct loans in 23 and 24 um quick breakdown on the literary fund as you know uh it's a standing public school uh fund for public uh public school purposes the primary purpose of course it's outlined in the uh code your regulations other areas of the appropriation act it is uh public school construction and renovation uh is a primary purpose and uh there there are complementary uh provisions in the act the code and your board

[05:43:51] regulations that have to be considered in uh implementing the program your your statutorily responsible for the uh management or administration literary fund the state treasury department uh is is the uh accountant uh and a minimum balance of 80 million uh of cash and assets in the fund have to be maintained that's that's important in terms of state level decisions on uh how funds are used at any uh any fiscal year uh from the literary fund again the chapter two current budget um

[05:44:28] provides the 200 million dollars per year in loan authorization and really again the the proposed guidelines are really written to the four uh provisions at the bottom part of the slide uh namely uh establishing an open enrollment process a snapshot in time in which school divisions and localities would apply for loans for decades there's been uh not an open enrollment period but a waiting a rolling waiting list uh in the general assembly uh expressed a desire to have

[05:45:04] more of a one-time open enrollment period per year when there's available cash for loans number two major expansion of project loan amount that would be available from 7.5 million to 25 million which is a huge benefit on school projects and that amount has not been increased for many many years

[05:45:30] So thirdly, in conjunction with the Treasury Department, establishing loan interest rates that do move or are benchmarked in some way reasonably to a market index rate. And we have recommendations there.

[05:45:47] And then a sweetener or a loan add-on, an incentive for school consolidation projects where there could be up to a $5 million add-on per project in the case of consolidation. Again, Senate Bill 471, which passed and the governor signed last month, but does have a delayed enactment of several months, does contain similar provisions.

[05:46:17] However, it will be sometime after the new year before that bill is actually fully enacted and in effect. But it does require these provisions to undergo a regulatory process to be implemented in your regulations.

[05:46:40] So there will need to be a future regulatory action initiated. But again, these more immediate guidelines will serve to implement the similar provisions that are in the Appropriation Act. And then just moving just a couple of slides on the four or five provisions that really underlie the proposed guidelines.

[05:47:03] Applicability, because we're initially tying these to provisions in the 22-24 Biennium Appropriation Act. and each appropriation act stands on its own for the biennial period.

[05:47:21] They're written to, in effect, be binding through the end of the 22-24 biennium. Any subsequent changes made in the language, which could occur in the next two general assembly sessions during this biennium that significantly affect the guidelines we would we would bring the revised guidelines back to you so we're aligned in conformance with any appropriation activity

[05:47:55] and then of course we've got to consider standing code sections and and your existing board regulations in alignment with these new provisions. Again, down the road, a future regulatory process per Senate Bill 471. And then secondly, the annual open enrollment process, again, moving away from the standing first and second priority waiting lists, which have existed for several

[05:48:31] decades as a means to line up and prioritize loan order and loan requests from school divisions. This would be during a period of time announced by the state superintendent, the period in which each fiscal year school divisions would submit applications, essentially submitting the current online application with some changes to conform to the new provisions. And it likely would be uh eight to ten to twelve week um uh time frame for the application period but the uh the proposed

[05:49:10] guidelines um uh leave that to the state superintendent to set that particular timeline we wanted to keep that uh keep that flexible um uh applications of course not submitted by the deadline could could be disqualified all the normal uh logistical things uh related to uh funding applications a key uh provision in the appropriation act related to application submission and review of applications is funding priority based on the composite index of of the school

[05:49:47] division and the interpretation there of course is that primary funding decisions for loan request would be made based on the school divisions composite index those with less ability to pay more less fiscal ability more need would be given priority during the during the application period however in that last bullet there the department would be able to

[05:50:26] apologize for not advancing the slides and that last bullet there we do leave some flexibility for the board in addition to prioritizing loan requests based on the composite index we do leave some flexibility and this does tie to existing code and regulatory provisions for the board to consider other critical needs and factors such as health safety structural issues school damage from natural disasters that could be considered as well as the composite index

[05:51:00] and then another major uh provision in the appropriation act again the the increase in the loan amount uh from seven and a half million currently in the in the code to 25 million uh the first increase uh in the per loan amount uh in in probably 20 years uh and again just just aligning the guidelines directly to the appropriation act language uh and of course um uh that's subject to

[05:51:32] available funding uh and in that second bullet there some provision uh for the board um uh to um consider um you know equitable loan funding if if there are projects with similar circumstances needs and composite index value, some ability to allocate below the $25 million for equitable distribution.

[05:52:01] And then the last key policy provision in the Appropriation Act that we have worked into the proposed guidelines is the idea of the market index rate benchmark and aligning that with, with an interest rate, um, uh, schedule, uh, or structure. Um, right now, um, the, uh, your regulations dictate the, um, interest rates, um, that are provided on, um, uh, literary fund loans

[05:52:37] between, uh, two and six percent based on the school division's composite index. Uh, the general assembly language required as a starting point to begin with some type of market index rate that would drive the decision making, but not necessarily solely that rate because it indicated to benchmark rates to a market index in some interest rate structure.

[05:53:10] And that's what we've tried to do in conjunction with the Treasury Department, who we consulted with in the selection of an appropriate market index rate. And what they recommended, and we have written in the proposed guidelines, is the 20-year, it's a Bloomberg municipal bond callable rate index.

[05:53:36] It's very common as a market index for municipal bonds and public finance borrowing, and in that first bullet there, the metric proposed is a 20-year Bloomberg callable municipal curve rate.

[05:53:55] Very, very common in public finance as a market rate index for state bond issuance and municipal bonds. That rate currently is about 3.4%, and like all interest rates for the last several months or the last year has been increasing.

[05:54:17] But that would be the starting point for an interest rate structure for literary funds tied to a market rate mechanism. Again, your regulations currently allow for rates between 2% and 6%.

[05:54:36] The new Appropriation Act language does go on to say that it does direct a 2% cap for school divisions with the lowest composite index values between 0 and 0.29.

[05:54:54] And so with all of that in mind, your current provisions, the market rate index, and the General Assembly creating some precedents for a fixed rate, at least for the lowest school division composite indices.

[05:55:14] On this slide, we essentially lay out what we would propose is the interest rate structure. Again, aligning back and pulling in your existing regulations that permit rates from 2% to 6% array to the school division's composite index, but also pulling in the Bloomberg Municipal Rate Market Index that's been selected.

[05:55:47] And essentially, as you see, a raid by composite index level accelerating upward is ability to pay increases, a mechanism where the allowable rate on an issued loan during the open enrollment period for applications to meet all other requirements would be the lower or the lesser of the 20-year Bloomberg rate or the existing board rate that's currently in regulations tied to the index.

[05:56:25] And, of course, by Appropriation Act authority, the very lowest composite index division, zero to 0.3 or up to 0.29, again, are capped in the act at 2%, but would be allowed to flow below that if the Bloomberg market index rate, if we were in a low interest rate environment again, possibly did drift below 2%, they would be eligible for that lower market-driven rate.

[05:56:59] So, again, essentially the proposal here, benchmarking to a market index rate that's commonly accepted, aligning to your existing regulations and using the lesser of the two.

[05:57:15] And then in the event, a backup rate in the event the very common Bloomberg rate was not available or discontinued, a secondary rate recommended by Treasury is another municipal bond rate, MMD, AAA curve is a secondary benchmark rate that could be used.

[05:57:35] And then lastly, again, the $5 million incentive add-on subject to your approval for school consolidations does not have to be, not mandatory.

[05:57:52] An automatic $5 million add-on can be up to $5 million. Those decisions, of course, can be subject to available funding. And we've written in some reporting requirements to ensure school consolidation does, in fact, occur.

[05:58:13] Next steps, if the proposed guidelines are waived and approved, they would then go to the town hall for the usual 30-day public comment period.

[05:58:30] we would monitor any uh monitor any submitted public comments for review uh make decisions on including those in the final guidelines and then move move towards uh issuance of the soups memo to announce the new guidelines and the new um open enrollment process and then mr president the again the superintendent's recommendation is to weigh first review and approve the proposed guidelines thank you thank you uh any questions miss holton i'm sorry thank you mr

[05:59:08] dickey um um if i understood your last line correctly you're asking us to waive the superintendent's recommending that we waive first review on this and that's because you want to be able to start spending this money yeah yeah and and it's certainly these applications do take time they you know require the concurrence of the board uh concurrence of the locality um you know bond council review locally all those all those things with you know incurrence of of of local debt and and this is local geo uh debt that that school divisions incur when they when they are issued

[05:59:45] a literary fund loan so it does take time we want to try to move the process so i appreciate that that means i'm going to make sure i do understand what we're we understand what we're doing today so um uh and obviously there's increased interest in the literary fund because there's money um which there hasn't always been um if i there are a couple of things i want to understand and the first is if i'm correct in understanding how the open enrollment process will work you'll set some kind of time window and then you'll look at all the applications that come in during that window and if you have as i think i'm right and you can help inform me but the

[06:00:24] The anticipation would be that you might well have applications well in excess of the dollars available. Assuming that that's the case, the way the dollars would be prioritized is by LCI, mostly.

[06:00:40] So if you have low LCI divisions and higher LCI divisions, the low LCI divisions requests are going to be filled first. They will take precedence. Yes, ma'am. And then, so if there isn't enough money left over, the high LCI, the LCI determines both the interest rate and the priority for the loan.

[06:01:02] That is correct. And so it would be a matter of, you know, it's not who gets in the door first. It's if you're within this window and there's enough money for 10 projects, then the 10 lowest LCI projects are going to get funded and everybody else is not.

[06:01:18] Is that? That is correct. That is essentially the key factors. and of course we we have written in and they and again they're you know they do a line to other provisions some provision to provide some priority for health and safety issues so i did even for a school division that may have a higher composite and i saw that the the appropriations language had some general language about other critical issues and then the guide proposed guidelines have had some fairly specific language which all seems to make sense to me i guess on page three the hazardous materials significant building safety issues natural disasters etc that those could

[06:01:56] allow a school project to move up in the priority list and the way that would work would be that those schools would in the application process flag themselves as thinking that they think they meet one of those criteria and then you all would evaluate them and bring it to us for a decision is that that that's correct all right so uh recognizing that that the language about critical safety issues comes from the appropriations committee but the language fleshing that out hazardous materials significant buildings etc that's language that uh your department put

[06:02:31] together or is that from some different source or uh pulling essentially from existing code language and and regulatory language so it's not really new language no okay no not substantially no And then I think my final question is, again, recognizing that we're being asked to waive first review on this, have you and colleagues and or colleagues had an opportunity to vet these proposals with the proposed guidelines with the Virginia school superintendents and or VSBA, School Board Association, and or VACOVML, the relevant stakeholders?

[06:03:12] Well, you know, a lot of engagement with the Treasury Department, as we were required to do, um and you know as a trusted partner and just in many ways on on the literary fund um i will say not extensively because these are kind of fairly hot off the press um at this point we certainly can do that more intensive outreach with those stakeholders as we are in the 30-day public comment period anyway um as a compliment we would have the opportunity after the 30-day public

[06:03:48] comment to come back and tweak them if need be before they go into effect absolutely right so so i'm just reluctant to i mean this is technical stuff and i totally trust your judgment on it it is but i but it is stuff that matters this is going to determine whether a new school goes up in jurisdiction a or script jurisdiction b and so i hate to uh pass on those important decisions without the and i don't even know when this item was posted whether this these guidelines have been up for the text. Was it up for the full week in advance of today? But regardless what you're

[06:04:25] telling me, if folks have input and haven't yet had an opportunity to have input, they'll have one more bite at the apple between now and we'll have to vote on this again after the public comment period. I don't believe so. I think if they are waived, but it is a regulatory requirement to go through the 30-day public comment, but technically, with that action, waiver action, it would not be required to come back.

[06:04:50] My understanding, Kenton, I've got the AG here, is that the department would be required to respond to the public comment, to the commenter, and if there were something substantial, there might be changes, but it does not come back to us.

[06:05:09] Unless they need, unless the department sees the need for changes in which presumably it would. MS. Well, you can't change the guidelines that we've adopted without... MR. Do you know this answer? MR. Yeah. MR.

[06:05:25] So, because it's being posted as a guidance document, it would go on to town hall. But, really, what the 30-day period is to give the public the opportunity to make one of two objections. The first is that this is really a rulemaking subject to the full process, and the other is that it violates the state law or regulation. MS.

[06:05:41] Okay. MR. Okay. MR. Okay. guess can't correct me if I'm wrong but if that were the case that the the department would bring them back to the board before making substantive changes to the document yeah and we'd be happy to do that I mean that so you know so I guess then that comes back to my question about how much discretion is there in here you know if the terms of this are all dictated by the approach act and other statutory provisions filling it in you know the language that

[06:06:12] I was focusing on where you've defined out what critical needs mean, the language you've used to implement the LCI measure. If it's all basically all dictated by the Appropes Act, then I don't see as much need for public comment.

[06:06:32] But if there's some significant discretion that we've exercised, I'm trying to get the eye of, I see the superintendent association director in the audience. And, you know, is this something we need to continue over to next month to make sure that those who might have a view on how many significant amounts of money are going to be allocated between one jurisdiction and another have a chance to weigh in?

[06:06:53] Or is there really not any use to wait for that because anything they weigh in isn't going to affect it because it's all dictated by the appropriate act anyway? Yeah, I mean, the Appropriation Act language was fairly directive, although it left some parameters and guardrails.

[06:07:11] And so on the interest rate structure, the Act language was not that prescriptive, laying out what we've laid out here. Essentially indicated, you know, devise an interest rate structure that is benchmarked to a market interest rate.

[06:07:28] We think we've done that here in this approach where it's aligning to your existing regs, what school divisions we're always entitled to, but also pulling in and aligning to a market index rate.

[06:07:48] You know, that's a pretty favorable structure for school divisions because it's going to point to the lesser of the rates they would be entitled to under existing regs or the market interest rate.

[06:08:05] So not to say we won't have public comment on that. You don't think there's going to be any. So I would be happier had we consulted those important stakeholders. However, I think I'm correct in understanding, and staff can help me on that.

[06:08:23] But this was posted a full week ago on our board website. Yeah, I think the normal posting. We certainly haven't heard. I haven't seen it. There was a lot of public comment on a lot of things, but I didn't see any public comment. I can't promise I read every single word, but I'm looking at Emily.

[06:08:40] We didn't receive any public comment on this. All right. I thank you for allowing me to allay my concerns. I have no concern with going forward on it today. And we'll be glad to do that outreach, you know, some of the key groups that you've mentioned.

[06:08:59] Certainly before we do the regulatory piece. While the 30-day public comment period is occurring and do that direct outreach. Anybody else have any comments? Sorry. Okay. Seeing nobody, is there an emotional way of first review and adopt the item?

[06:09:20] I can make a very quick presentation.

[06:09:54] Yes. Thank you, President Gecker, Vice President, Dr. man members of the board superintendent baylow i know it's been a long few days so i will keep this short but we certainly appreciate all the attention for the work that you've been given for the benefit of the children and also for parents like me however we would like to direct your attention for just a moment to the business of how you go about your business we have some revisions and proposed revisions to the bylaws by which the board operates and those revisions are are very technical they concern two main areas of the virginia freedom of information

[06:10:29] act to which the board is subject um the first uh regards the remote participation policies um we recently had a new uh section of the virginia freedom information act go into effect on september 1st which governs remote participation and that alters the requirements slightly uh for how remote participation is used in situations other than a declared state of emergency all of that has been briefed. And again, all that we're doing is bringing this up to the code language to make sure that you all can avail yourself of the ability to participate remotely when the situation occurs. The second, since we already had this open, there were a couple of

[06:11:08] more very technical edits that we wanted to make or wanted to put before you regarding executive session or closed meeting laws under the Freedom of Information Act. All that we're doing is adding a couple of provisions to uh specify a little bit more um what must be in the motion that the board adopts to go into closed session what may be done in closed session and what can occur upon revening um or reconvening in um in public session uh we would like to extend just a brief thanks to uh our freedom of information officer here at the department rebecca westfall and also to

[06:11:45] Ms. Ramona Taylor with the Office of Attorney General for their suggestions and looking over this just to make sure that this is going before you in a way that complies with state law. The plan is to bring this back to you at the October meeting. The bylaws require that any amendment to the bylaws be approved on first and final review over two different meetings by a vote of at least seven members unless the proviso is that if all members of the board

[06:12:15] agreed to waive that provision good afternoon president gecker dr man members of the board and superintendent baylow i'm pleased to present to you today for first review the proposed 2023 meeting dates every year in september the board sets the dates for the next calendar year so that you as board members and the public can plan accordingly your bylaw set out that the board

[06:12:52] must adopt a tentative schedule for regular meetings prior to January of the applicable calendar year. The proposed 2023 schedule sets out eight meeting dates, including eight business meeting days and eight standing committee work session days, plus a one-day retreat during the April meeting. With this schedule, the board does not plan to meet the months of February, May, August, and December. Prior to drafting the schedule, these dates were checked against major religious holiday calendars as well as local school division calendars to try to avoid spring break and other holiday breaks following board approval the dates will be posted on the board's

[06:13:32] website and disseminated to the public the superintendent of public instruction recommends that the board waive first review and approve approve the proposed 2023 meeting dates

[06:14:03] see if we can work a new schedule and bring back next month with the revised i mean there's i appreciate the superintendent wanting to wave it today but it doesn't seem to be that urgency or am i missing something okay no no i mean yeah no we're going to do it now for some administrative purpose we'll talk it through here we just have to have this done before january by your bylaws so mr hanson did alert me to his um conflicts ahead of time but if there are other board members as well that have conflicts i know mr rotherham mentioned he may have one um mr hansen

[06:14:38] um so it is certainly a balance for us um to try to accommodate as many members as possible while trying to stick to some kind of schedule but if others have conflicts happy to have them and bring this back to you for final review in october again it may be that we can't move some of these i mean the desire is to stand traditional but if there are a few members who have issues or if moving to one does not create another problem we're happy to do that so when you get as soon as you can figure out what a new skiff might look like if you could send it out to the

[06:15:14] board so we could see if the new dates created problems yes sir no problem to do that i'm happy to huddle with the tv right afterwards plug it okay i'm happy to do that thank you hope that meets everybody's approval yes yeah i mean it just says i think it would be helpful to know exactly which ones you're looking at move because i've already got they all fit yeah that was like i couldn't believe in the outfit of my schedule so it was um mr hanson's conflicts were january and march um but i know that if we moved it one way or the other then mr rotherham had a conflict so i'm happy to kind of take everything into consideration and fit all the puzzle pieces

[06:15:53] together as best we can it might be a move for me just mean i have to move to remote participation but i'd just like to know what the move is before sure absolutely we'll we'll share that well in advance of the october meeting and then again if if the new dates propose conflicts please let me know okay all right thank you i'm with you yeah good afternoon good afternoon president gecker

[06:16:30] vice president man state superintendent balo and in light of our day today i will try to be brief as this is the last item on the agenda but um not want to not present some of our accomplishments and work around recruitment and retention of educators in the commonwealth especially as we most recently received the governor's executive order excuse me directives also focusing on recruitment and retention so i wanted to ensure that you are aware of our efforts

[06:17:05] and future plans surrounding the recruitment and retention of educators in the coming year. You should also be aware that we will provide an opportunity for you all to review the full strategic plan in the coming weeks as well as provide updated data as well. And so today we're really focusing on from the time I have been with the agency over the last year and kind of bringing you up to speed on where we are so i have the privilege of reviewing the department of teacher ed and licenture's efforts in collaboration with multiple departments and stakeholders in the

[06:17:41] development of a state strategic plan for recruitment and retention and again i highlight efforts today i would be remiss if i did not recognize key agency offices and staff that have supported our efforts in this collaborative effort i want to thank and recognize here in the room the office of data services director susan williams thank you for your help the office of research the director dr jenna rena as well as other staff from that office and one of our own newest staff members dr meg homer the educator engagement specialist who is with us today as well

[06:18:20] so high level my objectives is to really give you a preview introduce you to what is to come and to share some of the processes around data collection and what you can look forward to as we continue in this journey as well as benchmarks and highlights of some of the efforts that we are currently implementing next slide please and so as he clicks to the next slide it does highlight that we have proposed a multi-year process over the next three years again kicking

[06:18:53] off at 22 and align it with my arrival through 25 and at those three phases you see highlighted here on the screen highlighting on the screen highlighting on the screen thank you the three phases and continuous stakeholder engagement throughout primarily we have focused on phases

[06:19:25] one and two during this first year and here on the screen i'm highlighting as part of phase one we focus on a landscape analysis obviously on what data we have to inform the plan what data we would like to have as well as other opportunities for collaboration and so what we're sharing in november we assembled a small team to represent our state in a teacher licensure collaborative or the tlc i'll refer to invitations for participation and membership is reflective of division licensure hr staff educator preparation leadership faculty representation as well as

[06:20:04] other offices as well as staff from our department of teacher ed and licensure invitations were also extended to aptel members and board members and so you that are new also have been now formally invited to this collaborative as well you see highlighted here membership in the tlc extends across 19 states across very diverse political and geographical context the tlc aims to support participating states in revising teacher licensure and certification standards to incorporate whole child practices social and emotional learning and ensure alignment

[06:20:40] with science of learning and development just highlighting the work was launched and i would say continues to be supported by the partners you see on the screen primarily with the leadership of the learning policy institute and from that work just to give you high level it may be small but i think you also have this you have this information that you can access as well but through that work we've had an opportunity to work with various states and collaboration around the topics that we were discussing today and just wanted to bring a little bit of context and comparison

[06:21:18] But as you all can imagine, the comparison with our particular numbers, the particular definitions that are used by Virginia, the data collection surveys, and the time spans of those various tools, they are quite diverse. So I am cautioning all of us in trying to make really direct comparisons as if they are apples to apples because they are not. And so you can see if you had an opportunity to review this generally north carolina is the only one that when i was able to gather this

[06:21:50] information reflected present moment 22 23 data really and that only reflects 98 out of 115 schools in north carolina and then you'll notice tennessee and maryland like virginia reports on the last previous school year at the time again when this data was pulled and again the position definitions vary across these various states as well as the data and so you'll notice that some of the numbers may include all divisions and sometimes some divisions are not reporting at all and on the

[06:22:28] last slide again you see that comparison so i've tried to provide some percentage comparisons and you see that we're somewhat close again can't compare apples to apples but there is some comparison for virginia and north carolina but if you look at the total columns also there's some similarity about the number of teachers um ftees that we use in our state but again just to give you some context there next really again our joy has been to begin to launch the strategic plan

[06:23:03] entitled turning the tide i hope that we will be steering more at the state level now and really starting to impact the work at the local levels around recruitment and retention and so you'll hear the term turning this high and hope as we continue to elevate this you'll see this graphic potentially looking a little bit different with a little bit more spin from our communications team as you can continue to see this but we hope that this reflects really a framework for supporting and really underlying the work of our divisions our EPPs as well as other

[06:23:38] stakeholders around this process and the strategic plan itself is really driven by the majority of the work from a new advisory that our office created in early january for specifically a very diverse group of individuals or stakeholders from across the state across various regions constituents that we have been working with collectively to get to this point of today and so again i'm just going to be highlighting some of the components of the plan existing data and the processes we're using and the data we're using around the support of the strategic plan

[06:24:14] and highlighting and providing some state and federal initiatives next slide really kind of pulls out the goals there that we can see to reduce barriers for qualified individuals to enter the profession increase the number of candidates eligible to fill public school divisions hard to staff positions and strengthen strategies to recruit and retain a diverse highly qualified educator workforce and main strategies will be focused around policy and practice to make the careers in education more attractive and sustainable attainable excuse me

[06:24:50] and to implementing programs and practices to recruit support and retain highly qualified educators with an emphasis in our critical shortage areas and so we wanted to try to find to balance as you continue to hear more and more about the strategies activities and benchmarks obviously many of the divisions have felt that this is at a crisis level and so some of the strategies we try to balance strategies between short-term versus pipeline impact for the coming future and not to lose sight that the future is really our focus and the vision really should be

[06:25:23] predicting and leading us forward so the next slide just really highlights some of the individual work we're doing around again high level looking at either areas solutions based on collaboration and intersecting efforts with state and policy programming resources that either we or divisions would provide as well as grant incentives and looking across accountability or action items for EPPs for educator preparation institutions the state agency our agency and other agencies

[06:26:02] as well as divisions and so again looking across those four main areas of grants in terms of solutions programs policies and resources but looking for in terms of collaboration across ADP's state agencies and the division so we're at the local level and highlighted here again just giving you a little preview is specifically around the action item regarding the development and launch of a statewide marketing campaign and so part of our use of some strategic strategies with the esser funds last year was to engage a national marketing firm and so we have been

[06:26:40] working with them over the last six to eight months with focus groups various initiatives interviews etc and we are at the place where we hope to launch on october the first week of october a statewide marketing campaign for educators and to recognize the profession and to promote that and so you'll hear more about that but continuing to work through that process with our marketing firm as well as creating a standalone microsite that will be pushing and using the url becoming a teacher that will really be a one central location where individuals can find out more

[06:27:18] about the profession and be then directed to various resources depending on their pathway and desire there will also be opportunities for the development of additional creative materials that will be available for our division so again building that capacity at the local level as well so again just previewing a little bit of the strategy and also that october 3rd launch of the marketing campaign on the next slide really we wanted to emphasize one of our key data collection

[06:27:53] tools and it is the PEC or the position and exit data collection process and so this was a snapshot in October, the positions and exit survey data collection, excuse me, not survey data collection tool is unique and that it collects data at two points in time. What you see here was reflected when we were using this in the past several months. This was a snapshot of data collected at one point in time in October of 21. And you see, and this is some of the data that you may have

[06:28:28] heard or seen reflections over the last several months and so again the teacher vacancy rate is reflected here hopefully you have that as well that you can see the numbers up close highlighting them by region and noticing the darkness and this heat map which really is highlighting the top three we could say the top three are region eight one and two and excuse me and again highlighting that this is the inaugural administration of this so as we know there are often challenges with administering data collection for the first time working with 131 school

[06:29:06] divisions and their representatives to collect that data but again i believe this is a baseline and we are creating an authentic process that we will have faith in as we continue to build on this inaugural administration and again emphasizing that it now actually would have been implemented for the second or the exit piece of the end of the year recently most recently in august and so we're waiting for that data also now to be finalized and then will probably be publicized i think in november we talked about a little bit to sweep in the end of the year and to have actual

[06:29:43] exit data this will be the first time that the state has actually implemented a data collection around why individuals have exited from this October 1st administration until August and so for the first time we've got some preliminary data around the exit reasons and we'll be sharing that with you in the coming months as well so again preliminary at this point still confirming confirming all of our provisions I think have submitted as well so still refining that data before we make the results public so just to go into again it is a codified process highlighting

[06:30:23] again the emphasis that general assembly is placing on this really expanded process this particular data collection process replaces the old supply and demand that some of you may be familiar with the local school boards were required to support the number and type of teacher other instructional personnel and support staff vacancies as well as bus drivers in october's collection process. Identify critical shortages by geographical areas, school division, and subject matter, measured growth and decline of required staffing levels, and evaluate the reasons licensed personnel were leaving or exiting. And again, this replaces the supply

[06:31:02] and demand and the IPAL survey data collection process previously. So again, if we have more time, then we would do a bit of a demonstration, but here it's just captured in the graphic. This is public data. Now, the website is here if you're interested in actually going and building a table and want to give a shout out to our department of research on helping us support the development of a build a table with the data from the PEC.

[06:31:30] And so anyone and probably some of the information you may have seen recently in media, et cetera, are using this data to inform decisions, discussions, et cetera. So for us, it again is the first administration of this, and what is on the site is a one snapshot time.

[06:31:48] So if there were positions that were filled the day after they completed the report, that is not reflected. This is a one time projection of the vacancies at that day when they turned in their reports. But you can, as you can see here, there's an opportunity to look at it by region as well as by division, and even can go down to the school level in terms of those vacancies.

[06:32:10] and the position types as well. The heat map only reflects the teacher vacancy. It does not reflect the other personnel types, only teachers in the heat map. But again, you can see in the presentation and can go to that website and that will be updated once we have the other public data.

[06:32:28] So it will always be updated around those two data collection points. And the next couple of slides really goes into a little bit of detail about the definitions and how the rates were computed. so in the essence of time i will leave that in your capable hands but just highlight that again the ratings the fall collection of the PEC is designed to collect information on the total number of full-time equivalent positions or FTEs for licensed and unlicensed personnel in our public schools and regional centers the rate specifically is that you see on the heat map

[06:33:04] is the FTE of unfilled positions divided by the FTE of all positions and that would reflect individuals that are also employed but do not have the correct endorsement for the particular position so that number is counted as a vacancy as well. Data represents again a snapshot of staffing levels and vacancy rates as of that October 1. Again as you know from the General assembly discussion of the code it also collects the number of filled and unfilled bus driver

[06:33:34] positions by headcount on the next slide again the the data does allow us to really dig into position types and we see here that we have um but quite the top two are related to instructional aids paraprofessionals and non-instructional personnel and then you see administrators and tiers but what we know also is that we are very aware of the needs also for school counselors as well as superintendents and principals right so but this again was one snapshot and so we again

[06:34:13] hope that as we continue to use these same measures that it will only validate and excuse me confirm our understanding of the vacancies in time on the next slide just again high level again as of October 21 we see here what what seems to be a pattern in our state in terms of subject matter note that we have elementary at the top followed by special ed and then you notice the color differentiation here the statewide data for dark blue are typically considered our core content

[06:34:48] what we usually use for our critical shortage areas and the medium blue and non-core subjects areas in grade so you can still see again what seems to be a pattern for us in our state has been elementary and special ed in that one and two area i think that's what we'll say on that yes then again we cannot leave out of discussion again the supply lines and the pipelines and so the data shows here also for the last several years there was some consistency around program

[06:35:23] enrollment but as you can see in the last couple of years there have been quite a bit of a drop in those that are enrolling as well as completing our traditional educator preparation program and so there were some quite significant policy changes in 2019 where the legislation the rights changed to allow entry

into our educator preparations as well as majors in education but then we were impacted by COVID so I know many of our colleagues in higher ed haven't really had

[06:35:59] an opportunity to determine whether that what we thought would be a key strategy for opening the doors wider removing some of the early assessments that were required at that time have really made a difference because of COVID so again many of the initiatives that we're going to be sharing with you we're still waiting for really an opportunity to evaluate them that's that phase three in our in our model next slide also which i think is very telling for me again very small but hopefully you can see that we have multiple pathways and multiple types of licensing our state

[06:36:36] and so of those on this chart reflect the top three and you'll see here the provisional license right at the bottom and typically the default is a three-year provisional license meaning you meet most of the qualifications but there's some gaps there whether that be the assessments or whether that be in your content knowledge and there are multiple provisional licenses with different timelines right but just in this particular data we're looking at the typical default of the three year provisional and then the second highlighted here is the collegiate or those completing a

[06:37:12] traditional program receive a collegiate professional the 10-year renewable and then And then you see postgraduate there, those with a master's that receive that initial license is reflected in that one. And so you can see here also, we've highlighted and circled some trends here as well.

[06:37:29] While we note that the provisional numbers have just grown exponentially, right? That would make sense knowing that, especially during COVID, as well as the enrollment and complete decline for our APPs, that individuals are being hired on this.

[06:37:45] Just a quick question on the provisional, could you maybe just, is this where most of the alternative certification programs reside? That's correct. As I mentioned, or they could be hired, generally the majority are going to be individuals that are hired with some of those deficiencies I mentioned, whether it's in the content area or the assessments, but they have the majority, because there are guidelines and guidance that pretty much my office uses with divisions and working with them.

[06:38:15] they could have come through a career switcher program that also falls as a different type of provisional license but yes through those ultimate pathways and so again you see how that number has increased what that says is that we are opening the doors wide and we see in legislation quite often over the last couple of years additional new pathways being created but that means that those that are in the classroom are not as prepared right and haven't gone through the traditional programs and we see the number with the stark decrease there for that collegiate number that

[06:38:51] was declined there and again just some significant numbers I think are important and we'll continue to add to this for 22 to see if that trend continues yes yeah just the flag also I see you've flagged the collegiate significant drop in collegiate and overall but just to further highlight the significant drop in the traditional postgraduate licenses as well and the increase in the provisional licensees which is in Virginia mostly people who are just not coming through any

[06:39:23] kind of organized program like TFA it's mostly just folks who aren't yet prepared and the division is ready to take them on as they're right so they fall into that category that's correct and so in the future we want to provide you some additional data because I know we're also interested in looking at those that have come in for reciprocity right um and the numbers are small but again we're we're

collecting that data and we'll share that with you as we move forward as well yes i'm sorry so um so question for you is this the number of license holders no this is the applications okay

[06:40:00] we're kind of tracking from my office the applications around these particular licenses and so i think it would be interesting to see too the number of license holders currently in each one of those categories and not only just that but if we know the numbers the actual numbers of licensees that are employed currently because i think that's going to be a really interesting set of data to compare so okay thank you did you have a question about demand

[06:40:42] not a question well you should finish i mean it's more reflection of what all of this is just bringing forward as i listen to your your presentation so again we've got some other things that we're going to be unpacking reciprocity very few international kind of think some other variables we're looking at but again we'll hear more as we finalize the numbers for 22 and try to unpack it and those numbers even further around some of the legislation and

[06:41:16] policies that we are making decisions about in our state so moving on next slide jim and so based on a special request from our wonderful state superintendent the office of research and data work together to try to get something a little more recent right to kind of serve as a gap or bridging the gap between that october data collection process and the one that was coming up at the end of the school year and so based on that quick kind of work that the team did internally

[06:41:52] a separate brief survey not that a collection tool but a survey that i'll highlight a little bit of that methodology in a few moments was disseminated across our 131 school divisions again it's not formal based on estimation and prediction and you'll hear some of that when i share with you the methodology but again it was a bridge between the october data collection and where we are and so just dig in okay this doesn't have a methodology that i want okay so methodology

[06:42:27] the the department administered a brief survey between august the 15th and the 18th 22 to collect the number of teacher vacancies notice teachers not counselors not administrators but teachers by division as of the first day of 22 23. for the purposes of this survey the vacancies included any teaching position that was unfilled held by a board certified substitute or by an individual without appropriate licensure credentials. Divisions that have not begun were asked to estimate the anticipated number of vacant positions by the start of the year. And what

[06:43:07] you're going to be sharing, what I'm sharing today reflects 85% of those divisions. So that looks like 111 out of the 131 school divisions. So we thought that that was at least majority of them and so so table one highlights really the vacancy counts and rates by superintendent region for the state and you see i just kind of copied over from that october data collection so you have a little bit of a comparison at the top but keep it in mind this was only five questions

[06:43:43] and it really asked them to predict really what they expected and and so again can't compare apples to apples but it does give you some comparison there and then the state unfilled teacher fte's there from the october data collection process and this quick we call a snapshot and here you see highlighted the top regions are eight and three and again with highlighting there and so

[06:44:17] what i in comparison to the other data that we reviewed in october we do see similar patterns around the regions there that seems to be consistent across both of these different methodologies um specific subject area also seemed to be consistent highlighting um divisions responding to the survey

reported 3 307 teacher vacancies as of the first day and as we know different divisions first days were staggered this represents nearly four percent of the total

[06:44:51] teaching positions in the divisions. Region 8 and 3, Northern Neck, had the highest rates of reported teacher vacancies with a 7% and 6% vacancy rate, respectively. 14 school divisions had vacancy rates greater than 10%, and six divisions reported no vacancies. Table 2 highlights the vacancies around what we describe as our critical shortage areas or the core areas for

[06:45:24] superintendents regions and the state there and so again emphasizing that same pattern that we've seen in the state elementary and some of it's because there are more elementary teachers right so some of it is the statistics or the math of the process but again we see elementary teachers pre-k through six comprise the largest portion of the vacancies as of the first day again predicting and accounting for 1,141 of Virginia's reported 3,307 teacher vacancies or 31 percent among the

[06:45:59] remaining top critical shortage areas division reported the following for special ed 847 vacancies for 26 percent of the state's total teaching vacancies and middle school grades six through eight 476 vacancies or 14 percent of the state's total teacher vacancies for mathematics grades six through twelve including algebra one 263 vacancies or eight percent of the total and career and technical or cte at 184 vacancies or six percent of the state's total teacher vacancies

[06:46:36] next thought it was important to also ask the some what i call somewhat of a perspective obviously the stat is all self-reported but to ask them the big question of compared to previous years what are your perceptions is the need the vacancy greater and we see here that on average divisions were most likely to indicate that the teacher vacancies experienced this year are about the same as the vacancies they experienced in 21-22 but i will say if we group the two categories

[06:47:10] that represent somewhat and much worse together right that's also a very strong argument we put them together 17 of the divisions are 19 reported that teacher vacancies are much worse than last year and eight percent of divisions reported teacher vacancies are much better so and as we think about again looking forward for our work and our efforts and those in the room with me today we are going to be continuing to finalize and summarize the end of the year pec results and actually have opened up the fall window for divisions now as a plug there for the divisions

[06:47:50] now to be entering that data and considering correlations and looking at the exit data to finalizing our strategic plan soliciting feedback from you and others as we present this and continuing to create visualizations around what we are learning and what we want to share with the support of our staff as well as we're launching as i mentioned our marketing campaign which will also have various websites that will also promote the work we're doing and provide opportunities for engagement that way phase three of that three-year structure will really have us

[06:48:28] going back and looking as we know it's best practice surveying our divisions and partners about the effectiveness so for much of what we're doing we're basing it on best practice research as well as some anecdotal data but really want the advisory as well as staff to start thinking now at this phase as we're waiting for the new data to come in looking at really what kinds of benchmarks how do we determine our success and evaluating what data we have and what new data the governor's directive also has that emphasis on the impact and looking at the data

[06:49:03] and tools that we're using and continuing one of what i believe will expand and be one of those futuristic strategies is really moving forward with a registered or federally registered apprenticeship program for teachers and educators and so the state will be initiating that and leading that and working with the partners at the division for a capacity for employment in a non-teaching role collaborating with EPPs to provide them the content and the divisions to support them with mentors and creating a very transparent pathway as individuals are receiving

[06:49:40] pay right again not in the teacher not in the teacher the lead teacher role but again a clear path to licensure leading a degree becoming a strong highly qualified member of the profession so you'll hear more about the apprenticeship we're going to be pursuing that with the department of in the coming weeks. So you'll hear more about that initiative as well. So we have a planning grant out now divisions. So we've got 10 so far that have submitted their interests and

[06:50:15] we'll be working with them. And so at this point, again, I'll take any questions, I'll attempt to answer and I've got some colleagues in the room that will help me as well. And I have a handout and consent. We've got a little overview of various impact and some the dollar amounts that have been allocated that we can send you electronically that will give you an opportunity to clip on the hyperlinks for more details about the various initiatives but um something to kind of give you a little bit more to dig in until we come for you again yes and some questions so this perceptions of vacancies you mentioned the second to last slide where is this

[06:50:53] data from so as i mentioned our department created a five question survey it was administered in In August, I want to say during a week's time, to our school divisions, 131, 111 responded to the five-question survey, and one of those questions was about their perceptions of the vacancy for this year compared to previous years.

[06:51:19] And who are these, like principals or teachers? Surely it would typically be our HR contacts, someone in typically central administration working with an hr representative because again they're familiar with the employment status and the vacancy needs and um your one of your slides um statewide vacancy rate by position types was interesting to see um the bar graph because i the other day i found this um chart

[06:51:51] from the digest of education statistics national center for education statistics which says that since 2000 there has been a 88 percent rise in the um in growth in the administrative staff 37 growth in principals and assistant principals whereas for the teachers the actual teaching staff it's been just about eight percent or so so something very telling about that that the

[06:52:28] actual teachers who are teaching there's it's almost stagnant whereas there it's starting to be a a top heavy uh system in in some ways and i would ask what they you know what they've the research was too because again we know over the last couple of years in virginia those positions in administration have also been challenged really in virginia yeah this was from from 2000 this is 2000 to 2019 and um i i was very happy to see some of this you mentioned the new alternative

[06:53:04] alternative pathways did i think you said that um that was one of the the provisional licenses for several pathways right in the ranks that allow individuals that don't come through our traditional programs to enter the profession yes because i was reading that um there's a lot across the nation they are looking at different ways to in to recruit teachers and one of the ways is to

[06:53:39] like compensate teacher candidates for prior experience relevant to teaching and so for example attract career switchers with prior content knowledge by authorizing incentives that they recognize the candidate's previous relevant experience um just to exactly match that in our state we have a career switcher program which is a state approved program that really requires individuals and recognizes their experience and so they enter the program based on passing

[06:54:16] the assessments which demonstrates their content knowledge and really they can document their previous work experience and so that is part of the admissions process and so it's an accelerated program which really just focuses on the pedagogy because they've demonstrated the content by completing the licensure assessments to enter the program so they just are on an accelerated potentially five to 18 month program and they leave with one of those provisional licenses and they're employed by the school division for one year and if they have a successful year then they are asked to and given the renewable 10-year license so that's simply that but the other piece

[06:54:55] i will say is that our apprenticeship model that we're going to be launching with registered apprenticeship model which is very similar to probably other industries that have apprenticeships will also recognize the work and experience that individuals and potentially students could bring to that process also and so it's also interesting that you know in your state comparisons you've got north carolina here it's got a pretty high uh teacher vacancies um and what i read was that a north carolina one of the things that they're doing is they're awarding like one year

[06:55:28] credit for salary purposes for every two years of full-time relevant non-teaching work experience prior to earning a bachelor's degree and one year of experience credit for every year of full-time non-teaching experience after earning a bachelor's degree so that yeah that's i also had just a couple of point other points um just some ideas is um that again i've been reading is a differentiated

[06:56:01] pay for you know hard to staff i would do some of that in the state for schools okay okay yeah yeah yes so like a bonus and again it's reading through for the different states you know either like um you know large bonuses teachers and hard to staff schools or hard to staff subjects and or additional compensation or assistance we're doing some of that okay in the document that i shared with you we do that for stem for sure there is you do additional funding so is that like middle

[06:56:34] school math um we also yeah in special ed and also um we have done some of that in the last year you'll see on the materials i've shared with you where we're actually providing incentives for hiring right in those hard to staff schools in the state through esser funds some of the federal moneys in the year we've used that to incentivize is that it's like salary you pay or bonus something like this another interesting thing that in um another state they're they're giving incentives in form of like mortgage assistance for those seeking to become homeowners in the communities

[06:57:11] so that's some of that research um i don't think that's moved very far some divisions have chosen to use some of those strategies because sometimes in some of our more remote communities that is a very worth that's very a really good resource to attract someone that they're going to pay for the mortgage provide housing but typically i see that at the division level where they are really negotiating the contract and employment so again i would emphasize that as well but generally we're supporting the division so we we're not responsible for hiring as you all continue to talk about uh with your discussions today but yes all excellent ideas one last sure is the question of performance

[06:57:51] paid to reward high-performing teachers is something that has been implemented in many states looking at various examples some explicitly require the use of performance of determining teacher compensation others prohibit the use of experience and just the performance and some variation of it experience as long as it's not the most single or most important factors it's just

[06:58:22] You know, the achievement of students and hard to staff school are subjects in order to recruit really high quality teachers and in order to be able to to determine how effective the teachers are and if they're performing well, pay them more.

[06:58:45] I think the board has had some of those discussions here in previous years. I think we proposed some tiered models that actually really have to come through legislation. And I think there's several that may be posed again at the state level in terms of legislation.

[06:59:01] General Simi will continue to talk about some of those. But yes, we are certainly interested in talking with you more. And we'd love to have you on some of our committees. We've got several ways to plug you in so we can talk more. Ms. Creasy? I will just say that in response to that last question of yours, we do have a number of local school divisions that take that type of initiative on on their own to do those performance type pay incentives. And they've done different school divisions across the Commonwealth have done that in different ways for a number of years. It is on a local

[06:59:37] school division basis, though, clearly as funds are available to do so. Right. But the question that i had also was um sorry about asking for more data but i'd really like to see kind of um in recent years and this is probably really easy to get um the number of epps in the last 10 years have they declined um significantly was that that i missed that i want no no the programs

[07:00:12] not the number of students oh no so we've had 36 for probably as long as i've been in the state we had maybe two that we've lost and i know 20 years okay because i know some are on the cost and this is only again i'm referencing for bdoe approved programs that have agreed to our review of their programs as well as to maintain national accreditation there are other institutions in the state but when i reference 36 those are the ones that we consider approved programs right

[07:00:42] so they haven't fluctuated okay good um and just just sorry and that was it so well go ahead um i guess one of the things that i'd like to have moving forward as a part of this retention recruitment and retention um discussion is really you know um how can we have a role perhaps with chev through um educator prep programs and really and one of my big things is the number of clinical

[07:01:18] hours that our students and epps get when they hit that door of their student teaching and or before their student teaching they're not getting enough of that um that that clinical placement and that experience in the classroom and i wonder if that's not something that's making that big difference between starting the program and finishing the program um but as you know that is part of our regulations right you'll continue to work with us on the number and the types are aligned with the

[07:01:53] endorsements requirements um and the apprenticeship model just for exactly what you said has been proven effective because of some of that as well as our residency model right so we've got several residency models in the state and are trying to scale those up as well with some initial funding and so you'll hear more about the apprenticeship residency models because again we've got quite a bit of data that shows the impact and addresses just those things of having experience in the school right for some time

and having different experiences in the school and not the teacher of regular that that enrollment and completion really and so one of our scholarships one of the

[07:02:32] initiatives you see there is a grant for the first time a paid internship because that in my experience has been a barrier right to be able to take off not to work for 16 to 18 weeks depending on the university's requirements so that has been a barrier so this year for the first time you see that i think we had 41 41 paid internships across the commonwealth for our schools yeah we have another cycle we have some additional funding another cycle will go out for the january start as well now i'm done thanks mr robin and i've written down your data requests and i'm saying

[07:03:06] them again just to summarize your data requests include continuing to look at the licensure hours for clinicals and then there was another question about the license holders which is easy which is easy for us to get all right did you have a question yeah i do i hope i have two quick questions i hope we require no homework for you just one you mentioned that it's the first year of the data is a little like is there any reason like you know often when you do that you'll be like we're probably undercounting this so we're probably over counting that do you have any do you guys have any views on that like i would ask uh just like just in terms of as we should think

[07:03:40] about that is there any place where you think it's probably a little skewed or is it just random just she's saying more random okay at this point again it's the first time we've done it yeah no no totally that's that's to be expected i was just curious for us thinking about it is anything to be aware of so my second question like most of the vacancies by uh role are sort of track what we had pre-pandemic and are sort of long-standing issues in education um uh if you

[07:04:12] look at uh the it's a earlier slide slide on um uh types there we go like i mean special education is a chronic shortage issue mathematics um hard sciences correct the one that struck me though is elementary pk-6 like so what yeah okay was that your question that actually has been on there there are more elementary teachers right yeah so across the state there are more elementary teachers than any other particular subject area you think about how many high school math teachers you may

[07:04:49] have one or two but in elementary you're going to have 20 to 30 or more so some of it is really the statistics so that is all this is that's what that's what i'm and i haven't tracked i haven't followed it so i want i was wondering if it's a trend over time the fact that in the past several years elementary teachers have been on the list and growing in their portion is new um so 15 years ago superintendent you know very small district small turnover but we would have 30 40 elementary applicants for every vacancy and and now you're in the seven eight um and so that the supply and so

[07:05:25] i look forward to hearing maybe how the governor's executive directive is kind of tying into this issue but you know when looking at this we gotta look at the spigot things flowing in and you can see that the spigot is is drying up there's fewer people entering programs and completing programs the traditional programs but we also got to try to clog the drain and losing and that's where these things actually begin to get fit fit together acute shortages with instructional assistance is placing huge burdens on teachers which is making them have more birds depression the actually the idea of adding assistant principals in places is actually a teacher retention strategy because it helps give them the support they need with behavior and discipline

[07:06:04] and attendance uh so that those those things are all interconnected but the spigot and the drain are both a concern and the fact that elementary education enrollments and our teacher prep

programs is declined is a significant concern and that we're asking them for more as we know know, especially coming with literacy, right? So we're asking for more from them as well.

[07:06:28] Yeah, that just ends up where I was hoping we'd get to, honestly, because it is alarming to see those kinds of challenges on the front end when so much is foundational. And it's great to have alternative pathways, for sure. But if it's all about getting people in the class, and these people aren't prepared for what they need to be doing, I don't, I don't see that as a good thing for us and it's hard not to want to think about where all of the provisional sort of ends up juxtaposed with achievement you know we're very concerned about achievement gaps and i know we

[07:07:06] struggle to talk about where there is supply of high quality teachers who who's who has access to that um so i really hope there's an opportunity to think about the levers that exist at this level to really help get at root cause issues that really only a level like this can address as the strategy is put together. I mean, the first goal says get at the barriers that are associated with retaining getting qualified people. We've got to really try to get underneath that issue.

[07:07:44] What is keeping people from seeing education today as a viable career path? Because without that, our children will suffer what's in the way of that what are we doing that's creating the stress the distress that public educators are feeling today yeah miss halter then i'm going to make a quick comment that we are going to do a five-minute stretch break and then we're going to do shilling

[07:08:18] thank you uh i'll try to be quick uh i want to thank you for your focus the superintendent for her focus the governor for his focus on this incredibly important issue i do think that your data shows we are at crisis level. These rates were high and they're higher with the pandemic, but all the different indicators together indicating we're looking at a 25 to 30% increase in the problem level. If you look at the different categories of data, the one thing I haven't seen here that I feel like I have seen from you before and would love to see some of it, can we break

[07:08:52] some of this data down between high poverty and low poverty districts and just doing a very quick look, and I don't trust my own analysis of the numbers at all, but just comparing the Loudouns and Albemarle's of the world to the Petersburg's and Danville's of the world, it looks like, you know, three to six times higher vacancy rates in our higher poverty jurisdictions. And that is a huge problem because they're high everywhere. But if they're three times as high or six times as high, it's the impact on our media students is just huge so I'd love to see that data

[07:09:28] if you can I would also love to see you track provisional licensees and I think you've shown that to us as well too and you know our provisional licensees are God bless them but they're mostly new inexperienced teachers and they may someday be really strong teachers but they are not as in some other states mostly people who are participating in organized programs like TFA they're mostly just folks who took one course and got hired by a jurisdiction and are teaching you know high-end high-need special ed kids and it's really frightening so i would like to see the the

[07:10:02] percentage of uh of teachers in the classroom who are provisional and whether that has changed over time and whether that changes over high poverty versus low poverty um and and so does it tell us the same you know basically provisionals is the one thing that's going up yes and that's because that's an indicator of teacher shortages so um divisions don't hire provisionals when they can hire licensed so how does that help us track but all of this data is helping us focus on a really crisis level problem and so then the question is what can we do about it and the one thing i would

[07:10:37] suggest absolutely we've got to figure out how to retain as well as attract and that we ask the hb 938 work to focus as much as it can on what can, I love the fact that HB 938 asks, not just what can we do, but what can the legislature do, what can the administration, what can all parties do to help address really crisis level problems. And so I would just suggest that we really share this data and this issue with the HB 938 committees. And then finally,

[07:11:12] just that we think that we treat this as the crisis that it is and think broadly about what we can do what we the board have done soq prescriptions that i do think help address this what can we do to help get the legislature and the administration to follow up on those prescriptions what else i would love it if you all come back to us with what else can we as a board do on an emergency basis or a longer term basis to help address what i see to be a crisis level problem thank you you brought up the soqs because that's actually where i was going to roll

[07:11:46] with this uh the you know as dr siepert said i think you know part of the problem is how do you plug the drain right part of its attraction and you know honestly there's not a lot of magic to that a lot of that's pay you know we are still the state with the largest pay gap in the country and it's the difference between what a teacher makes and what a comparably educated professional is the highest in Virginia. Last year was 32%. It's gotten even higher. Yeah, I will say Wyoming was only 2%. It was the best in the nation for a long time, which is a good thing, right? Teachers

[07:12:23] were more valued there relative to other professionals. So part of this is just, you know, pay, which is money. And the other part of it is also, in a sense, money in this regard. As Dr. Siebert also said, you know, when you hire an assistant principal, which by the way is one of the prescribed SOQs that, you know, we've been looking for to have them everywhere. That is a teacher retention strategy. When you bring back reading specialists, which is one of the board's prescribed SOQs, which didn't get implemented by the legislature, I hope you would agree that's a teacher retention strategy. When you improve new teacher mentorship, if you look at the work done

[07:13:03] in 2018 by Luke Miller up at UVA during the retention conference, you know, a lot of the data, you know, it's interesting to me that, you know, we treat a lot of this still as, wow, when we have known these numbers for a long time, right? In 18, you were probably there. UVA put on a conference on teacher retention, and the Miller presentation was eye-opening in that it showed the people leaving the profession predominantly were either the one to three years in or the retirees, right? If you can keep them past a certain period, you would keep them. So in terms

[07:13:41] of plugging the leak, what that implies is we need to do something better about keeping younger teachers interested and engaged in the profession. And I will say this is anecdotal, not statistic, you know, not necessarily statistically valid, but a lot of that is the under-supportive teachers they get, younger teachers in a lot of the schools, if you believe, which this is clearly correct, that a lot of younger teachers end up in the harder-to-teach schools. And in those harder-to-teach schools, you have less faculty support, they are lost. You know, I know more than a few, you know,

[07:14:20] young people who have gone through, for example, Richmond teacher residency and ended up at the VCU, ended up, you know, they had a mission to go into the city schools. And two years later, they're burned out. You know, I told this before, my daughter was teaching in San Diego. Two years in a poor school, no administrative support. You know, she did the worst thing possible and went back to law school you know it's like but she left the profession that's the point and you know she would have been a good

teacher uh hope she's going to be a good lawyer i expect that too but the point is that we know a lot of this there's a lot of data out there and to me you know i appreciate

[07:15:00] the concept of a marketing campaign but this isn't really rocket science at one level right it's a question of are we willing to commit the dollars as a commonwealth to do those things that we know that the professionals know this is not you know the non-professional that the professionals know will help keep teachers in the classroom we need more people in the buildings we need better building leadership so we need the principal mentorship programs we've talked about right we need the reading specialist back and all of those things are directly tied to student outcome right you have a better environment you have more effective teachers you teach your teachers to

[07:15:37] teach better you have the better outcomes and that after all is the product we're looking for So as you go through this work, and, you know, Julian and I sat with the governor two weeks ago, maybe, and pitched these kinds of things, you know, the prescribed SOQs with regard to teacher mentorship and the reading specialist.

[07:15:57] You know, we already know the policy. What we need to do is get the political will, and I don't mean in the party sense, but I mean in the commonwealth sense, to spend the money it takes to get those kinds of things implemented. So, you know, it's not going to solve it all, but a substantial chunk of the teacher shortage issue is solvable by retention.

[07:16:19] A substantial chunk. You've already got people who have self-selected to go to educational prep programs. Now what you need to do is say, you need to stay in the profession because you've embarked on this course and we will help you get through those troubled years. And so I know we have not talked about, you know, the SOQs yet as a board.

[07:16:38] And this is last year's and the year before's and the year before's work. I mean, so sometimes the continuity piece is hard, but I hope that as we move into, you know, the SOQ season and, frankly, the legislative season, that the board will speak as one on the need for programs that surround new teachers, programs that increase resources.

[07:16:58] And I don't mean dollars, I mean dedicated people in classrooms and helping students. know, sometimes the legislature just talks about our area of the universe as, oh, another $100 million, another $200 million. It's not that. It's how we're going to spend the money.

[07:17:15] And I think we need to be proactive in how we ask for and, you know, lobby for those dollars being spent educationally. Dr. Siebert, go ahead, and then we're going to take it. Yeah, I just, you know, with Dr. Davis not being here today, I do need to say something on behalf of southwestern virginia when you look at the data for teacher compensation people are alarmed by teacher compensation it is actually inflated compared to what southwest virginia has because of cost compete because northern virginia must compete with maryland and everywhere else there are additional dollars cost competing dollars that go to northern virginia districts

[07:17:51] which also are where most of the teachers are just because of population density so when you take the population and the large number of teachers in northern virginia districts and then you lump them into the average teacher compensation you think oh what your average year compensation is not very impressive if you control for northern virginia you look only at southwest south side south central um you see teacher compensation um is actually abysmal and that's where until until you get to a threshold i

i'm all in favor of incentivizing different lecture areas special education different there's all kinds uh our district got my my prior district

[07:18:29] 12 years ago that's the largest strategic compensation grant in commonwealth but you've got to get to a a threshold uh of of just bare minimum before you can begin to incentivize okay dr johnson thank you uh board we're going to take 10 minutes shelly we'll be right back

[07:18:47] thank you for coming back in i was told that we're off site but thank you for the special evening

[07:26:54] session it was great thank you for asking all right uh you know yesterday the schedule got a little bit turned upside down because of the length of some of the items and you know one of the important things we didn't get to talk about was your topics right accreditation i know that uh we have the committee going there's a you want to be making recommendations and you want board feedback and you were kind enough to do a discrete list of questions that you wanted to to go through and i think the uh superintendent is now going to lead us through unless you want

[07:27:34] to lead us through shelley the questions that uh you'd like answered by the board at least to you know set the stage for the committee's work yeah yeah mr president thank you maybe i'll just get us started because um shelley and amy will do a great job but um essentially and and this is just a quick recap of last month we talked about house bill 938 that calls for some pretty substantial conversations about the direction we're going generally with education this board had a really great conversation about that i referred to it as the kitchen sink bill because

[07:28:11] we get an opportunity to talk about and make recommendations on almost everything in education i think it was ms holton who specifically asked us to focus on teacher shortage which is absolutely in the kitchen sink and part of the discussion as is accreditation so yesterday thank you for the wonderful presentation but what we didn't get to yesterday that i think we really want to to help give the committee some guidance is just some some insight from this board about where we

[07:28:42] go and where we lean in as a board on accreditation and what kind of guidance we're looking for from from the committees who will first report to the board before then we report to the the general assembly so that said um i i wrote down the the questions but you know what um shelley i think i'll just just leave that to you and maybe if we can just kind of you know just again think about places where the board can lean in like growth like determining growth etc and you did a great

[07:29:19] job of putting that in the slideshow which i know stands on its own but let's get some conversation started and uh and allow the board an opportunity to do a whole lot more talking than we do thank you so much superintendent abelo and we do appreciate you giving us some more time this afternoon um we promise we will not go through all 19 remaining slides into deck and we will not be here till six o'clock um we did want to get some feedback from you all before we begin working with the committee of stakeholders and they will come back with recommendations to you but it would be helpful to have some sense from you all ahead of time you know what what interest

[07:29:57] you might have and some changes to accreditation and perhaps to data reporting so the first set of questions is really about transparency and you know what can we do to make the accreditation model more understandable you heard a lot from amy yesterday about what is in the school quality profile currently she had some great screenshots that showed you the information that is provided but is there a change we could make in the way that information is displayed is there additional

[07:30:31] information that would help to make the model more transparent and then are there other data points that we would be helpful for the public to be able to see are there other things we could do to make the data more available would it hurt your presentation if we took a step back from transparency and talk just for a minute about uh sort of who the users of the system are and what we want to accomplish through the system sure is that okay and if it doesn't meet the board's desires you know i can move on with yours too but it does seem to me we began to have a little bit

[07:31:09] of discussion yesterday about uh yeah i think somebody talked about you know the a through f model you know it's easy to do it's you know quick uh does it you know provide the school divisions with the incentives to do what the board thinks ought to be done and you know there have been over time i wouldn't say two conflicting schools of thought but sort of two schools of thought on the models right on the accreditation or the statistics one is you know parent choice you know you provide enough information that people can choose where they go and the other which the board you know has sort of done over time you know back

[07:31:47] 20 years, use the accreditation system to help drive performance in certain areas. And I guess it would help me to understand if the current board thinks that, you know, the model of driving performance in certain areas, and we can talk about which ones those are, is the goal, or if it is, in fact, you know, essentially the, we're going to rate the schools and have, you know, parents be able to make decisions based upon those ratings.

[07:32:19] not mutually exclusive but how the system is put together if we're going to use it to drive certain goals it will by necessity be a more complicated system than if we're just going to do a summit kind of writing i think i'm not sure about that statement but i think that that's right so i mean there's enough experts on this board much more expert than i am vector siebert mr rotham um we might want to talk about this just so that i all have a better understanding of where we're going i talked first yesterday so i'd like for uh andy to go first today because i think as we were running out of time we we started to touch on the idea of thinking about what do we

[07:32:58] value so that would be you know that was kind of your point yesterday to lead toward what we you know would do so i'd like andy if you like maybe you could pick i like the thread you were going on yesterday if you can recall at this late hour i'd like for you to continue to develop it uh yeah i'm not sure where we want to start i think like it would probably i mean this is almost like a work session strategic planning kind of item but what what we you know we want this system to do a lot of things it will not be able to do them all without being a muddle and so we've got

[07:33:36] to figure out like what are the things we value most and then where the trade-offs so like we want a robust rigorous system there's going to be a trade-off there with simplicity but we do want to we do want a relatively simple systems like how do we weight that so i would just urge us to start at that first my my point is just start a little bit of first principles and a first principle may also be this whole issue with divisions and does you know is is only focusing on schools is that the right thing or do we need to think about these schools don't they're not atomized creatures out there they exist as part of a system so what do we do if we want to start to build up towards a more you know coherent system that that works more in tandem what do we want to do to require

[07:34:15] divisions to do more things here we asked some questions that i know because it was just yesterday i certainly don't expect that you guys would have yet on you know date on a whole number of

things um so uh i'm sort of struggling a little it this is it's like an elephant like we're and we're all going to grab different pieces like we're like where do we start so i mean dr siever what's your i i think like hearing from different board members i'm like what is most important to that might be i mean i'm happy to share i'm not trying to be coy i'm happy to share mine it might be useful to hear a little bit like what's most important to people and then from that like what

[07:34:54] data you know because what support knows we may also not be able to get gather data some of the stuff may be important but we may not be able to actually gather data or incorporate it is that helpful neighbors go around the table it's okay with the board i guess i have a number of kind of big idea things as i start to think about you know how we can better facilitate our expectations

[07:35:33] right and so i think about the language that we're already using in the standards of of accreditation. And so where we say things like should, changing those simple words like should to will really shows a marked increase in our expectations of rigor.

[07:35:56] Chris, can you turn your mic up? Oh, I'm sorry. I thought my teacher voice was enough. Do you need me to repeat that? Okay. So I don't know if that makes sense to you or not, but that's one big thing that I have seen as I go through the standards of accreditation and look through everything is that we're not the language isn't strong enough for the outcomes that we desire I'm looking at all my notes that I have on this if anybody wants to jump in please feel free

[07:36:36] Ms. Creasy if I can just prompt you yesterday you asked a great question about school divisions um being able to show students who were above passing well above passing and how important that was in um and i wonder if you might go into a little bit more depth on that yeah so you know i mean we our schools are being told by the way that our system is now that you know we all know that passing an sol test as we you know communicate to parents and families and our students simply

[07:37:14] passing is really just signifying minimum competency of our standards, where we want our students to shoot for acceleration and to be better than simply minimum competency, if they can achieve that, right? But I think that we want to make sure that we're expecting more than minimum competency of our schools. And from what I saw in the system, we're saying,

[07:37:45] we're only giving any kind of credibility to just a simple passage. And so giving more power to more credit for in our accreditation model for those schools that really are going above and beyond, I think that's going to be reflective in what parents see transparently. Because if I'm a parent and I'm coming to Virginia and I'm thinking about all of these different industries

[07:38:24] that are moving into Virginia, I'm looking at a school division that's not simply meeting expectations. I'm looking for a school division or a school for my child that's really going to exceed expectations, have more opportunities. And I think that we do see those things across the state. But if we raise the bar for our schools, they're more likely to try to achieve it than simply just meeting this level right here. So when we talk about equity and programming,

[07:39:01] and I think of whether or not I live in Northern Virginia or Richmond or Southwest Virginia, I want to be able as a student and as a parent to expect that my child can access this program or that program and um and so i think we just have to simply move that bar from minimum competency to an accelerated level for to challenge i mean we talk about that as teachers in our classrooms where we we want to challenge our students to know more to learn more to desire to learn more and so

[07:39:41] that challenges our schools to do the same so i guess two things that come to mind we could award credit or points for students who achieve a pass advanced on the sml test that would be one possibility another possibility that has been discussed before is looking at an indicator that talks about access to the higher level courses were you thinking about either of those or something different both okay can i just ask a follow-up question absolutely in a world of limited resources

[07:40:23] i don't know the answer to this question but i'm always intrigued by it is it better societally to use resources to raise the top you know or to spend i mean it is at least conventional wisdom that you know marginal dollars at the top go a little bit further right takes more to raise from the bottom in terms of academic achievement? Or do you skew dollars to raise the bottom up to acceptable? And what is the societal goal? What's the board's goal there? I'm not sure those are

[07:41:00] mutually exclusive. Limited resource is always going to have some trade-off between how much you can offer in terms of advanced and how much money you spend. You know, the rough numbers we were talking about yesterday the 80 20 and the 70 30 split right how much do you spend you know is it more important to increase let's say the 70 to 75 or to try to bring everybody up in the passing but I guess my point is is that those that are at this passing level they're in like it's neutral

[07:41:38] and so they need not I mean we're hearing from parents across the state that are saying we got I'm not arguing that. I agree with that. But in terms of how the system works and what it rewards, if you will, you know, what we put in, you know, if you put in greater resources that benefit, if you will, the top 70 or the top 30, you will have fewer resources than, right? There'll be less incentive to spend resources on the bottom 20, which may be, again, in terms of policy, the answer, but it may not be either.

[07:42:17] You don't have to answer it now, Grace. I'm sorry. It's just, you know, it always seems easy to talk about until you try to program out what it looks like in a building with, you know, like I said, a finite number of resources.

[07:42:36] Yeah. And I think, I mean, I think at some level you can't, you can only spend a dollar so many ways. It's not completely zero sum, but like, so I'd be fine with a system that rewarded schools for getting kids to advance as long as you make sure that there's a strong floor in place. And there's a point at which if you are falling below that floor, that's being signaled in our accountability system. Because what you don't want to do, and like a really good example of this historically was the Newsweek ranking of best high schools, where you essentially had these high schools that were magnets had these really great programs where you had a lot of kids taking tons of advanced classes, but the majority of the school was not. They often had like really

[07:43:14] substantial dropout rates, but that was all obscured by this small group of students in a particular program. We need to make sure our system doesn't start to create incentives like that. And I do think there's, I do think there's some ways through that. The other thing, just in terms of the Commonwealth and the larger question you're asking, Mr. President, I believe the future of sort of our STEM challenges and our competitiveness is the kids who are losing now, either because they're fully exiting the system, they're not reaching their potential, are generally speaking, and there's exceptions to this, but writ large, our strategy on STEM is how do we get kids who are succeeding, how do we get like some higher percentage of them

[07:43:52] to decide they don't want to be a lawyer, they want to be an engineer, they don't want to be a journalist or a writer, they want to be a chemist. And I mean, there's a little bit of return to that, but like

what we really ought to figuring out how are all the kids who never get a chance to make that choice because it's been made for them sometimes as early as elementary school given how we you know curriculum is over how do we change the system so those kids by the time they get to high school are in a position to take those classes they're not all going to want to be chemists or engineers either but i would assume some percentage of them certainly you know that desires along those lines are you know distributed randomly around the population so that's why i i do think that that the issue you're putting

[07:44:31] on the table is an important one and we should think about it in terms of like our future pool of talent where do we think it lies and then what policies follow from that to make sure that we're supporting those supporting those students partly in response on that issue and then on just a couple of other thoughts uh uh i do think that the school quality profile does have the data on advanced pass versus uh regular pass but it's not highlighted in the chart it's just in the underlying data and that might be a fairly easy tweak to have that be able to be linked through

[07:45:10] in some way but there's bar charts showing that um but um oh and another suggestion on advanced how we help raise the bar would be to highlight in some fashion uh schools offerings of advanced placement and other high level courses because i do think that there's a genuine differential in across the state in in divisions that are offering high level courses and those who you know student can't take the ap visits because there's just no option um maybe or maybe not

[07:45:44] the division has opted into virtual virginia or something for that but so figuring out a way to highlight the the divisions that are are doing a good job on trying to uh offer advanced placement courses and other high level courses might be something to think about. Two cautions on the advanced, how we highlight. One is to remember, I mean, accreditation is not our only tool.

[07:46:12] And some of what's happening, you know, how do we really help meet the high level needs, students of our highest level is some of that may be something we want to do through other forms of recognition or through expect the local divisions to focus on, you know, how much is that, is accreditation really meant to be more focused on the minimum bar rather than a tool that helps highlight the high performers? And just one caution, I would say that we kind of, the current model, and I don't like this about the current model, but the current model is essentially built

[07:46:50] around indicators that give a division a lot of different ways to fail. So you either are green or you're not, and if you're yellow or red in any of those nine indicators, then that means you get extra scrutiny and extra reporting and extra quality improvement planning expectations. So it's not really a system that's built towards how to give somebody extra points for doing something right outside of meeting minimum expectations that's not mean that there shouldn't be a different

[07:47:23] system but it's just not built that way so for instance if you added an extra indicator on how well are you serving your high-end kids okay well is everybody who doesn't do score well on that is that yet another way to fail it becomes yet another way to fail under the current structure rather than a way uh to highlight good work among among others and i'm not sure there's a super easy answer to that um it's just it's structural i guess i'm i'm more stuck on you

[07:48:01] know there's no emphasis in the system being placed on going beyond minimum competency that's where i am so um so you reach this level and it's like okay we're here so what's next and so if we really want to talk about what continuous improvement means it means that you're starting from wherever

you are and improving upon that and so you know for some schools of course it's going to be below passing minimum competency but some schools it's going to be

[07:48:41] you know a totally different level i just i i worry about the system being in a place where you have divisions that are like we're here we're always going to be here there's you know we've got we're we're in a locality where we're going to have we have really you know moderate to higher income families that are really supporting this kind of constant recreditation pattern of accreditation reaccreditation and then you've got other divisions that have really struggled to get

[07:49:19] to where that minimum competency is but they're continuing to push for greater and greater things and so i think that's important to both of those different places you know both of those different school divisions that just are really looking to continually improve for the division and that is going to then tie back to recruitment and retention and you know everything that we've talked about today and so um i mean that's just kind of i feel like there's got there has to be

[07:49:55] more than just the baseline so can i suggest something that might like in terms of a first principle and we're talking is i think on transparency i think one of the reasons the minimum ends up to some extent can be a ceiling of forms for this nobody knows what it means and nobody knows what proficiency means because we don't really communicate it clearly in like real world terms and so in terms of transparency and making sure people across the commonwealth all the various stakeholders know what we're doing like i think something we can do to this first point to make it understandable is simply get this in real terms that people are going to understand and i don't know what exactly the right ways that flexile scores on reading or whatever

[07:50:34] but very specific language to tell a parent okay if your child is proficient in third grade on this here's what they you can expect them to do if your high schooler is passing an algebra sol here's how that aligns with what college expectations are going to look like at different kinds of schools what career expectations are going to look like i think there's just a ton of this there's a ton of misunderstanding out there um about what these things mean so you don't get the pressure and what you're talking proficient sounds great right um but in many cases proficient isn't actually getting kids on track to their goals their goals their parents have for them and so forth so i think like what we might be stumbling to here is like as a first

[07:51:14] principle is just help people understand like what are the table stakes of what we're talking about with any of this then people can disagree on what's too much or too little but at least we're not it's not an abstract conversation it's should an eighth grader be able to make sense you know of an editorial in the new york times or the or the wall street journal or is that too ambitious but at least like in very concrete terms talk about what these levels actually mean mr president but But the one thing that in response to Grace's thought, one thing we struggled with before that I would love to see us figure out how to do better is how to have better growth measures.

[07:51:50] And we really were just so wedded. We are deep. Our whole system is deeply wedded to our SOLs and our self-created SOL tests. And Shelley and team have worked really hard to make them. They were not originally designed as growth measures, and they've worked really hard to forge them into growth measures.

[07:52:08] But one fundamental choice that's been made so far is we're only crediting growth from the bottom up to the middle. So if when a school takes somebody who's passing and helps them soar, you get

no points for it.

[07:52:25] And it's just not, we couldn't find an easy way to count that in our system. But that may be, you know, figure out how to make our growth measures work better so that they count growth from wherever the student is starting. So the student who's already at fourth grade reading level and third grade and then moves to fifth grade reading level, that that's somehow the school gets credit for that and therefore incentive for it.

[07:52:52] Just a couple of other comments while we're on it. I think Mr. Gecker was raising up yesterday sort of who, and again today, a little bit, sort of who is our intended audience. And I do think that it's always helpful to make things more transparent.

[07:53:10] But I do think that main intended audience for accreditation standards is not parents. Parents are going to use gradeschools.org. Parents maybe are going to look at the school quality profile, but more likely going to use other things that are based on the school quality profile data. But the goal would be to help incentivize the practitioners to do best by students.

[07:53:33] I think the detail in our accreditation model is really designed for that. Whether it's successful at that or not is a different matter, but that, I think, should be the primary. So, for instance, do we think our accreditation model has a positive impact on teacher shortages, especially where we need teachers?

[07:53:52] And that was one of the factors we were thinking about. I'm not saying you should just let bad teachers slide through, but if you've got a system that punishes teachers based on their willingness to serve poor kids, um then you've got an accreditation model that's disserving your goal of improving performance of poor kids so as we think about the accreditation model how does it incentivize our local leadership to do what's best for children at all levels is to me what the goal of the accreditation system

[07:54:28] primarily should be and then just one last thought is um uh in terms of things that could be improved on the school quality profile. I do think more data about teachers, and now we're gathering more and more data, figuring out how to integrate that into the school quality profile. The finance data could maybe be, I mean, I guess there have been some improvements to the finance data, and I haven't gone back and looked at that recently, but how much the per pupil spending by school maybe is on there now, but I don't know if there's comparison data over time, but figuring out how to integrate more, integrate more of that teacher data and might be an opportunity.

[07:55:06] So just to follow up, I think that Anne just gave a perfect segue as we talk about growth to what Secretary Gadara and Superintendent Bailo outlined a couple of weeks ago with the governor, which is the individualized learning plans and how that mechanism can be used in schools for growth, to show that growth that you're talking about. But the other thing

[07:55:44] that I think might lend to some of what you were just saying, too, is how can we assist school divisions if we're really kind of thinking that our accreditation system is really more not an external parent type thing to use, but how can we help bring the data together in a more user-friendly, across all kinds of different mechanisms to show schools to compare or divisions

[07:56:20] to compare against each other in a better way, in a more meaningful way? And can we use that to help divisions collaborate with one another to instigate further growth learning from each other i don't know just thinking out loud i i do i do want to caution us on growth i mean it's i i'm much more interested

actually in how do you reward growth on the high end and stretching kids because on the low end rewarding growth if we're not careful how we design this turns into sort of allowing

[07:56:55] mediocrity to persist we should have really high expectations and you know this is one of these debates that goes on for a long time like poverty cannot become an excuse we should have high expectations we need to find some way to hold schools accountable for serving kids because you can't on one hand say public schools serve all kids and that's what's magic about them and on the other hand say well we've got to have like different expectations for schools with lots of poor kids you got to choose one of those we need really high expectations uh across the commonwealth and when you look into things like our NAEP scores you see what's happening with low-income kids what's happening with racial and ethnic minorities like that should trouble us and i think

[07:57:32] that we have to have some hard conversations about what our expectations are um i think we have a threshold question we're dancing around if i heard secretary holton right i agree that like we got to be careful trying not to make the accreditation system all things to all people i think it's probably part of the problem but right now this is the only game in town because we don't have an accountability system we've kind of made a decision that this is how we're going to do it and it's led to a lot of confusion over the years because it's like 95 of schools are accredited it's hard to be like well we've got these achievement gaps we've got people like that 95 of the schools are awesome um and so i think we have a threshold question of okay do we want to

[07:58:07] design some other sort of accountability system and is that transparent not everything we measure needs to be an accountability metric and a point of that what's not great tons of ways to refer people to fail that's an important point so what do we just want to collect because we want to know it um and so should we think about the accreditation system and also think about accountability system So I feel like that's a threshold decision for the board in terms of what is our strategy going forward.

[07:58:31] Because otherwise we're left with the accreditation system as our default accountability system, and then we need to treat it that way. Andy, I agree. And I just even try to, coming at this a little bit more of my 15 years at the federal level, so it's, you know, when I listened to the presentation, read the materials, just incredibly helpful.

[07:58:55] But I started to, and I think kind of what you were talking about earlier, you know, the elephant or, you know, having this be the basis of more of a strategic planning process, because I start thinking of the parts of the elephant, you know, who is the audience here?

[07:59:11] Is it the us as a state body or the districts or the parents or the schools? What are the thresholds that we're looking for? Again, if it's proficiency or minimum expectations or acceleration or equity, then what is the purpose of it?

[07:59:32] Is it accountability? Is it improvement? Is it compliance? Is it innovation? And then what does it all mean in terms of either rewarding schools, incentivizing schools the budget conversation of um you know and then uh just even the last little mention of um of you know the relevance to this and what is this i think whatever we do it needs to be tied to where we're going as a commonwealth for the next four years if we want to look at it to this governor's term of whether it's driven towards you know the priority of the

[08:00:06] individual learning plans you know but just or the existential challenges you know that we see in the NAEP or the SOL trying to figure out how do we tackle the learning loss much less the learning you

know growth and acceleration that we need but to me coming back to your first principles just you know kind of dissect it feel like a rubik's cube you know the four or five different faces on each of the pieces and you know what is the you know ultimate purpose of this and And then, you know, what are the ultimate, you know, pieces that we need to fit in?

[08:00:42] I feel like I'm talking a little generically here, but to me, that's where we can make it most relevant, most transparent to understand if we can also just really, you know, maybe pick, you know, top priority of each of these four categories. And it doesn't mean that the other ones aren't included or aren't important to it, but how does all of that drive the system towards what our ultimate goal is for this?

[08:01:06] And again, you may not want it to be all things to all people, but I think we've got to kind of figure that out so that we also then know, do we need an accountability system or do we need another component? But since it is the only game in town, it's what we have and just all of the great data and work in the system that's here.

[08:01:25] How do we take that? And that's what I was just so impressed with what we have and all the investment of time and resources and money over the years. I almost think it would be a shame if we don't try to use it as a tool to help us, you know, get after our most incredible challenges these next couple of years.

[08:01:45] And I think that would also kind of take care of a lot of the understandable issues to the users, whether it's the districts or the parents or others, if they kind of understand it. You know, this is important. This is how it all fits in to what we're working on.

[08:02:03] This has been very helpful for me to listen and help some of my thoughts maybe crystallize. I'm going to share a couple of thoughts and then I'm going to try to brainstorm in this forum at this time of day.

[08:02:18] But I just have a little idea right there. But to your questions, I think that well, back up. The school quality profile is very, very rich. It is very, very strong and very robust. Very few people are willing to go digging into it.

[08:02:34] So they go there thinking they're going to find a great schools at all type of thing. They don't, and they're not inclined to go dig, which is a shame because there's great stuff there. So, you know, yesterday we talked about this. I thought, well, almost like we need a little executive summary at the top of the school quality profile that has three things.

[08:02:53] And the three things might vary by school. Basically, what you're talking about, you're talking about differentiated learning for students. You're talking about differentiated kind of like accreditation for schools. And part of that can actually be self-reported, where schools, because they're required by Commonwealth to have a biennial school improvement plan, could self-report what are their two or three main goals that they're working on as a school this year.

[08:03:15] And, you know, that could actually honor the planning that we already expected to do and they're already doing. And that would immediately give a parent some insight to what is this school working on. And so I think there's this, I don't want to lose the school quality profile because the ask in these conversations over the decades have been we need multiple measures we need we can't oversimplify a complex system but we are to the point now where we're a really rich system how do we give some some

key indicators and those key indicators might actually vary by by where a school is so i don't i don't want people going to great schools because it's easy and it's not

[08:03:52] necessarily helpful because a lot of this data is flawed but at the same time so i'd rather have parents using school quality profile, but they're probably not going to go there unless they're willing to go click, dig, and do really cool stuff that it can do. So I think we almost need a way to point people toward school quality profiles. And so one thing would be an executive summary. The other thing is we've done a, this I heard earlier, you know, about the number of red, green, and yellow things we have. You know, the idea of red, green, and yellow is to make it very simple, you know, make it easy. But when you have lots of red, green, and yellows, and then how do you average them then you get get to a challenge so maybe the red green and yellow should only be for

[08:04:29] like i'm not i'm these are examples i am not making recommendations here just just giving some i'm trying to illustrate things maybe we decided red green and yellow only applies to literacy and math in these couple areas and then so those are the red green and yellows and the other important things get reported somehow a little bit differently i just tossing that out there but now for my bigger idea at this point that maybe i shouldn't even try because i don't have like a dry erase board or flip chart um yes um it's almost like we're trying to we want to we're trying to fill

[08:05:07] the bucket to the top with lots of indicators and and there's got to be a basic there's got to be a level that a school needs to be at if school is not that level we have to have the courage to report it and we have to have the courage to go and help the schools that aren't at at whatever we're trying to get at so i'm just gonna give you a grading example that a really clever geometry teacher did with one of my children a few years ago instead of a letter grade or a number she had a gauge that that the child was to fill during the year of of of geometry and you fill the gauge first by having some numeracy skills and some algebra skills that you had to demonstrate before

[08:05:44] you could even start doing geometry and so that you had to get to there to basically get a c in her class then you know you then instead of just taking the history the geometry standards g1 2 whatever she bumped together the ones that were different levels of proficiency and so the student once you could start demonstrating mastering these you started moving your gauge up and and to finally get to like the a level you had to do some of the there's some geometry standards and geometry for example that really don't transfer anywhere else they're just kind of like the top of geometry those so it's kind of like you feel you fill the gauge and that reason again very very coarse very

[08:06:23] very rough again if you had some sort of indicator like that a school that's struggling for children to read write and do math um that's where they need to be working because they need to get their gauge up to proficiency but for people who are already proficient um what could they do to add and i think there are even choices to add and it could be the my advance it could be that we're really we have a great partnership with our community college so we're doing lots of dual enrollment where we're doing so as what are the ways you can start to add to that um and so you

[08:06:56] get kind of a visual you get kind of a executive summary and then again this sqp is really rich with data people can go clicking around and some of those things could even be links to stuff that already exists but um i just want to be careful we're not trying to incentivize teachers and leaders to do what's right for kids that's a little bit like saying we're going to incentivize the missionaries to to go to a barn they've

already taken this step into this field um because they have a heart for children and we looked at our data a little while ago well we

[08:07:31] need more people entering the field with a heart for children so i i think it's it's how do how do we report out and so my i guess my clue would be it's almost like a differentiated accreditation like we do differentiated instruction for children where first you got to have the baseline and and for the schools that are there they get they can start reporting some other stuff the ones that are aren't that's where our state resources and effort and department attention are going to

[08:07:59] help them get to where they need to be that was muddy i apologize it was a cute geometry story sorry exactly it wasn't exactly nice geometry material is hard tough audience can i ask based on this just one question uh superintendent ballo i don't want to create a ton of work but if we could just get some kind of i'd be fascinated to know when people come to

[08:08:36] our website what actually are they looking for like we've said a few times we don't think people are using the school quality profiles i don't know if that's true or not i'd obviously expect that you know like fairfax ones are more red than madison ones just because there's more population but just to give us some sense of like what are people actually doing on our website what are what are the citizens we or whoever else is coming to the website like what are they actually interested in um i think would be useful for us to know yeah without creating a ton of work but if we can just get some stats on like what parts of the website are like popular and high traffic and which parts aren't yeah absolutely and um i i mean that's exactly why we're having this discussion right we

[08:09:15] we we want your direction we want your guidance we want your thoughts and certainly we have lots of internal conversations about this but we have not had a conversation about what are people looking for when they come to our website what are people looking for um when they are looking at moving to virginia with respect to schools um what are they looking for when they uh you know what what is a parent looking for versus a teacher when they think about accreditation or what are are they even thinking about? And maybe it's time for some focus groups around that. I'm not sure

[08:09:49] what that looks like. But I think that that is all on the table, and we need to keep it on the table for the purpose of this conversation. Because I have to tell you, I haven't talked to anyone who says, our accreditation system is great. I love it. Let's just keep moving forward. In fact, let's do more with what we what we have everyone is saying it is very convoluted it's very complicated um maybe there are some good things that are measured but how do we make it more understandable i know just this week i've learned so much you know we have i i always um in fact i

[08:10:27] was just talking to the secretary today when you go to disneyland or disney world they have the chicken exits at the at the roller coasters where if you get scared you leave the line right and i feel like we have a lot of those in our accreditation system um where where we say you know if you're doing really well um you have the triennial accreditation or we have the the three-year system where we're going to value growth the same that we do proficiency we have a lot of ways to kind of hide um how how maybe we're really doing on some of those key metrics that we ought to color code or that we ought to really be thinking about so i think it's very very important to maybe start

[08:11:05] with that values-based conversation about what is it that we want virginians to value in education what is it that we value in education and um and how do we best depict that in a really clear way um and i i i'll i'll i'll just stop there suffice to say that i envision the work of this board moving forward and

the recommendations for house build 938 938 i'm okay thank you 938 I envision that not just being things that the board can act on or items that the board can act on,

[08:11:42] but perhaps some legislative packages that this board is thinking about may not be fully fleshed out, but to put forth in front of the general assembly to contemplate, to really augment our work and vice versa. And now is the time to really lean in on that.

[08:12:00] I think, and I said it yesterday, but I'm going to say it again, we have an accreditation system that was not built to withstand or reflect a pandemic. And therefore, we don't have an opportunity for our accreditation system that every single school division looks at as sort of the north star for school improvement and for, or for a baseline for school improvement plans.

[08:12:24] We don't have a sense of urgency built into that because we have a three-year rolling average. we have triennial credit. We've excused some parts of the accreditation system as a result of the pandemic. We value growth equal to proficiency and or pass rates. And I think it is vitally important that we think about sort of the new times in education and the transformation that we're expected to really usher in with things like our accreditation system, as well as our standards and our assessment system and lots of other things. This is where we can really lean in

[08:13:00] and not just do more of the same or not tweak what we do the same, but really envision what does an accreditation system look like? Maybe it doesn't exist anywhere right now, but that is very useful today and in the future. Let me ask one quick question. Six years ago, I asked the then superintendent. What do we do with divisions that aren't doing well? You know, is there any real

[08:13:33] evidence that the state intervention works? And I don't mean that as a criticism of the department or anything. It's just, you know, sort of an obvious question. You know, we talk about the accreditation system. We then talk about schools that don't make it or that we're masking because we don't believe growth is the right thing now. But there are two issues that come up, right?

[08:13:56] number one is, is what we're doing from the state to help those places that are identified as not passing the accreditation system working? And number two, what's the real capacity of the department to work with, or how many can we work with? Okay. We have a system that's designed in part to keep the number of identified schools relatively low, because frankly, there is not the capacity, and I say this with respect to the department, but there is not the capacity. If we

[08:14:31] had 100 schools or 100 divisions under MOU or 50 divisions under MOU, you'd be drowning as a department. If we had 30, you'd be drowning, I believe, as a department. And so I think, and I am not an apologist for the system, but I think there needs to be a recognition that there's a practical component. And if we can, I mean, if the state is now willing to say, we will put the money in to fix this, that's a great thing. But if the state is going to say, you know, we're going to continue

[08:15:09] to identify people as failing, and yet we have no ability to help you, then honestly, there's no point in the accreditation system at that stage, right? I mean, the reason we have been, and I take a little bit of issue, not a lot, Andy, with, you know, we're just allowing mediocrity to continue is because as you try to attract more competent educators to schools that aren't doing well, it's hard to get them to stay if year after year after year you tell those people you're failing.

[08:15:42] We are not going to fix the systemic problems in some of these jurisdictions in a year or two years or three years, right? I mean, even if you had the resources, you couldn't do it because you're starting

with, I mean, hell, if you start three years in, you've got third graders who can't read.

[08:16:00] So when they hit fifth grade and take the test, right, you don't have enough manpower, resources, capability of bringing enough of those kids up between third and fifth grade to improve your situation dramatically. I mean, it's a slow, steady slog into this. And so I just, you know, as we go through, I hope we're at least mindful of, again, this to me is the purpose of the system, right?

[08:16:24] The purpose of the system is in part to identify places that aren't doing well and provide the assistance that they need. We ought to be pretty sure before we label them as failing that we can actually provide that assistance. And, you know, we had, I think it was Roanoke City, Alan, I don't remember.

[08:16:42] Years ago, one of them was on the bubble of accreditation. The superintendent came in and sort of begged the board for, you know, to be accredited. And the board did it. And the reason we did it was because she believed that the impact of the failure to a credit would cause a school that had been on the rise to lose too much of their teaching compliment to schools that were doing better.

[08:17:09] I don't know if y'all were, I don't know who was on the board at that time. - Superintendent Rita Bishop. - That's right, exactly, thank you. Was it city or county? - City. And I remember Dr. Lane, you know, Lane told me you're making a mistake here 'cause now everybody's gonna ask for the accreditation when they don't get it.

[08:17:27] But at the same time, it seemed to have worked, right? For at least to stave off disaster in that division for another year. And so I just think we gotta be a little bit more careful about how we talk about, you know, are we just masking things?

[08:17:44] Is this really a problem? Because if we're not prepared to help, I mean, you know already which schools are doing well. You can look at the socioeconomics, right? You can look at the demographic data and you can tell which schools are not doing well. Not 100%, but close enough be statistically significant, right? So, you know, I just urge some caution in the use of the system to say, or the idea that we're masking failure. We know where the failure is. We know where the shortcomings are. But do the city and masks. I hear you, Mr. President, but do the citizens of

[08:18:19] the commonwealth, I mean, I think it's actually, it's not totally dissimilar from our situation this morning where, like we said, we can't solve this problem. The local board is going to need to address these these various issues i don't think we can do i think i think it's a totally if we suddenly said i don't think there's any evidence that if we suddenly said we're going to run 30 divisions that things would improve or five for that matter we couldn't run 30 more exactly yeah we just thought the map but if people i think if people understand if we have a clear coherent system that people understand then some of this takes care of itself through the local democratic process and you don't have the problem you just described where people like if we don't hit this

[08:18:58] bar all of our hard work goes out the window because what's been happening will be clear and transparent to people and you'll say you know we're not where we need to be but here's the progress we've been making i think all of this comes back to a system that's transparent understandable and well designed and we have to trust the people as commonwealth that when they have this information like in a lot of cases they're going to act on and it's not going to be something that's always happening just out of richmond if this were the first time through i'd agree with you but isn't that really i mean what could have

been more simple than 75 percent pass or 70 percent pass they were basically quick easy data points but that's

[08:19:35] exactly the problem 70 pass masks a lot of problems 70 as a civil rights issue 70 pass was not a good policy that's simple so what are you going to do now you're going to say 90 need to pass and not mask the uh 30. the problem with the the numbers at some point become arbitrary we weren't disaggregating and so you had all of these um you know you had all these issues that we know live in our society being hidden by this sort of 70 percent where we weren't breaking it out this is where i think we need to be thoughtful and again and that's what our new system does transparency transparency is such a way when you break it out all of a sudden you say we're too complicated

[08:20:12] the disaggregation is one of the things we added right after but like after years and now i mean and i think the disaggregation is great i'm certainly not arguing against i want i think it's essential that we keep it we just need to figure out how do people understand that i don't think we should get hung up on no one's saying 90 percent but what's the system and obviously we should just say this right now we can't shock the system particularly coming out of this pandemic we need to put how do we put in place something that both is transparent around again to use that word and supports sort of sustained improvement the question is andy do you want a data system that basically informs people or do you want something again that an accreditation system that you're

[08:20:51] going to attempt to skew behavior with well i think that's nice put on the table i think we have to decide that the one the one place i would push back i think we had we ran a real life experiment on this earlier this year we put out a report we i mean i wasn't on the board yet we being the the royal we the department put out a report and it immediately broke down into a debate around nape standards our standards is this even real i think that was like a real life experiment that people don't know how this is working what goes on what any of this means the conversation after that report came out if you sort of in the media and the political world and so forth was just it was all over the place and and no one had an understanding of how these things work together

[08:21:30] how nate relates to to what we do and so forth and so i just think it was it was just a clear case of we have to if everybody doesn't understand the table stakes we're lost we've got to just have common language common definitions and then we can have disagreement about what it should look like what's reasonable and all that but we're not even we're not even there yet does that make sense I agree we're not there yet, that part I agree with, and it does make sense.

[08:21:56] But again, I think even you're highlighting the tension between sort of the simple system that's easy to understand, the audience being the general public, and the more complicated system that actually conveys where we really are. I'm not sure those are so far apart.

[08:22:12] I think it's a really hard challenge, but I'm not sure they're so far apart. Mr. President? Ms. Holton. - Just, I wanted to take exception to, I appreciate the spirit of looking at what we can do to approve the accreditation system, and we should always be looking at that, but I did want to take exception to the comment that nobody says this system is great, because I will say that this system is a huge improvement over where we were before, in looking, for instance, at gaps, in looking at chronic absenteeism, in trying to focus on continuous quality improvement, on focusing on college and career readiness, and not only is that my opinion, but we heard public comment in extensive public hearings

[08:22:51] as we were adopting these changes and we heard unanimous support from the leadership groups that do understand this system, the superintendents association, the school board association, the parent teacher association, education association, the curriculum and school development, the principals, et cetera.

[08:23:09] We heard huge support, the business community. We got great input from all of them when we adopted these changes that this system was a huge leap forward from where we were before, which doesn't mean that they're in room to improve it, and there definitely were some things that we were stuck with.

[08:23:27] The three-year waiver thing was something we were stuck with because of some legislation that had passed before we did the big fix. That was an attempt at some little fixes that maybe essentially didn't make any sense anymore in light of what we had done, but it was in legislation.

[08:23:43] So, you know, there's plenty of things we could do to improve it, no doubt about it. But I just would really caution making big changes without understanding the value and the huge public support that we heard for, I mean, one of the huge impetuses for the whole system was we had these SOL tests that third graders, eight-year-olds, were taking tests that lasted four and five and six hours.

[08:24:09] It was criminal. It was torturous. It was child abuse, my judge self said. So, you know, we've moved forward from a number of the things, and I don't think anybody's suggesting we go back on those. But I just think that it, you know, it's a complicated thing.

[08:24:25] That does remind me that the report that the Virginia Public Education Coalition just submitted today, so it was just posted as part of the public comment during our meeting is a good one, and we're taking a look at. And I do hope that one of the meetings of the HB 938 group would be to call in that coalition because it is an easy way to get to the leadership.

[08:24:45] You saw them here today, leadership, the superintendent's association, the school board association, et cetera, et cetera. To get them all in one room and get their input for HB 938 would be a huge benefit. And I don't disagree. I don't disagree we've made progress.

[08:25:01] And that's actually why yesterday I think we need to, going back to the beginning, let's look at what we did. let's figure out what worked let's figure out because you know it is not this is a this is a complicated issue where progress has happened in fits and starts and people have said well we should have done that if we know now if we knew then what we know now we would have done differently and all that so like rolling that up i think is is hugely important so we can figure out what's working what's not what have we tried before that hasn't worked what do we try before that maybe we should go back to and actually really really dig into that so that's why i'm hoping we get all the self-uncut scores, all the changes that have been made, and so we can sort of just get an understanding

[08:25:36] of where we are and then figure out where to go. - I'd like to try to, oh, is it your turn? Oh, yes. - Dr. Mann's turn. - Oops, I think I couldn't let. - I missed a conversation yesterday, so I think my context for the meta-issues that are being discussed, I'll have to spend a bit more time with the presentation that was in the folder, so thank you for that, and I promise I will undertake, sorry? We have the tape on. Oh, well, I'll have to tune in. No, no. Highway 95 is calling.

[08:26:15] I think high expectations are fundamental for what we all have to believe in and the roles that we've undertaken to serve in this capacity. There's just not a question about that. I think I have struggled a

lot with how easy that is to often say put into structures expect that people are going to respond to it and then struggle with the places that lack the resources to do it I I

[08:26:50] just I think they both have to go together to feel like we are truly creating a level playing field for everyone to succeed and i think that that is a struggle for me in this because i do recall a hearing a public comment period maybe last year as one of the counties was petitioning for a waiver and i remember hearing parents come and speak i think this was a school board member who actually

[08:27:26] spoke to issues that you spoke about in another situation that i was not you know on the board at at that time who actually said that educators were demoralized and really feeling like, I can't continue to operate in a space where we're constantly being looked at as failing students.

[08:27:50] And I feel like we've got to really look at that as we create incentives. There are some places that are struggling every single day to serve children with excellence.

[08:28:07] without a lot of resources to do it. And if we can't find a way to ensure the system recognizes and supports their success, I'm just worried. It's just too easy to get at being able to focus on helping those who are doing well do better.

[08:28:31] It is much harder, much harder to pull people up. Students who are living in homes where parents are working two and three jobs just to make a living i see this at the very front end of children's lives with the families that we serve that are living at a hundred and two hundred percent of federal poverty they're not going to the doe's website to see what great schools has to say they're focusing on what does the school in my community have on its website that helps me understand

[08:29:08] is my child's needs going to be served by this school i don't know what we can do to make data transparent at the school level but as we're thinking about the the profile quality profiles that live on doe's website and we're trying to be transparent to parents let's think about parents who are not thinking about videoe as the website and the place to go they're looking at their local school i know i looked at my local school and i went to their website actually it's changed quite a bit i actually thought what i saw because i did get a chance i have a 30 year old

[08:29:47] and a 22 year old that both went through public schools in virginia and i remember looking at the school's website and really being able to see disaggregated data on how students were doing across multiple groups i didn't have to traverse the the doe's website which exists for a reason to inform the public but if we're really trying to talk about making things transparent to parents on the ground let us think about those parents on the ground who don't have all day to be sitting in sort of policy converse they're focused on their child their school what can i do to make

[08:30:25] sure the teachers there are going to serve my student well and and i think every time we tweak at these fundamentally large systems it takes three to five years for them to work their way through the system so whatever we elect to do to unwind or you know create a new just expect that the flow down on the ground in schools districts across the commonwealth it's going to take some time for that to work its way through everybody's got to then recalibrate okay there's a new way i I gotta be focusing and thinking.

[08:31:04] These structural changes expend extraordinary time and effort on the part of administrators. The level of oversight and compliance, federally speaking, it takes a lot to manage when people really do wanna focus on the business of educating kids.

[08:31:24] And I just think we have to, as we try and endeavor to improve with the levers that we have as a board to influence and to shape, let's not characterize the desire of people who want to make sure there aren't unintended consequences as being satisfied with mediocrity.

[08:31:48] I think when we frame things in those ways, it really doesn't do, it is unfair, I think, to the real desire to want to deal with practically, how can we make sure qualified teachers are available to all students across the Commonwealth.

[08:32:09] In schools that are high poverty, struggling with students who are ELL, have the resources that they need to be successful in the system. And I just, I feel very strongly that we have to keep that as a North Star in our conversations.

[08:32:27] I have high expectations. I've benefited from being in public schools, not here, in the city of Detroit, where teachers, teachers, I'm talking teachers, you knew that they felt like you can do better.

[08:32:45] I know what that means to have educators in classrooms. I am a product of that. My parents were not college educated. My dad had a third grade education, but because there were people, individual teachers in my classrooms throughout my experience that were prepared to wrap support around me and other students that would have been considered for by the standards of, I just, that is an overwhelming concern I have.

[08:33:23] Unintended consequences for high stakes kinds of approaches to elevating systems, so.

[08:33:39] - That was awesome. And also, I think this whole conversation has been fantastic, both as a formative point for the board and as well as the questions that we've probably not answered their satisfaction. like to give i just i think is a positive of the current system and and actually kind of argue against myself earlier the pro of having a long list of things that can be red yellow and green is that i have seen just in the past few weeks during pre-service and opening weeks of school our data teams be able to go into schools and as they go into school number one they we're going

[08:34:16] to work on the yellow and the red and we're going to school it's a different yellow and red it is different by school so while you know one hand having lots of indicators color-coded could be a distraction i think that that the system the way it is now and again we we had a new system we've had it interrupted and now we're trying to go and i do think that it is leading school specific conversations about what schools are working on and so i i i've seen that firsthand the last few weeks and so i i think that that is encouraging um to your questions i think an executive summary or some sort of bullet headline thing at the school quality profile the other

[08:34:53] thing that you know again as soon as you say you can put it in school quality profile people think you're going to use as a club i think that the vacancies and provisionally licensed teachers uh by school is is a very powerful pretty powerful piece may i just add just a few and this was very enlightening um a lot of this was good and um very um i think from a very educator or education

[08:35:24] background point of view and um this is great dr man i appreciated what what you said also um and i do i do think high expectations every child is a unique human being and every child should be encouraged to do the best and and should be consistently challenged so the low bar should should constantly be moved in the low bar should be constantly raised um and and you know i mean i do agree with what you were saying that i mean sols there's such a big honesty gap between the

[08:36:03] sols and nape and you know i mean it's increased and you you wonder really how many parents understand that and why can't dsls move closer to the to the nape standards why why is there most most parents don't understand these different uh these different rubrics and we're i know we're having this conversation about maybe you know accreditation when you look at the the big picture

[08:36:37] the us is constant consistently across at least a decade been in the middle or below average of the pack in the pisa standards scores science and math so globally speaking the u.s length i mean it's the only superpower right now and it ranks lower than average in math and science so the question is are we how do we really improve the nuts and bolts are we okay if you talk about website

[08:37:10] that is not as much of a concern for me um i understand that some people look at websites but i think what most people look at is what how good a school is but if you do would you like if you do want to put some additional metrics i think uh the you know some metrics would also be parental satisfaction how do they what do they think that school is like are they happy there were they happy with how what kind of level their of education their their children got it um did

[08:37:49] they get enough support was um to to my mind of as we move into this hp 938 it's got so much potential but we really have to move so quickly at the school level extra giving students extra support you know giving them accelerate like i've said before give them support to be accelerated and move them on those who can those who can be accelerated move them the rest of them give them

[08:38:24] extra support um and um more transparency to really what's going on um yeah those are those are some of my ideas i just don't think we should sum up you know this should we shouldn't get caught in the weeds of some of this when we should really be running with some of the actual solutions on the ground. Thank you all so much for your very

[08:39:02] thoughtful comments and I'm just going to summarize what I think I have heard and you all can correct me if I get it wrong. I think it's clear that we want to make sure that we value ensuring that all students reach proficiency but you've also clearly stated that you want a system where we're looking at valuing accelerating students beyond just having a proficient system i think you've also alluded to the fact that accountability isn't just accreditation it's also what is reported on in the school quality profile and

[08:39:39] we used to have a graphic where we showed the different components of accountability school quality profile when you report on something that is a part of accountability accreditation of course essa and then also the soq the standards of quality because that's where you all put into place your values as far as what schools should have to meet in order to to meet the standards of quality um i think one issue with the current system is the indicators and the red yellow and

[08:40:14] green were supposed to provide transparency to people, and in a sense that was supposed to be, as Mr. Rotherham said, the accountability system. But because of the inclusion of the word accredited or not accredited in so many places in the code, we had to find a way of collapsing those indicators into a rating.

[08:40:39] And so perhaps one of the things you all might want to consider is something between accreditation and the indicators and the levels, which I think is what you were alluding to, that might better describe the profile of a school that isn't akin to accreditation.

[08:41:00] The other thing that Ms. Holton alluded to is accreditation has, over time, taken on a very pejorative meaning. If a school is not accredited, then there is concern about whether teachers want to

teach there. So I think perhaps if we can think about a different way of aggregating those levels so that there is a different way of reporting that to the citizens, perhaps that will get at the concern about transparency and maybe also be a bit clearer in terms of what the profile of the school is.

[08:41:38] In terms of honoring acceleration, in the 2017 revision, of the things the board discussed was having a blue level some of you may remember the blue level and so that would be above the green level so it would really um the intent was to recognize really high achieving schools so ultimately it was decided that that wasn't the way the board wanted to go but there was that discussion of looking at something you know beyond just just getting to the green level we will certainly not make you all go through the rest of these

[08:42:15] questions but i do hope that you will look at the rest of what was in the powerpoint some of the important information is the type of change that would be required to to adjust the system in some cases within the standards of accreditation you have the authority just by board action to to change something an example is you can change the benchmarks on the indicators you can also add an indicator um you have the authority to determine what the growth measure is now you know within the soa the definition of the academic indicators does include growth

[08:42:54] so it would take a regulatory change to remove that from the ratings but you can determine how we how we calculate growth and how we include it um one of the things you may want to consider is you know right now the combined rate growth counts the same as passing the test and you know one of the things we looked at long ago was is there a way to still value growth but understand that it is not the same as as passing um so thank you all again for the very thoughtful conversation

[08:43:31] i do hope you will look at the rest of what was in the powerpoint because it'll give you an idea of you know where a change you might want to make would require regulatory or legislative change or where uh you might be able to just make an adjustment uh by vote okay well thank you shelly i think we've been dismissed oh no just kidding uh i don't know if superintendent nail had anything she wanted to add not at this time let me also just turn the tables we not now yeah but like

[08:44:05] at some point shelly would be so great here you guys see stuff around the country it's like what are you seeing like mr hansen remember like everybody had the job behind it was like this texas model like the accountability system was like partly based on stuff they were doing um at the time and i'm not saying that like the past you know the wisdom of the shop behind or anything this is an example there's stuff happening all over the country right just to So the extent you guys are seeing interesting things that they've been doing, you may not be seeing, interesting ideas, or should that signal a benefit?

[08:44:39] We're asking, you want to know what our question is, but I think a big question is for you guys, if you're seeing sort of that back to this thing, seeing what you should take a look at them and think about them, you're probably seeing stuff and thinking about stuff, we're not. Thank you.

[08:44:55] I think it's a great idea. Okay, anybody have anything else? Since I apparently hijacked Shelly's other questions. Okay, no problem. Good discussion. MS. Great discussion.

[08:45:11] Thank you. MR. If not, I guess we are adjourned until next month. Thank you all for a fruitful meeting. MS. Thank you.



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